

Module-1

Evolution of Indian Constitution

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1.1 Introduction:

Man is basically a social animal. Many of his wants will not be satisfied if he lives in isolation. Hence, living in society or groups is necessary. Man, living in society is quarrelsome by nature i.e., even though he lives in society, he cannot give up his own way of feeling, thinking etc., This always results in conflicts. Hence, to ensure peace and order in the society we require certain rules and regulations. But these rules and regulations did not come into existence by themselves. There must be an agency for making necessary rules and regulations, another for enforcing those rules and regulation and one more organization to punish the offenders. These three agencies together in a form of an organisation is known as **Government**. Such rules and regulations are known as **Laws**.

1.2 Learning Objectives:

This Module deals with

- Evolution of the Indian Constitution.
- Objective Resolution as a Blue Print of Indian Constitution
- Preamble – which is foreword to our Constitution
- Fundamental Rights of the Indian Citizens
- Fundamental duties of Citizens
- Directive Principles of State Policy
- Amendment and Review of constitution
- Constitution Review Commission.

1.3 The Government functions through three of its agencies. They are:

- Legislature : Law-making body
- Executive : Law implementation
- Judiciary: Punishing those, who disobeys them.

Hence “A society, which is territorially organised and which is governed by laws is known as State”

State has four important elements. They are:

Population	}	Physical Element
Territory		
Government	}	Non - Physical Element
Sovereignty		

Population: There can be no state in the world without population. Hence population is a necessary condition for the existence of the state.

Territory: Like population, there can be no state without territory. Small or Large, a state must have some territorial boundaries.

Government: The objective of any state is to establish peace and order in the society. Through government, the state achieves this objective. It is an agency through which the will of the state is expressed and realized. ***It acts as an agent of the state.***

Sovereignty: This means the supreme power of the state to make any laws and to enforce them. This is the unquestionable power of the state. Sovereignty has two aspects:

Internal Sovereignty: It refers to the supreme power of the state to make any laws and to enforce them on the people and association living within the territory.

External Sovereignty: It refers to the freedom of the state from any foreign control. This means the political independence of the state.

If a state has the first three elements mentioned and the internal sovereignty, it cannot be called as the state, because the external sovereignty is very much important.

Example: Before 1947, India was not a state because it lacked external sovereignty.

The objective of the state is to achieve the welfare of the people. Hence, it has to function within certain framework to achieve individual and social welfare. There are

few guidelines which must be followed to accomplish this target. As earlier discussed, Government is an agent of the State. Constitution has been designed to frame those guidelines, within which the government has to function. **Hence, constitution may be defined as the fundamental law of the government.**

1.4 Evolution of Constitution

Before 1947, Britishers were ruling India. All the rules and regulations were being made by them and enforced on us. These Britishers, for their administrative convenience, divided India into three provinces. They were: West Bengal, Madras and Mumbai. With the help of a vast network of officials, 'Secretary for State' looked after the entire country's administration. Under him Governor General, Viceroy, Governors, Lieutenant Governors, Chief Commissioners functioned. This resulted to a 'Bureaucratic Government' - where the lower officer is responsible for the higher official has evolved. This further led to a highly centralized form of government.

But after 'Sepoy Mutiny' in the year 1857 – the decentralization process slowly started. Hence the evolution of decentralization (where the local provinces will be given the right to look after the local affairs) also started. But this was not enough for us. We wanted complete political freedom, a better system of governance and more and more institutions, which represented the will of the people. Added to this, our eminent freedom struggle leaders like Mahatma Gandhi, Jawaharlal Nehru, Surendra Nath Banerji who have studied in England and they were largely impressed by the freedom enjoyed by the British people. They wanted our people to enjoy the same amount of freedom, what British people enjoyed. These eminent leaders have joined the freedom struggle. Hence the demand for freedom or the freedom struggle was slowly picking up its pace.

The British Government, in the year 1927, sent the '*Simon Commission*' to please Indians and suggest reforms to the Indian Government. But the Indians boycotted and opposed to its recommendation. This annoyed the British Government. Lord Birkenhead, the then Secretary of State for India, asked leaders of the freedom struggle to prepare a constitution, which is acceptable to all the parties. An all party meeting (29 parties participated in it) was held under the leadership of **Pandit Motilal Nehru**. This was popularly known as '*Nehru Committee*' met 25 times and prepared an excellent draft of the constitution for India. This report submitted by '*Nehru Committee*' came to be known as "Nehru Report". This report was accepted by all but was rejected by the British Government.

Some of the recommendations were;

1. A federal system, in which powers were divided between the centre and the provinces.
2. A Bi-cameral legislature at the Centre and a Uni-Cameral Legislature at the Provinces level.
3. A list of fundamental rights to be given to the citizens.
4. A supreme court to sort out the disputes between the centre and the provinces.

5. Provinces government to be run by the representatives, who are directly elected by the people.

Though 'Nehru Report' was rejected by the British Government it was accepted by the 'Constituent Assembly' at the later stage. Hence 'Nehru Report' is rightly termed as the '**Blue Print of our Present Constitution**'

When British Government rejected the 'Nehru Report', the situation had moved from bad to worse. British Government sent 'Cripps' to India to find a solution to this problem. But 'Cripps' proposal was also rejected.

After the three round table conferences held in London and due to the increasing demands for the fundamental rights and for a responsible government – the British Government enacted the 'Government of India act 1935', which gave provincial autonomy. This resulted in several provincial governments. These provincial governments use to function with the representatives and the ministers nominated by the British Empire and were responsible for all provincial development.

During this juncture the II World War broke out. The British Government declared India as its supporter and made it a party in the II World War even without consulting the provincial government. The British Government faced severe criticisms and opposition from the local provincial government. As a result, the Prime Minister of Britain, Sir Winstin Churchill promised to find a solution to this problem and to transfer the powers completely to Indians after the war, This sought Indian's support and work wholeheartedly for the prosecution of the war.

After the II world war in the year 1945, '**Labour Party**' came to power in UK, under the leadership of Clement Atlee. Now to keep up with their promise, Clement Atlee constituted a three member committee known as '**Cabinet Mission**' in the year 1946. The member of this '**Cabinet Mission**' were:

- ✎ V. Alexander
- ✎ Lord Pethic Lawrence
- ✎ Sir Stafford Cripps

This '**Cabinet Mission**' visited India in the year 1946. After the prolonged discussions with the national leaders 'Cabinet Mission' made two recommendations. They were:

- (a) To constitute an 'Interim Government'
- (b) To form 'Constituent Assembly'

The Cabinet Mission suggested the British Government, that India must be given independence. For this it suggested Indian National Leaders to form an *Interim Government* to look after the administration until the permanent arrangements were made. Accordingly, an *Interim Government was constituted under the leadership of Pandit Jawahar Lal Nehru on 2nd September 1946*. The function of this Interim Government was to manage the administration of the country.

To prepare its own set of rules and regulation, the 'Cabinet Mission' suggested for the establishment of a 'Constituent Assembly'. Accordingly the '*Constituent Assembly*' was formulated on 8th December 1946. The constituent assembly originally had 389 members,

out of this 292 members were elected from British India provinces and 93 members were nominated by the native states. But after the partition, the representatives of areas that become Pakistan withdrew and hence finally the 'Constituent Assembly' was left with 289 representatives.

The 'Constituent Assembly' met for the 1st time on December 9th 1946 and elected **Dr. Rajendra prasad was the President and T. T. Krishnamachari and H. C. Mukherjee as its vice Presidents.**

The other important members of this constituent assembly were: Nehru, Patel, Acharya Krupalani, Dr. Sarvapalli Radha Krishnan, Maulana Abdul Kalam Azad, Pattabi Sitaramaih, K. M. Munshi, K. T. Sha, Smt. Amrit Kaur, Smt. Vijay Lakshmi Pandit, Sarohini Naidu, Sucheta Krupalani etc.

The first thing that the 'Constituent Assembly' did was to adopt the 'Objectives resolution'. This was about the goals and objectives of India as an independent nation. Pandit Jawahar Lal Nehru presented this 'Objectives resolution' on 18th December 1946. After the discussion it was adopted on 22nd January 1947.

1.5 Objectives Resolution

The Constituent Assembly declares its firm and solemn resolve to proclaim India as an Independent, Sovereign, Republic and to draw for her future Government a Constitution:

"WHEREIN in the territories that now comprise British India the territories that now form the Indian States and such other parts of India as are outside British India and the States, as well as such other territories as are willing to be constituted into the independent, sovereign India, shall be a Union of them all; and

"WHEREIN the said territories, whether with their present boundaries or with such others as may be determined by the Constituent Assembly and thereafter, according to the law of the Constitution shall possess and retain the status of autonomous units, together with residuary powers and exercise all powers and functions of government and administration save and except such powers and functions as are vested in or assigned to the Union or as are inherent or implied in the Union or resulting therefrom; and

"WHEREIN all powers and authority of the sovereign, independent India, its constituent parts and organs of government are derived from the people; and

"WHEREIN adequate safeguards shall be provided for minorities, backward and tribal areas and depressed and other backward classes; and

"WHEREIN shall be maintained the integrity of the territory of the Republic and its Sovereign rights on land, sea and air and according to justice and the law of civilized nations; and this ancient land attains its rightful and honoured place in the world and make its full and willing contribution to the promotion of the world peace and the welfare of mankind."

As we can observe from the 'Objectives Resolution' that initially, it had planned for a weak centre and powerful and autonomous provinces, who would also enjoy the

residual powers. But after the partition of India and Pakistan, the situation changed and we were bound to have a powerful centre which enjoys the residuary powers.

The Constituent Assembly after adopting the 'Objectives Resolution' had enormous task of framing the constitution of a newly liberated country. Hence, the Constituent Assembly decided to work through various committees. Some of the Committees, created by the assembly were: • Finance and Staff Committee • Press Gallery Committee • Rules of Procedure committee • Unions Powers committee • Negotiation Committee • Advisory Committee etc.,

The reports of all the other committees were submitted to the 'Drafting Committee'. This committee was formed on 29th August 1947. This Committee was chaired by an outstanding lawyer Dr. B. R. Ambedkar. Other members of the Drafting Committee were: - N. Gopala Swamy Iyengar, Alladi Krishna Swamy, K. M. Munshi, B. L. Mitter, B. N. Rau, S. N. Mukharjee.

With the help of all these eminent personalities the 'Drafting Committee' *submitted the 1st draft of the constitution to the 'Constituent Assembly' on 21st February 1948.* Then this draft was published and was sent to various Judges, Legislatures, Political Scientists for comments and suggestions. After many discussions and amendments, the final form of the constitution was passed and adopted by the assembly on 26th November 1949. However, the constitution was inaugurated only on 26th January 1950, This day was chosen to commemorate the pledge taken by the country twenty years earlier in the name of 'Poorna Swaraj' (Complete independence) at Lahore conference.

With the enforcement of the constitution, India ceased to be a dominion and became a republic. When the constitution was adopted it had 395 articles, 8 schedules and 22 parts. Now there are 12 schedules and till date 94 amendments have taken place.

1.6 THE PREAMBLE

The Constitution of India begins with a Preamble which specified the nature of the Indian State and the objectives it is committed to secure. K. M. Munshi describes the Preamble as the political horoscope of the constitution which lists the basic features of the constitution, its basic philosophy and the nature of the Indian states.

The Preamble of Constitution of India reads as follows:

Preamble of Indian Constitution

"WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN, SOCIALIST, SECULAR, DEMOCRATIC REPUBLIC and to secure to all its citizens:-

Justice: Social, Economic & Political

Liberty: of thought, expression, belief, faith and worship

Equality: of status & of opportunity and to promote among them all;

Fraternity: assuring the dignity of the individual and the unity and integrity of nation

IN OUR CONSTITUENT ASSEMBLY, this 26th day of November 1949, do HEREBY ADOPT, ENACT and GIVE TO OURSELVES THIS CONSTITUTION.

Preamble is a declaration of objectives and the purposes of a state. It is a sort of preface/foreword to a book. It is only an introduction, not the body of the constitution.

If we read the first and the last parts of the Preamble together, we find that – We, the people of India have adopted, enacted and given to ourselves this constitution. This says that the Constitution was not prepared just by a set of people/group of people. Even though it was prepared by a group of people they represented the will of the entire country. Hence every citizen of the country has indirectly participated in making this constitution. It testifies that the people are the ultimate source of all authority. The government derives its power from the people. After preparing it ourselves, we adopted this out of our own will i.e., no external force was involved in this. This implies that the ultimate sovereignty vests with the people & the constitution is created by the entire nation.

Sovereign: India is a sovereign state both in terms of Internal and External. India is free to take any decisions and to formulate any policy without the interference from any country. Such a proclamation was essential to denote the end of British rule over India and also the dominion status.

Socialistic: India wants to develop a society on the basis of economic justice, where distinction between the rich and the poor would be minimised. It signifies the commitment to socio-economic justice.

Secular: All religions are equal. The state recognizes no official religion.

Democratic: The ultimate sovereignty lies with the people. Where the government will be by, of and for the people. Using 'Voting Power', the people themselves select their representatives. For all its act, government is responsible to the people. People can change Government through elections. People enjoy fundamental rights and freedom which are granted and guaranteed by the constitution. The Supreme Court of India acts as the guardian and protector of both the Constitution of India and as well as fundamental rights mentioned in the constitution.

Republic: We have President as the head of the state and this system doesn't provide

place for the king or the Monarch and the government powers are not hierarchy. It means India has an elected head, who enjoys powers only for a limited period of time.

Justice: Social, Economic & Political

The term justice refers to the co-ordination between general interest and individual interest.

Social Justice: No discrimination of citizens on the grounds of caste, creed, sex, religion, place of birth, colour. It stands for eliminating social exploitation. Abolition of untouchability and privileges for SC & ST are provided to grant special protection to the weaker sections of society for securing their equality with others.

Economic Justice: Equitable distribution of wealth, avoidance of concentration of property, abolition of forced labour and ensuring adequate opportunities to all for earning their livelihood and a welfare state.

Political Justice: It means equal, free and fair opportunities for all the people for participation in the political process. The Constitution of India provides for a liberal democratic political system in which we follow, Universal Adult Franchise, people have the right to elect their representatives and the right to hold government jobs.

Liberty: of thought, expression, belief, faith & Worship.

Constitution aims at the all round development of the individual. Hence for this freedom of thought and expression, belief, faith and worship has been given.

Equality: of status and of opportunity

Equality of Status: abolition of untouchability, removal of Titles, No discrimination based on sex, caste, colour, age etc is permitted.

Equality of Opportunity: non-discrimination in the matters of public appointments. All are equal in the eyes of law.

Fraternity:

In a vast country like India, where people have different faith, customs and traditions and speak different languages the ideal of fraternity is all the more important. The country has suffered a lot in the past as a result of communal clashes. Therefore the feeling of brotherhood should be developed.

No individual should feel that he is in any way inferior to others. All individuals should live with dignity. It is designed to secure dignity of the individual and unity and integrity of the nation. The Universal Declaration of Human Rights declares that "All human beings are born free and equal in dignity and rights".

When all the above said objectives are achieved the integrity of the country will be achieved.

The terms 'Socialist', 'Secular' & 'integrity of the nation' were added to the preamble in the year 1976 through 42nd amendment as per Swaran Singh Committee report.

The objectives outlined in the preamble were first set out by Nehru in the 'Objectives Resolution'.

1.7 FEATURES OF INDIAN CONSTITUTION

Speaking in the Constituent Assembly, Dr. Ambedkar observed: "I feel Indian Constitution is workable, it is flexible and it is strong to hold the country together both in peace time and in war time. Indeed, if I may say so, if things go wrong under the constitution, the reason will not be that we had a bad constitution, what we will have to say is that man was vile". The Constitution of India is a unique combination of both flexibility and rigidity. It advocates a mixture of both federalism-unitarianism. It is known as Quasi-federal. Let us try to understand, some of the salient features of the Indian Constitution.

1.7.a. **LENGTHY AND A DETAILED DOCUMENT:**

The constitution of India is the lengthiest and the most detailed constitution in the world. It was drafted, debated and enacted by the Constituent Assembly of India. It took 2 years 11 months and 18 days for the constituent assembly to write and enact the constitution. It comprises of 395 articles, 12 schedules and 22 parts and till date 94 amendments have taken place.

The constitution of United State of American has 7 articles. Australia has only 106 articles in its constitution and Japanese Constitution has only 103 articles.

The conditions that prevailed at the time of partition have compelled the authors of the constitution to be cautious about the future. They wanted to avoid any conflicts in the future between union, state government. Therefore every minute detail has been clearly explained.

The Indian constitution deals not only with the structure and the functions of the union and the state governments but also with the citizenship, fundamental rights, fundamental duties, directive principles, President, Emergency provisions, Language provisions, Provisions regarding protection of interest of Scheduled castes and tribes and other backward classes, provisions regarding special constitutional bodies like the Election Commission, UPSC, State Public Service Commission, etc.

Even the drafting committee chairman Dr. B. R. Ambedkar has justified the detailed constitution on a ground that democracy was a new experiment for India and it was necessary to spell out details in clear language.

1.7.b. **A WRITTEN DOCUMENT:**

The constitutions of the world is usually divided into two parts. Namely: -

- (A) **Written constitution:** It is always enacted, framed, adopted by a definite constituent assembly or convention at a particular time. It is available in the form of a written document. Eg. USA constitution, which is written, enacted and adopted by a convention held at Philadelphia in 1787. India's constitution was enacted and adopted by the Constituent Assembly 26th November 1949.
- (B) **Unwritten constitution:** It is a result of evolution. The customs and traditions that were followed from centuries have been converted into rules and regulation and British constitution is an example for unwritten constitution.

1.7.c. COMBINATION OF FLEXIBILITY AND RIGIDITY:

On the basis of the **procedure of amendment** – constitutions are divided as rigid and flexible. If amendment procedure is simple and through an ordinary law if changes could be made, it is flexible. On the other hand if it requires a special procedure for amendment – it is termed as rigid. Indian Constitution is a unique combination of both rigidity and flexibility.

Some changes like changing the name of the state, creation or abolition of legislative council of a state, rules regarding citizenship, could be done by the parliament by simple majority. However, under article 368 of the Indian constitution mentions about two types of amendments. (a) Most of the provisions of the constitution can be amended by the Union Parliament by passing the Amendment bill by a majority of total membership and the 2/3rd majority of members present and voting in each of its two houses. (b) The Union parliament passes the amendment bill by a majority of total membership and 2/3rd majority of members present and voting in each house individually. Then this bill will be sent to state legislatures. If it is approved by half of the states, then the amendment will be accepted. The provisions covered under this method includes election of President, Executive powers of the Union and states, Union Judiciary, distribution of legislative powers etc.,

1.7.d. INDIAN CONSTITUTION HAS A DETAILED PREAMBLE:

Indian constitution is one among those constitutions in the world, which has detailed preamble. The aims, objectives of the state have been clearly expressed through preamble. It is like an introduction/preface to the book. It explains the objective behind drafting the constitution.

To this preamble 3 terms, namely, socialist, secular and integrity of nation were added through 42nd amendment in 1976. The nature of Indian state and the objectives of commitment to secure the unity and integrity of the nation, is clearly stated in the Preamble in a nutshell. Now Preamble is considered as a part of the Constitution.

1.7.e. INDIAN CONSTITUTION DECLARES INDIA AS SOVEREIGN, DEMOCRATIC, REPUBLIC COUNTRY:

From the date we have adopted the constitution - India ceases to be dominion of British Empire. We enjoy complete sovereignty both internal and external. We are not ruled by anybody's guidelines. We are free to declare war against any country and also we may enter into peace agreement with any country. India as a country, now may enter into foreign trade with any country.

Democracy is a form of government for the people, by the people and of the people. In which people will be given an opportunity to elect their representatives. The power of the government rests in the sovereignty of the people. People enjoy equal political rights. Elections are held at regular intervals of time or when it is considered to be essential. Elections will be free, fair and impartial and are based on the principles

of universal adult franchise, secret ballot, single member constituencies and simple majority vote victory system. These elections are held under the supervision of election commission of India. People change government through elections.

India is a republic country in which we do not have single person as the head of the state and moreover administration powers will not be transferred on the basis of hereditary. President of India is the sovereign head of the state who is indirectly elected by the people for a fixed term of five years.

1.7.f. INDIAN CONSTITUTION DECLARES INDIA AS A SECULAR STATE:

The term 'Secular' was included in the preamble through 42nd Amendment. India is a secular state, which means all religion will be treated alike and no discrimination will be made between people on the basis of religion. People are free to have faith in any religion and the state will not force the people to follow any particular religion. The state will not interfere with the religious freedom of the citizens. It prohibits levying taxes for religious purposes. Equal respect for all religions is the guiding principle of secularism.

1.7.g. UNIVERSAL ADULT FRANCHISE:

According to this any person (both male and female) who has attained 18 years or more than that will be given an opportunity to take part in the political affairs of the state like voting, contesting in the elections, obtaining a government job etc. They may select their representatives by casting their votes in the elections.

But this voting power will not be given to mentally retarded, criminals, insolvents, foreigners, militarily abandoned.

1.7.h. SINGLE CITIZENSHIP:

Indian constitution makes provision for single citizenship that is irrespective of place of residence he or she will be considered as a citizen of India. We do not separate citizenship on the basis of state. Hence a citizen of India can secure job anywhere in the country and he may contest in elections to Lok Sabha from any constituency of the state. Moreover single citizenship refers to "One man, one vote". It represents the integration of the Indian states with the rest of India.

1.7.i. INDIAN CONSTITUTION HAS BORROWED SEVERAL CONCEPTS FROM SEVERAL SOURCES:

Indian Constitution is considered as a Bag of borrowings because we have borrowed several concepts from different countries constitution: For example: -

- ✎ Parliamentary system and Bi-cameral system of legislature from England
- ✎ The concept of Directive Principles from Irish constitution
- ✎ Fundamental Rights from USA
- ✎ Socialistic concept from USSR.

Apart from this, the values and ideals of the national movement influenced us to adopt secularism.

1.7.j. INDIAN CONSTITUTION HAS A SPECIAL PROVISION CALLED DIRECTIVE PRINCIPLES:

This feature has been borrowed from Irish constitution. Directive Principles are the instruments of instructions given by the constitution to all future governments of Central and State. It is a guide to the future policies of the state. Part IV of the Indian Constitution deals with Directive Principles of the State Policy. In order to check the possibility of dictatorship, the constitution has laid down certain guidelines, which are needed to be followed by all future government. These are the national objectives which every government is supposed to secure.

1.7.k. FUNDAMENTAL RIGHTS:

Indian constitution gives certain privileges, opportunities to all the people in the form of fundamental rights. These fundamental rights are the pillars of the Indian Constitution. Part III of the constitution deals with this. These rights will be conferred on to the people without any discrimination. At present 6 fundamental rights are given:

- i) Right to equality (article 14 -18)
- ii) Right to freedom (article 19 - 22)
- iii) Right against exploitation (article 23 & 24)
- iv) Right to freedom of religion (article 25-28)
- v) Cultural and educational rights (article 29 & 30)
- vi) Constitutional remedies (article 32)

Initially there were seven fundamental rights. The 7th fundamental right was right to Property (article 31) but this fundamental right was deleted from the list through 44th amendment. They are justifiable in nature i.e. if any fundamental rights is hampered, justice could be sought from the court of law. In order to protect them “writ” power has been developed. There are five writ powers.

- i) Habeas corpus
- ii) Mandamus
- iii) Prohibition
- iv) Certiorari
- v) Quo warranto

If the legislature makes any law against fundamental rights, then the judiciary will declare them “ultra vires”. This ultimate power of the Judiciary is called as Judicial Review. These concepts are explained in detail in the later chapter.

1.7.l. INDIAN CONSTITUTION INCLUDES DETAILED LIST OF FUNDAMENTAL DUTIES:

Duties are the obligations that have to be performed by every citizen of the

country. There are 11 non-justifiable fundamental duties. They are: -

It shall be the duty of every citizen of India:

- 1) To abide by the constitution and respect its ideals and institutions, the National Flag and the National Anthem;
- 2) To cherish and to follow the noble ideals which inspired our National struggle for freedom.
- 3) To uphold and protect the Sovereignty, Unity and integrity of India;
- 4) To defend the Country and render National service when called upon to do so.
- 5) To promote harmony and the spirit of common brotherhood amongst all the people of India transcending religious, linguistic and regional or sectional diversities; to renounce practices derogatory to the dignity of women.
- 6) To Value and Preserve the rich heritage of our composite culture;
- 7) To protect and improve the natural environments including forests, lakes, river and wildlife and to have compassions for living creatures.
- 8) To develop the Scientific Temper, Humanism and the spirit of enquiry and reform
- 9) To safeguard public property and to abjure violence.
- 10) To strive towards excellence in all spheres of individual and collective activity, so that the nation constantly rises to higher levels of endeavor and achievement; and
- 11) The Who is a parent or guardian to provide opportunities for education to his child or as the case may be between the age of six to fourteen years. This was included as per the 86th Amendment 2002.

1.7.m. PARLIAMENTARY FORM OF GOVERNMENT:

This form of government borrowed from British pattern of parliamentary government. President is the constitutional head of the state with nominal powers and union council of ministers headed by Prime Minister constitutes the real executive. In this form of government there will be close co-ordination between the legislature, executive and judiciary of a country. The cabinet ministers who are entrusted with the responsibility of making rules and regulations are even responsible for implementing them. Whatever rules they make should be within the frame work of our constitution. Judiciary has a special power called JUDICIAL REVIEW.

1.7.n. INDIAN CONSTITUTION HAS MADE A PROVISION FOR AN INDEPENDENT JUDICIARY:

In order to make justice impartial the Indian constitution has clearly explained the selection and the appointment of judges of various courts. President will appoint the Chief Justice of India and Cabinet ministers will not play any role. The salaries of judges will be paid out of consolidated fund of India. Under any kind of circumstances, the salary cannot be reduced.

1.7.o. INDIAN CONSTITUTION ESTABLISHES A FEDERAL FORM OF GOVERNMENT:

In this form of government the administrative powers of state will be divided between the central and state government. Accordingly in India we have 3 lists of power which divides the administration between the center and the state government.

UNION LIST- It consists of 97 items on which the parliament has exclusive power to legislate. which includes: Defence, Armed forces, Arms and ammunition, Atomic energy, Foreign affairs, War and peace, citizenship, extradition, railways, shipping and navigation, airways, posts and telegraphs, telephones, wireless and broadcasting, currency, foreign trade, inter-state trade and commerce, banking, insurance, control of industries, regulation and development of mines, mineral and oil resources, elections, Audit of Government accounts, constitution and organisation of the Supreme Court, High Courts and union public service commission, income tax, custom duties and export duties, excise duties

STATE LIST- It consists of 66 items and individual states have exclusive authority to legislate on items included in this list. Some of the items are Public order, police, administration of justice, prisons, local government, public health and sanitation, agriculture, animal husbandry, water supplies and irrigation, land rights, forests, fisheries, money lending, state public services and state Public Service Commission, land revenue, taxes on agricultural income, taxes on lands on buildings, estate duty, taxes on electricity, taxes on vehicles, taxes on luxuries.

CONCURRENT LIST - Concurrent list consists of 47 items. Both Union and State Government may make laws of these items. Uniformity is desirable but not essential on items in this list. Some of items are Marriage and divorce, transfer of property other than agricultural land, education, contracts, bankruptcy and insolvency, trustees and trusts, civil procedure, contempt of court, adulteration of foodstuffs, drugs and poisons, economic and social planning, trade unions, labour welfare, electricity, newspapers, books and printing press, stamp duties.

These are some of the important features of Indian Constitution.

1.8. Fundamental Rights

Fundamental Rights have been included in the IIIrd part of our constitution. They are known as Fundamental because, they are guaranteed by the constitution. For the development of individual personalities, we require certain privileges & opportunities. Fundamental rights ensure effective enjoyment of those privileges and Judiciary is the guardian of these fundamental rights.

There are six fundamental rights given to the citizen of India. They are:

1. Right to equality.
2. Right to freedom
3. Right against exploitation
4. Right to freedom of religion

5. Cultural and Educational rights
6. Right to constitutional remedies.

Earlier there were seven fundamental rights. The 7th fundamental right was “Right to Property”. But through the 44th amendment adopted in 1978, the Right to Property was deleted from Fundamental rights category.

A brief summary of fundamental rights is as follows:

1.8.1. Right to Equality:

Article 14 – 18 of the constitution deals with the Right to Equality. It includes Five rights:

Equality before the Law (Article 14): This implies that laws are to be applied without any discrimination. “Equality before the law” means “All will be treated alike, No special privileges will be given to anybody – equal protection & equal punishment for equal crime, will be given to one and all without any discrimination”.

Exception: *Equality before law doesnot mean absolute equality or equality among the unequals. It means equality among the people similarly situated. It doesnot prohibit the classification of persons into different groups. It also admits the right of the state to establish special courts for trying cases involving specific offences by certain persons.*

Prohibition of Discrimination (Article 15): No individual will be discriminated on grounds of religion, sex, caste, colour, race, place of birth etc. with regard to access to shops, restaurants, place of public entertainment or in the use of wells tanks, roads etc.

Exception: *The state can make special provisions for women and children and for the advancement of socially and educationally backward classes or for SC's and ST's. This implies protective discrimination in respect of weaker sections of the society.*

Equality of Opportunity (Article 16): Merits and qualifications will be considered as parameters in giving government jobs and no discrimination will be made. Article 16 clearly states that no citizen shall on the grounds of religion, race, caste, sex, descent, place of birth, residence or any of them be ineligible for or discriminated against in respect of any employment or office under the state.

Exception: *The state can make provision for reservation of appointments or posts in favour of any backward class of citizens. The state can also fix residential qualification as an essential condition for a public employment.*

Abolition of untouchability (Article 17): According to this, the practice of untouchability in any form or shape is prohibited.

Abolition of Titles (Article 18): Except military or academic titles, no citizen will be given any title by the state. Titles such as Rai Bahadur, Rai Saheb, Khan Bahadur, Sir (Knighthood) create artificial distinction. Hence titles are not allowed. But inspite of this President can award national honours like: Bharata

Ratna, Pama Bhushan, Padma Shri... etc. for their immense contribution. This article does not prevent the grant of military decorations such as Param vir chakra, Ashok Chakra, Vishista Seva Medal etc.,

1.8.2. Right to Freedom: Articles 19 – 22 of the constitution deals with the right to freedom.

Article 19 is the 'Key Article' because it guarantees certain freedom to the citizens. Originally there were seven freedoms given to the citizens. But now it has been reduced to Six. They are: • Freedom of speech and expression • Freedom to assemble peacefully without arms • Freedom to form associations and unions • Freedom to move freely throughout India • Freedom to settle and reside in any part of India • Freedom to practice any profession, occupation or business which are legal. Earlier Freedom to acquire, hold and dispose property was given, but in 1978 with the 44th amendment it has been taken back.

Article 20 grants protection against arbitrary arrest. It also further says no person can be arrested and punished for the same offence more than once. No person accused of any offence can be forced to be a witness against himself. It also prohibits against forcible securing of statements or confessions from an accused.

Article 21 deals with the right to Life and Liberty of citizens and as well as non-citizens. In the year 2002 article 21 A was added to the constitution through 86th Amendment. This article provides Free and Compulsory education to all children of the age of 6 to 14 years.

Article 22 says that no person could be arbitrarily arrested and detained. This article says that a person who is arrested and detained should be informed of the ground of his arrest and shall have the right to consult and be defended by a legal practitioner of his choice. The person who is detained must be presented before the court within 24 hours of his arrest.

1.8.3. Right against Exploitation: Article 23 and 24 of the constitution deals with the Right against Exploitation.

Article 23 prohibits all kind of bondage labour and all forms of forced labour (Work without Payment). In other words this article makes selling and buying of men and women and exploitation of people by forcing them to work as bonded labourers or work without remuneration, an offence. For this purpose in 1956, SITA (Suppression of Immoral Traffic in Women and Girls Act) was introduced.

Article 24 prohibits the employment of children below the age of 14 years. No child labour.

1.8.4. Right to Freedom of Religion: Article 25 to 28 of the Indian Constitution deals with the freedom of religion.

Article 25 states freedom of conscience and free profession, practice and

propagation of religion. Forcible conversions stands prohibited in India. There is no state religion in India. All religions are equal. People enjoy religious freedom and they can adopt any religion.

Article 26 permits the establishment and maintenance of institutions for religious and charitable purposes. Own and acquire movable and immovable property and manage its own affairs in matters of religion.

Article 27 states no person shall be compelled to pay any taxes for the promotion of any religion.

Articles 28 of the Indian Constitution strive towards fulfilling the declared objective of Secularism in India. It says that no religious instruction can be provided in any educational institution, which is wholly maintained by the state fund. No person attending any educational institution can be forced to participate in a religious worship that may be conducted in the institution.

1.8.5. Cultural and Educational Rights:

Article 29 & 30 of the Indian Constitution deal with this. India is a country of different languages and cultures. So the minorities are assured of the protection of their culture, language and script. Article 30 states that all minorities, whether based on religion or language, shall have the right to establish and administer educational institutions of their choice. They have the right to admit students to their institution, have their own governing bodies and adopt their respective system of instructions. Further, the state while providing grant-in-aid to educational institutions cannot discriminate against such minority institutions. Minority institutions enjoy autonomy of operations.

1.8.6. Right to Constitutional Remedies: Article 32 of the Indian Constitution deal with this.

For the effective implementation of fundamental rights – there should be a mechanism, which protects these Fundamental Rights. Hence the constitution has guaranteed in Article 32, the right to the people to appeal to the High court or to the Supreme Court for the enforcement of the Fundamental Rights.

The Fundamental Rights will become meaningless, if there is no effective mechanism to check the enforcement of the rights.

Hence for the effective enforcement of Fundamental Rights, the Supreme and the High courts are allowed to issue 'Writs'. Basically 'Writ' is a legal instrument, designed to protect the fundamental rights. There are 5 types of Writs. They are:

1.8.6.a. Habeas Corpus: It is a Latin term, which means 'You may have the body'. It is a direction of the court to person who has been detaining another person. It directs the detaining person to bring the detained person in the court for explaining the grounds of

his detention. It means that the detained person should be produced before the court, so that the court may examine whether the detention is lawful or unlawful. In case, if the detention is proved unlawful, the court may set him free. However it is not admissible in cases of persons who stand detained under any preventive detention law like MISA, TADA, POTAetc.,

1.8.6.b. Mandamus: It is a Latin term, which means 'We Order'. It is an order issued by the court, to a person or to a body to do that, which is his duty to do. If an official or a person fails to perform his allotted duty, then the court will command him to perform a duty. This writ is issued mostly when some public servant has failed to perform his duty.

1.8.6.c. Prohibition: The Writ of Prohibition is issued, to stop an inferior court to function beyond its jurisdiction. The Superior court issues Prohibition to stop the lower court to Proceed with the case. Example: Prohibiting a Judge from hearing a case in which he is personally interested.

1.8.6.d. Quo Warranto: If a person is performing a function, which he is not lawfully entitled to, then the court may stop that person through the writ of 'Quo Warranto' from exercising that function. For example: a Police Sub Inspector solving a case himself and judging the situation.

1.8.6.e. Certiorari: This writ is issued by the Upper Court, if it wants some additional information or records from a Lower Court. It may be issued asking the lower court to send to the higher court the records and the proceedings in some case, so that the superior court may be able to deal with the case more effectively.

The difference between Prohibition and Certiorari is that – under Prohibition, the lower court is asked to stop dealing with a case, where as under Certiorari the superior court asks the lower court to supply it with some information, records and proceedings about a particular trail.

1.9. Fundamental Duties

Rights without duties are meaningless. If a person doesnot perform his duties, others cannot enjoy their rights. If a person has no awareness of his duties then he is also not entitled to enjoy his rights. It is as simple as saying, if we donot pay our taxes promptly, we do not have any moral rights of expecting state to discharge its duties. Hence duties and rights are the two faces of the same coin.

The 'Swaran Singh Committee', which was appointed in the year 1976, suggested several changes to the constitution. As per the suggestions made by the committee 42nd Amendment was made to the constitution in the year 1976 and three terms: 'Socialist',

‘Secular’ and ‘Integrity of Nation’ were added to the Preamble.

Out of the suggestions the significant one was to include ‘Fundamental Duties’ into our constitution. Accordingly part IV A was added to our constitution, which deals with the fundamental duties. Duties are nothing but the obligations that each individual has to perform. Again this is non-justiciable in nature as it is not backed up by the Judiciary. Article 51 A of the constitution deals with the Fundamental Duties. At present, there are 11 non-justiciable fundamental duties. They are:

A brief description of these fundamental duties are as follows:

- i) To abide by the constitution and respect its ideals and institutions, the National Flag and National Anthem. It is the duty of the citizen to obey the supreme law of the land as enshrined in the constitution, to respect the national ideals and institutions and the symbols of national sovereignty and unity – The National flag and National Anthem.
- ii) To cherish and follow the noble ideals which inspired our national struggle for freedom. In our struggle for attaining freedom from the clutches of British imperialism, we were guided by a lot of ideals of liberty, equality, unity, justice, fraternity, brotherhood, peace and non-violence. It is the constitutional duty of all citizens to respect and follow these and other such values of our freedom struggle.
- iii) To uphold and protect the sovereignty, Unity and Integrity of India. State protects and enforces the rights and freedom of the people. Consequently, it becomes the supreme duty of the people to preserve, protect and defend the sovereignty, unity and integrity of the people.
- iv) To defend the country and render national service when called upon to do so. Defending the motherland and rendering national service is a sacred thing and duty of every citizen of India.
- v) To promote harmony and the spirit of common brotherhood, amongst all the people of India transcending religious, linguistic and regional or sectional diversities, to renounce practices derogatory to the dignity of women. Indian society is a society characterized by religious, cultural, linguistic and regional diversities, with of course, an inner emotional and psychological unity. The greatest need of the society is to preserve and strengthen the unity in diversity. The constitution lays down that, it is the fundamental duty of all the people to preserve and strengthen the unity and integrity of the nation. To give a due and just place to the Indian women, who in the past have suffered because of several unhealthy and evil social practices.
- vi) To value and preserve the rich heritage of our composite culture. India has a very rich cultural heritage. However, in the era of European imperialism, the people got drawn towards the materialistic glamour of the Western Culture. In order to make the new generation of Indians conscious of India’s past glory and

rich heritage the constitution lays down the fundamental duty of all citizens to value, preserve and protect our composite culture.

- vii) To protect and improve the natural environment including forests, lakes, rivers and wild life and to have compassion for living creatures. Realising fully the need for protect our natural environment from pollution and undesirable exploitation, the constitution makes it a fundamental duty of the citizens to protect and improve the natural environment. The interdependence of the natural environment and the social environment is an eternal truth. The preservation of a healthy and progressive social environment makes it essential for us to realize the importance of natural environment.
- viii) To develop scientific temper, humanism and the spirit of inquiry and reform. For eradicating the prevailing evil practices, customs and traditions it is essential that people should develop a scientific temper. They must develop a rational attitude, a love for learning, and use their talents and resources for reforming and developing the society. To realize, respect and follow human values is the supreme human duty.
- ix) To safeguard public property and to abjure violence. The increasing recourse to violent means, involving the destruction of public property in the post independence era, has made it essential for us to realize the utility of it and to safeguard it.
- x) To strive towards excellence in all spheres of individual and collective activity so that the national constantly rises to higher level of endeavor and achievement. No society, no country and no state can progress without the willing, dedicated and devoted efforts of the people. The people must be motivated to develop their faculties and achieve excellence in all spheres of human activity.
- xi) Duty of the parents to provide education to their children. Article 51A was amended by 86th constitutional amendment act 2002, which incorporated right to education as fundamental right. By this amendment it was made a fundamental duties of parents to send their children to schools.

1.10. The Directive Principles of State Policy

Part IV of the Indian Constitution deals with the Directive Principles. The idea of including Directive Principles into the constitution has been borrowed from Irish Constitution.

The Directive Principles are the '**Instruments of Instructions**' to both central and state governments.

Man, living in society is quarrelsome by nature i.e., even though he lives in society, he can't give up his own way of feeling, thinking etc., This always results in conflicts. Hence to ensure peace and order in the society we require certain rules and regulations. But these rules and regulations don't come by themselves. There must be an agency for making necessary rules and regulations, another for enforcing those rules and regulation and one more organization to punish the offenders. These three agencies together in a

form of an organisation will be known as Government. This Government functions as an '*Agent of the State*'. **So Directive principles are an instruction to the Government to follow certain principles while framing and implementing policies and laws.**

Whenever some Government comes into power – they will not be free to do whatever they like. They have to follow certain instructions. Those instructions are known as 'Directive Principles'. Hence Directive Principles are the set of instructions to all the future Government and the Government agencies to follow certain principles, while ruling and while making law. This is only a 'Code of Conduct' and place an 'ideal' before the Government. They are not enforceable by Courts. People cannot move to court to get these enforced. Part IV of the Constitution manifests the aims and objectives of the constitution. It details the objectives contained in the Preamble of the Constitution. These are the national objectives which every government is supposed to secure and functions as a leading light and gives proper direction to the task of the government. There are 16 articles (From Articles 36 to Article 51) in the Indian Constitution, which deals with the Directive Principles.

For the convenience of the study, the Directive Principles are divided into 3 categories. They are:

- ✎ The Gandhian Principles
- ✎ The Socialist Principles
- ✎ The Liberal or General Principles

1.10.a. The Gandhian Principles: The Gandhian Principles include the following.

The State should take steps to:

- To organise Village Panchayat as Units of Self-government
- To promote Cottage Industries on an individual and co-operative basis in rural areas.
- To promote educational and economic interests of the weaker sections of the people especially SC & STs and protect them from social injustice and all forms of exploitation.
- Prohibition of intoxication drinks and of drugs that are injurious to health.
- To organize agriculture and animal husbandry on scientific basis and prohibiting the cow slaughter.

These principles aim at achievement of a welfare society on the lines suggested by Mahatma Gandhi.

1.10.b. The Socialist Principles: Article 38, 39, 41, 42 and 43 deals with this. These Socialist Principles aim at Economic Justice. Some of the Principles are:

State shall try to provide:

- ❖ The state policy should aim at providing adequate means of livelihood to all citizens.
- ❖ To secure the welfare of the people by securing a social order characterized by socio,

economic and political justice.

- ❖ To secure equitable distribution of material resources to the community with a view to ensure common good.
- ❖ The Economic system should avoid concentration of wealth by few people.
- ❖ The Natural resources should be utilised to serve the common goal.
- ❖ There shall be equal pay for equal work for both men and women.
- ❖ The protection of the strength and health of workers and avoiding circumstances which forces the citizens to take up occupations unsuitable to their age and strength.
- ❖ To protect children and youth from exploitation and moral and material abandonment
- ❖ To secure participation of workers in the management of industries.

1.10.c. The Liberal or the General Principles: The Directive principles mentioned in this category are:

- To protect all monuments of historic interest and national importance.
- To provide, within 10 years from the commencement of the constitution, a free and compulsory education to all children upto the age of 14.
- To have a uniform civil code, which is applicable to the entire country.
- To raise the standard of nutrition and also the health.
- Strive to promote international peace and security.
- To separate Judiciary from the clutches of executive.
- To provide free legal aid to the poor, so that justice is not denied to any citizen because of poverty.
- To protect and improve the environment and to safeguard the forests and wild life of the country.
- To maintain just and honourable relations between nations.

These are the principles laid down by the constitution to every form of the future government.

Through 42nd and 44th amendments five more directive principles are added in part IV. Through 42nd amendment 4 directive principles were added. Namely:

- (a) The state shall direct its policy towards securing for the children opportunities and facilities to develop in a healthy manner and in conditions of freedom and dignity and for protecting children and youth from exploitation and against material abandonment.
- (b) The state shall secure that the operation of the legal system promotes justice and provide free legal aid to poor and other disabled citizens.
- (c) The state shall secure the participation of workers in the management of undertakings, establishments or other organizations engaged in any industry.
- (d) The state shall endeavour to protect and improve the environment and to safeguard the forests and wild life of the country.

Through 44th amendment one more directive principle was added. It reads “the state shall strive to minimize the inequalities in income and try to eliminate inequalities in status, facilities and opportunities , not only amongst individuals but also amongst groups of people, residing in different areas or engaged in different vocations”.

Implementation of Directive Principles:

Even though directive principles are non-justifiable in nature and no person could approach the court for implementing these directive principles, the government has not neglected them. Instead, several initiatives are taken by the government to implement and incorporate them in its day to day working. Some of them are:

- To prevent the concentration of land holdings in the hands of few, Zamindari system was abolished.
- A three tier local self government system namely Zilla Panchayat, Taluk Panchayat and Village Panchayats have been organized and given adequate powers and authority.
- Special legislations are passed to protect the life and opportunities of women and children.
- Various reservation schemes are introduced to protect the interests of SC's and ST's and other economically backward classes.
- Various labour welfare legislation schemes are introduced to protect the life, job opportunities of the workers and ensuring them a better social security measures and working conditions.
- To develop small scale industries, cottage industries and promotion of agriculture and animal husbandry, various schemes are introduced.
- Several steps have been initiated to achieve free and compulsory education to all children between 6 to 14.
- Various rural development schemes and self –employment schemes aim at promoting the quality of life of the people.
- For keeping control over industries and making them service oriented, state has nationalized several banks, life insurance and major industries.

1.11. THE NEED TO BALANCE BETWEEN FUNDAMENTAL RIGHTS AND DIRECTIVE PRINCIPLES

The fundamental rights and the Directive Principles, together, form the core of the constitution. Both aims at the 'Welfare State'.

But two major differences between Fundamental Rights and the Directive Principles are:

1. Fundamental Rights are Justiciable – In any case Fundamental Rights are violated, we can move the courts of law for the restoration of the rights but Directive Principles are non-justiciable – If the states takes no steps to implement Directive Principles, no individual can force the state to implement the Directive Principles.

2. Fundamental Rights are the guarantees to the individuals. It prohibits the state from interfering in the opportunities given to the individuals from the constitution itself. But Directive Principles are the positive instructions to the government to promote certain social and economic objectives. These objectives includes – providing better standard of living, education, equal pay for equal work, equitable distribution of wealth, etc..

In spite of the above said differences both constitute the 'true conscience' of the constitution. There is some close co-ordination between two in achieving the common goal. As quoted by the Justices Hegde and Mukherjee: "The Fundamental Rights and the Directive principles constitute the 'Conscience' of our constitution. The purpose of the fundamental rights is to create an egalitarian society, to free all citizens from coercion or restrictions by society and to make liberty available for all. The purpose of the Directive Principles is to fix certain social and economic goals for immediate attainment by bringing about a non-violent social revolution. Through such a social revolution the constitution seeks to fulfill the basic needs of the common man and to change the structure of our society. It aims at making the Indian masses free in the positive sense. Without faithfully implementing the Directive Principles, it is not possible to achieve the 'Welfare State' contemplated by the Constitution"

Hence to conclude- Directive Principles cannot be ignored on non-justiciable basis saying it is only a 'Pious Wishes'. While making an evaluation of the implementation of Directive Principles, we should remember that our governments have to function under several limitations. They have to function under a circumstance which makes it difficult, to implement all the Directive Principles. Some of such limitations are: Scarcity of funds is a major hindrance. A vast majority of our people are illiterate. While cottage industries have to be encouraged, we cannot ignore the large scale and heavy industries. We definitely need them to find employment for the every growing population and for the rapid economic development of the country. To have a 'Uniform civil Code' for the whole country is impossible because it is very difficult to carry different communities and different sections of the people with the uniform law. With this the religious and the communal sentiments will be hurt and finally the 'corruption' at various levels also becomes a major obstacle.

Hence, the constitution aims at socio-economic democracy, through Directive Principles. 'Goals' have been set. It now depends on the government as to how far it will be successful in achieving these goals.

1.12. Amendment and Review of the Constitution

Amendment of the Constitution of India is the process of making changes to the Indian constitution. Such changes are made by the Parliament of India. They must be approved by a super-majority in each house of Parliament, and certain amendments must also be ratified by the states. The procedure of amendment is laid out in Part XX, Article 368 of the constitution. Till date 94 amendments have taken place.

Modes of Amending Constitution

For the purpose of amendment, the various Articles of the Constitution are divided into three categories. The first category is out of the purview of Article 368 whereas the other two are a part and parcel of the said Article. The various categories of amendment to the Constitution can be summarized as follows:

1.12.a. Amendment by Simple Majority

As the name suggests, an article can be amended in the same way by the Parliament as an ordinary law is passed which requires simple majority. The amendment contemplated under Articles 5-11 (Citizenship), 169 (Abolition or creation of Legislative Councils in States) and 239-A (Creation of local Legislatures or Council of Ministers or both from certain Union Territories) of the Indian Constitution can be made by simple majority. For amending these, a bill can be introduced in either house of parliament, which becomes a law when passed by both houses individually by simple majorities of their members present and voting and signed by the President of India. These Articles are specifically excluded from the purview of the procedure prescribed under Article 368.

1.12.b. Amendment by Special Majority

Articles which can be amended by special majority are laid down in Article 368. This article states that “an amendment of the Constitution may be initiated only by the introduction of a bill for the purpose of either House of Parliament and when the bill is passed in each House by a majority of the total membership of that House and by a majority of not less than two-thirds of the members of that House present and voting, it shall be presented to the President who shall give his assent to the Bill and thereupon the Constitution shall stand amended in accordance with terms of Bill”. All amendments, except those referred to above come within this category and must be affected by a majority of total membership of each House of Parliament as well as 2/3rd of the members present and voting.

1.12.c. Amendment by Special Majority and Ratification by States

Amendment to certain Articles requires special majority as well as ratification by states. Provision to Article 368 lays down the said rule. Ratification by states means that there has to be a resolution to that effect by one-half of the state legislatures. These articles include Article 54 (Election of President), 55 (Manner of election of President), 73 (Extent of executive power of the Union), 162 (Extent of executive power of State), 124-147 (The Union Judiciary), 214-231 (The High Courts in the States), 241 (High Courts for Union Territories), 245-255 (Distribution of Legislative powers) and Article 368 (power of the Parliament to amend the Constitution and procedure) itself.

1.13. Constitution Review Commission

In February 2000, the Government of India set up the National Commission to Review

the working of the constitution (NCRWC) of India. It was headed by the former Chief Justice of India, Justice Venkatachaliah. It had 11 members, which includes prominent judges, legal experts, constitutional and parliamentary experts, politicians, diplomats and media representatives and one bureaucrat-turned politician. This commission is also popularly known as Constitution Review Commission.

This commission reviews, analyze and suggest amendments in the Constitution of India in the light of the past experience with the working of its provisions. Its objective was to ensure that the principles of democracy is truly practiced and also to suggest the ways and means for improving the quality of our institutions and for eliminating certain features of the constitution.

This Commission submitted a detailed report of 31st March 2002. Some of the important recommendations are as follows:

- To include the freedom of press, right to information, right to elementary education, the right to privacy and the right against torture, in the list of Fundamental rights.
- Preventive detention of any person should not be more than 6 months under any circumstances.
- Greater decentralization in centre-state relations.
- Creation of National Judicial Commission for overseeing the conduct of the Judges of the Supreme Court and High Courts.
- Prime Minister should be elected by the Lok Sabha, and the Chief Minister of a State by the concerned State Vidhana Sabha.
- A person with criminal charges framed against him by a court should be disqualified from contesting an election.
- Setting up of autonomous personnel boards for assisting the high level political authorities in making key decisions.
- Not to allow a candidate from contesting elections from more than one constituency.

These are some of the recommendations of the Constitution Review Commission.

1.14. Summary:

Nehru report is regarded as the Blue Print of Indian Constitution. The Constituent Assembly, formulated on 8th December 1946, was headed by Dr. Rajendra Prasad. Pandit Jawahar Lal Nehru presented the 'Objective Resolution' on 18th December 1946 in this Constituent Assembly. The Drafting Committee was formed on 29th August 1947 was headed by Dr. B. R. Ambedkar. The Constitution of India, begins with the Preamble. The Core, the objectives and purpose of India as an independent state are proclaimed in Preamble. Through which, India declares itself to be a sovereign, socialist, secular and democratic republic country and equal opportunities for all. The constitution of India was adopted on 26th November 1949. Every citizen of India enjoys 6 fundamental rights and provision of writs are designed to protect fundamental rights. Along with

fundamental rights, every citizen is obliged to follow certain duties as a citizen of India – known as Fundamental Duties. There are 11 non-justifiable fundamental duties. Directive principles of the state policies are included in the Constitution, which guides government with guidelines to run the government. The Constitution of India is a unique combination of both flexibility and rigidity. National Review Commission was established in February 2000, to check the working of Constitution of India.

1.15. Self Assessment Questions:

1. Populations, _____, Government and _____ are the elements of State.
2. _____ is 'an agent of the State'.
3. _____ is known as 'Blue Print of the Indian Constitution'
4. The Interim Government was formulated on _____.
5. Who was elected as president of Constituent Assembly?
6. _____ propounds the objectives and the purpose of the State.
7. _____, _____ and _____ terms were added to our Preamble through 42nd amendment.
8. The Constitution of India comprises of _____ Articles, _____ Schedules and _____ Parts.
9. A state founded on the basis of religious freedom is known as _____.
10. Right to Property was removed from the fundamental rights list through _____ amendment.
11. Which article ensures equality before law?
12. Which article abolishes untouchability?
13. Name the article which says right to education?
14. How many fundamental duties are included in the Constitution of India?
15. _____ are the instruments of instruction for the Government.

1.16. Terminal Questions:**Answer the following in a word or sentence each. Each question carries 1 mark.**

1. Define Society.
2. Name the elements of state.
3. What do you mean by secular state?
4. Who was the chairman of drafting committee of Indian constitution?
5. How many articles, schedules and parts are there in Indian Constitution?
6. What is Universal Adult Franchise?
7. What is democratic state?
8. What are Writs?
9. Which part of the Indian Constitution deals with Fundamental Rights?
10. Which article of Indian Constitution abolishes untouchability?
11. Which fundamental duty was included in the list in the year 2002.
12. Define Directive Principles.
13. How many amendments have taken place to Constitution of India so far?
14. When was Constitution Review Committee established?
15. Name the terms included in the Preamble through 42nd amendment.

Answer the following in a paragraph each. Each question carries 5 marks

1. Write a note on the objective resolutions
2. State the Preamble of Constitution of India.
3. Briefly explain about the 'Writ' powers?
4. Mention any five fundamental duties?
5. State the Gandhian Principles of directive principles?
6. Critically examine the amendment procedure of Constitution?
7. State the recommendations of Constitution Review Commission?

Answer the following descriptively. Each question carries 14 marks.

1. Explain the salient features of the Indian constitution.
2. Examine the characteristics of the constituent assembly of India.
3. The preamble is 'soul of the Indian constitution'. Examine.
4. Explain the various fundamental rights as enjoyed by the citizens of India.
5. Describe the fundamental duties as enumerated in the constitution of India.
6. What is the nature of Directive Principles of state policy?

1.17 Answers**Answer for 1 mark questions**

1. Refer sub section 1.3
2. Refer sub section 1.3
3. Refer sub section 1.7.f.
4. Refer sub section 1.5
5. Refer sub section 1.5
6. Refer sub section 1.7.g.

7. Refer sub section 1.7.e.
8. Refer sub section 1.7.k.
9. Refer sub section 1.7.k.
10. Refer sub section 1.8.1
11. Refer sub section 1.9.
12. Refer sub section 1.10.
13. Refer sub section 1.7.a.
14. Refer sub section 1.13
15. Refer sub section 1.7.d.

Answer for 5 marks questions

1. Refer sub section 1.5
2. Refer sub section 1.6
3. Refer sub section 1.8.6.
4. Refer sub section 1.9
5. Refer sub section 1.10.a.
6. Refer sub section 1.12.a,b,c.
7. Refer sub section 1.13.

Answer for 14 marks questions

1. Refer section 1.7
2. Refer section 1.4
3. Refer section 1.6
4. Refer section 1.8
5. Refer section 1.9
6. Refer section 1.10 and 1.11

Module-2

Union Legislature and State Legislature

Structure

- 2.1 Introduction
- 2.2 Learning Objectives
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- 2.5 Speaker
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- 2.18. Functions of Various Committees of the Lok Sabha
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- 2.22 Answers

2.1 Introduction:

Indian Parliament is based on Bicameral legislature. It consists of two houses namely: Lok Sabha (Lower House of the Indian Parliament) and Rajya Sabha (The Upper House of the Indian Parliament). Along with these two houses, Indian Parliament also includes the 'President', who is not a member of either the houses but an integral part of the Union Legislature. Hence if any bill has to become a law, it has to pass through all these three stages. i.e., Lok Sabha, Rajya Sabha and the President.

2.2 Learning Objectives:

This Module deals with:

- The Lower House of the Union Parliament – Lok Sabha, details of it.

- The Upper House of the Union Parliament – Rajya Sabha, details of it.
- Speaker of Lok Sabha.
- State Legislature – State Legislative Assembly and State Legislative Council.
- Law Making procedure in India.
- Committee system of the Parliament.

2.3 LOK SABHA (HOUSE OF THE PEOPLE)

The **Lok Sabha** (also titled the **House of the People**, by the Constitution) is the directly elected lower house of the Parliament of India. As of 2009 there have been fifteen Lok Sabhas elected by the people of India. It is a powerful, democratic and fully representative house of the union parliament.

2.3.a Composition:

The Constitution limits the Lok Sabha to a maximum of 552 members, including not more than 20 members representing the Union Territories, and two members to represent the Anglo-Indian community (if the President feels that that community is not adequately represented). The Lok Sabha has currently 545 members which includes 543 elected members and two appointed members.

The total elective membership is distributed among the States in such a way that the ratio between the number of seats allotted to each State and the population of the State, so far as practicable, and the same for all States. The number is divided among the 28 States and the 7 Union Territories as follows:

States:

- (1) Andhra Pradesh-- 42
- (2) Arunachal Pradesh --2
- (3) Assam --14
- (4) Bihar-- 40
- (5) Chhattisgarh - 11
- (6) Goa-- 2
- (7) Gujarat-- 26
- (8) Haryana-- 10
- (9) Himachal Pradesh --4
- (10) Jammu & Kashmir --6
- (11) Jharkhand - 14
- (12) Karnataka --28
- (13) Kerala --20
- (14) Madhya Pradesh --29
- (15) Maharashtra --48
- (16) Manipur --2
- (17) Meghalaya --2
- (18) Mizoram --1

- (19) Nagaland --1
- (20) Orissa --21
- (21) Punjab --13
- (22) Rajasthan --25
- (23) Sikkim --1
- (24) Tamil Nadu --39
- (25) Tripura --2
- (26) Uttar Pradesh --80
- (27) Uttarakhand - 5
- (28) West Bengal --42

Union Territories

- (1) Andaman & Nicobar Islands --1
- (2) Chandigarh --1
- (3) Dadra & Nagar Haveli --1
- (4) Daman & Diu --1
- (5) Delhi --7
- (6) Lakshadweep --1
- (7) Pondicherry --1

Anglo-Indians (if nominated 2 by the President under Article 331 of the Constitution)

2.3.b. Election of the members: The Members of Lok Sabha are elected on the basis of:

- **Universal adult franchisee:** According to which any citizen who has attained 18 years or more than that, can cast his vote in the election and select their representatives. (Previously the minimum age to vote was 21 years, but it was reduced to 18 years according to 62nd amendment in the year 1988).
- **Secret ballot:** No one knows who has voted in favour of which candidate. Secrecy will be maintained.
- **Single Member Constituency:** The country, on the basis of population has been divided into various constituencies (usually population of one constituency is between 5 lakh to 7.5 lakh). Only one member can be elected from each constituency. Karnataka has 28 Lok Sabha Constituencies, whereas Uttar Pradesh has 80 Lok Sabha Constituencies.
- **One man one vote** is the policy followed.
- **Direct Election:** Almost all members of Lok Sabha are directly elected by the people.

2.3.c. QUALIFICATIONS:

- I) He must be a citizen of India
- II) He must be minimum 25 years of age
- III) He should not hold any office of profit either under the central or the state government

or local self government.

IV) He should be recognized as a voter in any one of the constituencies

V) No member can be a member of both houses at the same time.

2.3.d TENURE:

Lok Sabha, unless dissolved, continues for five years from the date appointed for its first meeting and the expiration of the period of five years operates as dissolution of the House. However, while Proclamation of Emergency is in operation, this period may be extended by Parliament by law for a period not exceeding one year at a time and not extending, in any case, beyond a period of six months after the proclamation ceased to operate.

The Constitution of India came into force on January 26, 1950. The first general elections under the new Constitution were held during the year 1951-52 and the first elected Parliament came into being in April, 1952, the Second Lok Sabha in April, 1957, the Third Lok Sabha in April, 1962, the Fourth Lok Sabha in March, 1967, the Fifth Lok Sabha in March, 1971, the Sixth Lok Sabha in March, 1977, the Seventh Lok Sabha in January, 1980, the Eighth Lok Sabha in December, 1984, the Ninth Lok Sabha in December, 1989, the Tenth Lok Sabha in June, 1991, the Eleventh Lok Sabha in May, 1996, the Twelfth Lok Sabha in March, 1998, the Thirteenth Lok Sabha in October, 1999, the Fourteenth Lok Sabha in May, 2004 and the Fifteenth Lok Sabha in May, 2009.

2.3.e. QUORUM: 10% or 1/10th of members of the house should be present in order to carry out the proceedings of the house. It is 55 at present.

2.3.f. SESSION: Lok Sabha should meet atleast twice a year. The time gap between one meeting and the other meeting should not be more than 6 months. However the President can call emergency meetings at any time.

At present Lok Sabha conducts three sessions - Budget session (Feb to May); Monsoon session (June-Sep); Winter session (Oct-Jan).

Any member absent for these sessions for a period of 6 months or more than 6 months without prior permission of the President will be removed from office.

2.3.g. Time of Sittings

On normal business days, the Lok Sabha assembles from 11 a.m. to 1 Prime Minister, and again from 2 Prime Minister to 6 Prime Minister. The first hour of every sitting is called the *Question Hour*, during which questions posed by members may be assigned to specific government ministries, to be answered at a fixed date in future. On some days the sittings are continuously held without observing lunch break and are also extended beyond 6 Prime Minister depending upon the business before the House. Lok Sabha does not ordinarily sit on Saturdays and Sundays and other closed holidays.

2.3.h. Commencement of a Sitting

At the time fixed for the commencement of a sitting, the Marshal of the House after ascertaining that 55 members are present in the House, which includes the Speaker is a number, required to form the quorum, announces *Hon'ble Members, Hon'ble the Speaker*. The Speaker then reaches his seat from his Chamber and the members rise in their seats. After bowing or doing *namaskar* with folded hands to all sides of the House which is reciprocated by members bowing or folding hands towards the Chair, the Speaker takes his seat. Thereafter the members take their seats and the business of the House starts. Before the business enters in the order paper is taken up, a new member who has not yet made and subscribed an oath or affirmation does so. In case of death of a sitting or an ex-member or a leading personality, obituary references are made and this is also taken up before Questions.

2.3.i. Question Hour

The first hour of every sitting of Lok Sabha is called the Question hour. Asking questions in Parliament is the free and unfettered right of members. It is during the Question hour that they may ask questions on different aspects of administration and Government policy in the national as well as international spheres. Every Minister whose turn is to answer to questions has to stand up and answer for his Ministry's acts of omission or commission.

Questions are of three types - Starred, Unstarred and Short Notice. A Starred Question is one to which a member desires an oral answer in the House and which is distinguished by an asterisk mark. An unstarred Question is one which is not called for oral answer in the house and on which no supplementary questions can consequently be asked. An answer to such a question is given in writing. Minimum period of notice for starred/unstarred question is 10 clear days.

If the questions given notice of are admitted by the Speaker, they are listed and printed for answer on the dates allotted to the Ministries to which the subject matter of the question pertains.

The normal period of notice does not apply to Short Notice Questions which relate to matters of urgent public importance. However, a Short Notice Question may only be answered on short notice if so permitted by the Speaker and the Minister concerned is prepared to answer it at shorter notice. A Short Notice Question is taken up for answer immediately after the Question Hour.

2.3.j. Business after Question Hour

After the Question Hour, the House takes up miscellaneous items of work before proceeding to the main business of the day. These may consist of one or more of the following:-

Adjournment Motions, Questions involving breaches of Privileges, Papers to be laid on the Table, Communication of any messages from Rajya Sabha, Intimations regarding

President's assent to Bills, Calling Attention Notices, Matters under Rule 377, Presentation of Reports of Parliamentary Committee, Presentation of Petitions, - miscellaneous statements by Ministers, Motions regarding elections to Committees, Bills to be withdrawn or introduced.

2.3.k. Main Business

The main business of the day may be consideration of a Bill or financial business or consideration of a resolution or a motion.

2.3.l. PRESIDING OFFICER: Speaker is the chairman and the presiding officer of Lok Sabha. Along with the Speaker, one Deputy Speaker will be there in Lok Sabha. Mrs. Meria Kumari is the present speaker and Kariya Munda is the present deputy speaker. The conduct of business in Lok Sabha is the responsibility of the Speaker. In the absence of Speaker, the Deputy Speaker is in charge of conduct of business.

2.3.m. LOWANCES:

- i) A member of Lok Sabha gets a salary of Rs.50,000/- per month
- ii) Constituency and office allowances Rs. 20,000. Now both those tax-free allowances have been raised to Rs. 25,000 a month.
- iii) Air fare- 40 times from their constituency to New Delhi.
- iv) Contingency fund-Rs.10,000/- per month
- v) Travelling- Rs.13/- per kilometer (by road)
- vi) Railway- unlimited travel in 1st class air-condition compartment
- vii) Telephone-1,00,000 free calls per annum (two landlines – one in their home constituency and another in New Delhi)
- viii) 4000 kilo liters of water in a year
- ix) Free electricity of 50,000 units per year

2.4 POWERS AND FUNCTIONS OF LOK SABHA

2.4.a. LEGISLATIVE OR LAW MAKING FUNCTIONS:

Law making is the most important function of the house. Being comprised of the members who are directly elected by the people, Lok Sabha has an immense power in law making. It makes laws on union list items and on concurrent list items. In theory, the task of law making is a collective function of Lok Sabha, Rajya Sabha and the President. But in reality the law making function of Rajya Sabha is negligible and the President is only a symbolic one.

Hence, with respect to law making, Lok Sabha enjoys more power. It is free to make any laws and to amend the existing one. But there are 3 legal constraints to this:

- The limited powers of Rajya Sabha
- The veto power of the President
- The constitution

Any bill (other than the Money Bill) approved by Lok Sabha will be sent to Rajya Sabha for

its approval. In that case Rajya Sabha can withhold that bill for 6 months. During these 6 months it can have any kind of discussion on the bill and suggest changes and send it back to Lok Sabha for reconsideration. But it is left to the discretion of Lok Sabha to accept those changes or not. If Rajya Sabha delays its approval for more than 6 months, then it is deemed as approved by Rajya Sabha too, then it will be sent to President for the final approval. If Rajya Sabha rejects the bill or the period of 6 months elapses without any action by Rajya Sabha, or the Lok Sabha doesnot accept the recommendations made by the members of the Rajya Sabha, it results in a deadlock. This is resolved by a joint session of both Houses, presided over by the Speaker of the Lok Sabha and decided by a simple majority. The will of the Lok Sabha normally prevails in these matters, as its strength is more than double that of the Rajya Sabha.

The bill approved by both the houses of the parliament cannot become law unless the President approves it. When it comes for the approval, the President might approve it or may send it back for reconsideration. He can even reject a bill by exercising his veto power. But till now it has never been used so effectively.

Any Law made by Legislature must be within the framework of the constitution. If not the Supreme Court may declare such Laws as '*Ultra Vires*'.

2.4.b. CONTROL OVER THE EXECUTIVES:

The Lok Sabha exercises complete or direct control over the executive. Lok Sabha exercises this power through different means like asking questions, discussions, etc. The members of Lok Sabha can obtain necessary information from the government from time to time. The concerned ministers are required to provide satisfactory answers and explanations for the questions posed to them by the members. The government is under obligations to provide the demanded information. The cabinet is responsible to the Lok Sabha. If the cabinet fails to fulfill its responsibilities in a satisfactory manner, then Lok Sabha can move the '**no confidence motion**' and will dissolve the government. So the government will remain in power as long as they enjoy the confidence of Lok Sabha.

2.4.c. CONTROL OVER FINANCE: The Lok Sabha has an absolute control over the finance and the income and expenditure of the nation. Hence Lok Sabha is called as the "Purse of the Nation".

Financial bills can be introduced only in Lok Sabha. It is Lok Sabha, which decides from which sources, and how much money should be raised. It not only provides money for the maintenance of the government but also checks how the allotted money has been spent.

Only this house has the powers to give consent to the annual budget. Every year in the month of February, the finance minister presents the budget in the Lok Sabha. After the detailed discussions on budget, the house can either agree or reject. Usually, the house gives its consent to the budget with or without amendments. If Lok Sabha rejects the

budget, the government has to resign because without money no government could be run.

Once the financial bill is approved in Lok Sabha, it will be sent to Rajya Sabha for the approval. Rajya Sabha may delay its approval only for 14 days in case of Budget.

2.4.d. REDRESSAL OF PUBLIC GRIEVANCES:

Lok Sabha comprises of ministers who are directly elected by the people. Hence these ministers represents their people. The responsibility of bringing the problems, faced by the people, to the notice of the government is the main job of a minister. 'Question hour' in the session provides an opportunity for this. The ministers can raise the questions and may obtain answers for it. The government has committed the dereliction of duty, the members are allowed to ask questions and to criticize the government, and they can check that the government works in the interest of the people.

2.4.e. ELECTORAL FUNCTIONS:

The elected members of Lok Sabha take part in the election of the President and the Vice President of India.

2.4.f. OTHER FUNCTIONS:

- i) Impeachment of the President
- ii) Proclamation of emergency.
- iii) Approval of ordinances issued by the President.
- iv) Motions of no confidence against the government can be introduced and passed only in the Lok Sabha. If passed by a majority vote, the Prime Minister and the Council of Ministers resign collectively. The Rajya Sabha has no power over such a motion, and hence no real power over the executive. However, the Prime Minister may threaten the dissolution of the Lok Sabha and recommend this to the President, forcing an untimely general election. The President normally accepts this recommendation unless otherwise convinced that the Lok Sabha might recommend a new Prime Minister by a majority vote. Thus, both the executive and the legislature in India have checks and balances over each other.
- v) Equal Powers with the Rajya Sabha in initiating and passing a motion for the impeachment of the judges of the Supreme Court and the state High Courts (by a majority of the membership of the House and at least two-third majority of the members present and voting).
- vi) Equal Powers with the Rajya Sabha in initiating and passing a resolution declaring war or national emergency (by two-thirds majority) or constitutional emergency (by simple majority) in a state.

2.5 Speaker

Speaker is the presiding officer of Lok Sabha (he will chair the sessions) and he enjoys a

status equal to the Chief Justice of India. He is the most powerful man in Lok Sabha. It is an office of great dignity. G. V. Mavlankar was the first speaker of the first Lok Sabha.

2.5.a. Election:

The members of Lok Sabha among themselves select/elect a person as Speaker. He may be a member/ non-member of the house. He will lose all his party relationship soon he is elected as Speaker. One Deputy Speaker will be there in the house to take care of the sessions in the absence of Speaker. Mrs. Meira Kumari is the present speaker and Mr. Kariya Munda is the present deputy speaker of the House.

2.5.b. Qualification:

There is no formal qualification for the office of the speaker. Any sitting member of the Lok Sabha can be elected as the Speaker by the House. The qualifications essential for membership of the Lok Sabha are also essential qualifications for the office of the Speaker. However only an experienced and popular member is always elected to this position.

2.5.c. Removal:

- (a) By voluntarily submitting resignation to Deputy Speaker.
- (b) By passing a simple resolution in Lok Sabha supported by 2/3rd majority (in that case 14 days prior notice will be given to the Speaker and removed from the office)

2.5.d. Term:

The term of the Speaker is little more than that of Lok Sabha. On the dissolution of Lok Sabha, the Speaker continues his office until the new Lok Sabha is constituted and a new Speaker is elected.

In the absence of Speaker, Deputy Speaker will preside over the proceedings of the house and in the absence of both Speaker and Deputy Speaker; any other senior member of Lok Sabha will preside over the proceedings of the house.

The salary and allowance of Speaker and Deputy Speaker are determined by the parliament and they will be paid from 'Consolidated Fund of India'.

2.6. Powers and Functions of Lok Sabha

- 1. He presides over the meetings of the house:-** All the sessions of Lok Sabha have to be carried out under the chairmanship of the Speaker. In the absence of the Speaker, Deputy Speaker will preside over the proceedings of the house. Without Speaker or Deputy Speaker presiding the sessions, no proceedings of the house could be carried out.
- 2. To maintain discipline in the Lok Sabha:-** Speaker must ensure discipline and decorum of the house. He must ensure that no member of Lok Sabha uses obscene or slang language. If any member disobeys the order of speaker, that

member may be asked to leave the house or the speaker may dismiss them or if it is inevitable the speaker may direct the Marshalls to physically remove that particular member.

3. **To fix the agenda of the House:-** It is the responsibility of the Speaker to fix the agenda of the house, the subject on which discussions to be held. While fixing the agenda, the speaker will consult the other committees like Business Advisory Committee, Rules and Procedures committee and Financial Committee
4. **Permission to members to ask questions:-** Speaker will decide, which member will speak first and it is the speaker who permits a member to ask questions. While one member is asking question, no other member should intervene. There will be Question Hour (11 – 12° clock) and Zero hour (between 12 – 1°clock) provided for this purposes. The members can make use of this time to ask questions and there by bring out the problems faced by the people before the house to find a solution to them.
5. **Power to adjourn the house:-** The speaker may adjourn the house provided (a) No Quorum – if less than minimum number of members to be present to carry out the proceedings, i.e., less than 10%. And (b) on the grounds of disorderly behavior of the members – if the house becomes completely uncontrollable.
6. **Decision about a money bill:-** It is the speaker who will decide which bill is a money bill and which is not. Once the speaker identifies a bill as Money bill- it should be presented only in the Lok Sabha.
7. **To exercise a Casting Vote:-** In case of tie between political parties over a particular issue, Speaker can exercise a Casting Vote. But generally speaker will not vote because he is not a member of the house.
8. **He has to protect the privileges of the members of the house:-** Speaker must ensure that all the members irrespective of their party (Whether they are from ruling party or opposition party), and whether they are elected or selected, should get a fair chance to express their opinion and moreover Speaker must be impartial while discharging his duties. Everyone should be given equal opportunity to ask questions and to find answers.
9. **Selecting the Chairman for different committees:-** Speaker should select the chairman for various committees. For the convenience of administration, various committees have been nominated like Business Advisory Committee, Rules and Procedures committee, Financial Committee etc. Speaker will elect or select the chairman for these committees.
10. **Administrative Functions:-** The speaker has a final control over the Lok Sabha Secretariat. He appoints the employees of the Secretariat, determines the service rules for them and supervises their work. Speaker may make any rules and regulations with regard to the functioning of these secretariat, also their working hours, their roles and responsibilities will be fixed up by the speaker.

2.7 **Rajya Sabha (Council of States)**

Rajya Sabha is the upper house of the Indian Parliament. It is also known as “The council of States”.

The Constituent Assembly, which first met on 9th December 1946, also acted as the Central Legislature till 1950, when it was converted as ‘Provisional Parliament’. During this period, the Central Legislature which was known as Constituent Assembly (Legislative) and later Provisional Parliament was unicameral till the first elections were held in 1952.

Extensive debate took place in the Constituent Assembly regarding the utility or otherwise of a Second Chamber in Independent India and ultimately, it was decided to have a bicameral legislature for independent India mainly because a federal system was considered to be the most feasible form of Government for such a vast country with immense diversities. A single directly elected House, in fact, was considered inadequate to meet the challenges before free India. A second chamber known as the ‘Council of States’, therefore, was created with altogether different composition and method of election from that of the directly elected House of the People. It was conceived as another Chamber, with smaller membership than the Lok Sabha (House of the People). It was meant to be the federal chamber *i.e.*, a House elected by the elected members of Assemblies of the States and two Union Territories in which States were not given equal representation.

2.7.a. **COMPOSITION:**

The constituent assembly fixes the maximum strength of Rajya Sabha as 250. Out of this 12 members will be nominated by the President. These nominated members must have special talents in the field of art, cinema, literature, social science, education and science etc. and the remaining 238 members will be elected by the elected members of State Legislative Assembly working in the 28 states of India. The number of members elected by each state legislative assembly differs from state to state. It will be determined in proportions to the population of the state. (Karnataka Vidhana Sabha elects 12 members and Uttar Pradesh elects 31 members to Rajya Sabha). Four members from Union Territories {3 from Delhi and 1 from Pondicherry. Other Union Territories are not represented in Rajya Sabha}.

The present strength of Rajya Sabha, however, is 245, out of which 233 are representatives of the States and Union territories of Delhi and Pondicherry and 12 are nominated by the President.

2.7.b. **QUALIFICATION:**

- I) He must be a citizen of India
- II) Must have attained the age of 30 years
- III) Should not hold office of profit under state or central government
- IV) Must possess all other qualifications fixed by the parliament from time to

time

V) Must be recognized as a voter.

No member can be a member of both the houses simultaneously. If any member is absent for the proceedings of the house for 6 months he will be removed from Rajya Sabha.

2.7.c. Disqualifications

Article 102 of the Constitution lays down that a person shall be disqualified for being chosen as, and for being, a member of either House of Parliament –

1. If he holds any office of profit under the Government of India or the Government of any State, other than an office declared by Parliament by law not to disqualify its holder;
2. If he is of unsound mind and stands so declared by a competent court;
3. If he is an undischarged insolvent;
4. If he is not a citizen of India, or has voluntarily acquired the citizenship of a foreign State, or is under any acknowledgement of allegiance or adherence to a foreign State;
5. If he is so disqualified by or under any law made by Parliament.
- 6.

2.7.d. Term:

Rajya Sabha cannot be dissolved by the President like Lok Sabha. Hence Rajya Sabha is known as the 'permanent house'. Its members are elected for a term of 6 years. A special mechanism has been devised according to which 1/3rd members of the house retire once in two years. And elections will be held only for the vacant seats.

Any retired member of the house is eligible to be reelected without any restrictions.

2.7.e. Process for Election/Nomination

2.7.e.(i) Electoral College:

The representatives of the States and of the Union Territories in the Rajya Sabha are elected by the method of indirect election. The representatives of each State and two Union territories are elected by the elected members of the Legislative Assembly of that State and by the members of the Electoral College for that Union Territory, as the case may be, in accordance with the system of proportional representation by means of the single transferable vote. The Electoral College for the National Capital Territory of Delhi consists of the elected members of the Legislative Assembly of Delhi, and that for Pondicherry consists of the elected members of the Pondicherry Legislative Assembly.

2.7.e.(ii) Biennial/Bye-election

The election held to fill a vacancy arising otherwise than by retirement of a member on the expiration of his term of office is called 'Bye-election'. A member elected in a bye-election remains member for the remaining term of the member who had resigned or died or disqualified to be the member of the House under the Tenth Schedule.

2.7.f. Quorum:

10% or 1/10th of the total members must be present. It will be checked at beginning of the meeting.

2.7.g. Salaries and Allowances:

- A member of Rajya Sabha gets a salary of Rs.50,000/- per month
- Constituency and office allowances Rs. 20,000. Now both those tax-free allowances have been raised to Rs. 25,000 a month.
- Air fare- 32 times from their state capital to New Delhi.
- Contingency fund-Rs.10,000/- per month
- Travelling- Rs.13/- per kilometer (by road)
- Railway- unlimited travel in 1st class air-condition compartment
- Telephone-1,00,000 free calls per annum (two landlines – one in their home constituency and another in New Delhi)

Rajya Sabha Members will also get all the other privileges which are enjoyed by the Lok Sabha Members.

2.7.h. Meetings:

Rajya Sabha should meet atleast twice a year. The time gap between one meeting and the other meeting should not be more than 6 months. However the President can call emergency meetings during any time. And in case of any kind of deadlock between Lok Sabha and Rajya Sabha with regard to a particular bill, the President will summon for a joint session. At present Rajya Sabha meets three times in a year along with Lok Sabha sessions.

2.7.i. Chairman and Deputy Chairman:

Vice-President of India (Mohd., Hameed Ansari) will be ex-officio chairman of Rajya Sabha. Members of Rajya Sabha among themselves select one person as deputy chairman. Rehman Khan is the present deputy chairman.

There is also a Panel of Vice-Chairman in Rajya Sabha, the members of which are nominated by the Chairman, Rajya Sabha. In the absence of the Chairman and Deputy Chairman, a member from the Panel of Vice-Chairman presides over the proceedings of the House.

2.8. Functions and Powers:

2.8.a. Legislative Functions

In theory Rajya Sabha enjoys as much powers as Lok Sabha, with respect to making of laws. If a bill has to become law it has to be accepted by both the houses, without the consent of Rajya Sabha no bill can become law. If any dispute arises between Rajya and Lok Sabha, then the President will summon for a joint session of both the houses. But since Lok Sabha has twice the members of Rajya Sabha the destiny of Lok Sabha decides the bill. Only three joint session have been held. The last one was for the passage of the anti-terror law POTA.

Rajya Sabha has right to suggest changes to the bill originating from the Lok Sabha. Rajya Sabha can withhold its consent for a maximum period of 6 months. But in case of financial bill it cannot delay its approval for more than 14 days.

Rajya Sabha passes a resolution by a majority of not less than two-thirds of members present and voting saying that it is "necessary or expedient in the national interest" that Parliament should make a law on a matter enumerated in the State List, Parliament becomes empowered to make a law on the subject specified in the resolution, for the whole or any part of the territory of India. Such a resolution remains in force for a maximum period of one year but this period can be extended by one year at a time by passing a similar resolution further.

2.8.b Financial Function

Rajya Sabha has very little control on financial matters. The money bill can be introduced only in Lok Sabha. After this money bill is passed in Lok Sabha, it is sent to Rajya Sabha for its approval. Rajya Sabha can hold discussions and suggest changes on these bills. But the ultimate decision of accepting or rejecting these changes is left to the discretion of Lok Sabha.

Rajya Sabha can withhold a financial bill maximum for 14 days, even after this if Rajya Sabha fails to give its consent then it will be deemed to have accepted by Rajya Sabha.

2.8.c. Executive Function: Rajya Sabha can hold discussions regarding the policies of the government and has the right to demand and obtain explanations and clarifications from the Cabinet. Rajya Sabha has no direct control over the executive. They can't remove the executive through 'No Confidence Motion'.

2.8.d. Judicial Powers: Rajya Sabha has certain judicial powers. It can conduct investigation on the impeachment moves made against the President and Vice President and the judges of Supreme Court and High Court, etc.

2.8.e. Other Powers: The members of Rajya Sabha take part in the elections of President and Vice-President.

If Rajya Sabha passes a resolution by a majority of not less than two-thirds of the members present and voting declaring that it is necessary or expedient in the national interest to create one or more All India Services common to the Union and the States, Parliament becomes empowered to create by law such services.

If 'President's rule' has been imposed in any state, then the bills concerning to that particular state can be introduced in Rajya Sabha and Rajya Sabha is empowered to make any laws on the subjects mentioned in the state list and for declaring emergency, the consent of Rajya Sabha is also needed.

2.9 Utility of Rajya Sabha

Eventhough Rajya Sabha is a weak house in comparison with Lok Sabha, its place in the constitutional system continues to be important as a revising and helping house of the Union Parliament as well as an institution acting as a link between the union and the states.

The President of India appoints 12 members to Rajya Sabha who are experts in various fields. The services of able and experienced persons are very useful.

Even when Lok Sabha stands dissolved, Rajya Sabha continues to be in existence. It acts as a revising chamber, it plays equal role with Lok Sabha in the process of amendment of the constitution and the election of the President and Vice-President and also exercises some special powers under articles 249 and 312.

Now Rajya Sabha has started giving Prime ministers to the country – Deve Gowda, I.K. Gujral and Dr. Manmohan Singh got elected to Rajya Sabha. Hence, even a Rajya Sabha member can become a Prime Minister.

2.10 State Legislature

Every state has a legislature. Constitution leaves to each state the decision to have a unicameral or bi-cameral legislature. Out of 28 states, 6 states has bi-cameralism legislative system, where legislature comprise of two houses. Where

Upper House	State Legislative Council/Vidhana Parishad
Lower House	State Legislative Assembly/Vidhana Sabha

Those six states are: Andhra Pradesh, Bihar, Jammu and Kashmir, Karnataka, Maharashtra and Uttar Pradesh.

In the remaining 22 states, legislature comprises of only one house – i.e., State Legislative Assembly/Vidhana Sabha. Along with it State Legislative system also includes Governor. The power to establish or to abolish the Upper House (Legislative council) belongs to the Union Parliament.

2.10. (i) State Legislative Assembly/Vidhana Sabha

2.10.a Composition:-

Legislative assembly represents the people of the state. The size of State Legislative

Assembly/ Vidhana Sabha differs from state to state. The size is normally determined on the basis of the area and the population of the state. But the number of members cannot be less than 60 and it cannot be more than 500. The number of representatives varies between 60 to 500 from state to state. For example:- the number of representatives of Legislative Assembly is 403 in Uttar Pradesh and 224 in Karnataka.

But there are few states which have very less population. In that case the total membership can be even less than 60. For example: in Sikkim it is 32, Mizoram it is 40, Goa it is 40.

These members will be directly elected by the people. In these elections certain principles will be followed. They are: -

- Universal Adult Franchise.
- Secret Ballot.
- Single Member Constituencies.
- One man, one vote.

Along with these elected members the Governor of the state is empowered to nominate one or two persons to Legislative Assembly belonging to Anglo Indian Community. No person can be a member of two houses at the same time.

2.10. b Qualification:

Whichever qualifications that are prescribed for the membership of Lok Sabha hold good here also. Some of them are:

- He must be a citizen of India, but may not be from the same state.
- He must have attained the age of 25 years.
- He should not hold any office of profit either under the central govt. or under state govt.
- Must be recognized as a voter in any one of the constituencies.

2.10. c Term:

The usual term of Legislative Assembly is 5 years. During national emergencies it may be extended for one more year. The Governor of the state is empowered to dissolve the Legislative Assembly before the completion of its term on the recommendations of Chief-Minister.

2.10.d Quorum:

10 % of the total membership. It will be checked at the beginning of the session.

2.10.e Presiding Officer:-

All the members of Legislative Assembly among themselves elect one person as the Speaker and another person as Deputy Speaker. The Speaker will preside over all the proceedings of the house. In his absence the Deputy Speaker will preside over the proceedings.

2.11 Powers and Functions of Vidhana Sabha or Legislative Assembly

1. **Legislative Functions or Law Making Functions:** Vidhana Sabha has the power to make any law on the subjects mentioned in the state list. This can also make law on subjects mentioned in the concurrent list, but it shouldn't be in conflict with any law enacted by the union parliament. If it does then the law enacted by the state legislative assembly will be ruled out.

Generally bill will be presented in Vidhana Sabha and once it is accepted with 2/3rd majority, it will be sent to Vidhana Parishad or Legislative council for its approval. In this case Vidhana Parishad or Legislative council can delay its approval only for 3 months. During this time Vidhana Parishad or Legislative council may hold any discussions on the bill and may suggest any changes to the bill and may send it to Vidhana Sabha for reconsideration. But whether to accept those changes or to reject them is left to the discretion of Vidhana Sabha. When Vidhana Sabha re-submits the bill to Vidhana Parishad or Legislative council for the 2nd time, with changes or without changes, Vidhana Parishad or Legislative council can delay its approval only for 1 month this time. After that, even if Vidhana Parishad or Legislative council rejects it, it will be deemed as accepted and will be sent to the Governor for the final approval.

When it comes to the governor for the approval- Governor may sign on his own or he may reserve it for President's signature. Some of the limitations exercised by the Governor are; -

- The governor has the power to reserve some bills passed by the Legislative Assembly to get the acceptance of the President. For ex: - Acquisition of property by the state government or imposing tax on an essential commodity....etc.,
 - Prior permission of the President is required for introducing a few bills. For ex: - imposing restrictions on freedom of trade and commerce.
 - Parliament can make any law on matters mentioned in the state list if Rajya Sabha desires.
 - When emergency is declared in any state, then Legislative assembly cannot make any laws.
2. **Control over Finances:** Like Lok Sabha, Legislative Assembly has the complete control over the financial matters of the state. State financial bill can be introduced only in the Legislative Assembly. After the presentation and discussion of the money bill, the Legislative Assembly must approve this. If Legislative Assembly

rejects it the government has to resign, because without money no government could be run. Once it is accepted in Legislative assembly, the financial bill will be sent to Vidhana Parishad or Legislative Council for its approval. Vidhana Parishad or Legislative council may delay its approval only for 14 days. After that it will be assumed as accepted.

The Government cannot use even a single rupee from the state treasury without the permission of Legislative Assembly. Hence it is known as 'Custodian of State Money'.

3. **Control over the Executives:** - Legislative Assembly enjoys control over the executives by asking questions and through adjournment motions etc. Whenever any member in the legislative assembly has raised a query, it is obligatory on the part of Chief Minister and his Council to answer them. If the Cabinet fails to answer – then Legislative Assembly may issue 'No Confidence Motion' and may dissolve the government. Hence Government remains in power as long it enjoys the confidence of Legislative Assembly.
4. **Electoral Functions:**
 - Members of Vidhana Sabha participate in the election of the President.
 - Members of Vidhana Sabha participate in the election of Rajya Sabha Members.
 - They elect 1/3 members of Vidhana Parishad.
 - Legislative assembly members elect some members of the 'Senate' in the universities situated in the state.
5. **Other Functions:** Vidhana Sabha along with the above mentioned functions performs several other functions also. They are: -
 - ✎ Legislative Assembly functions as a 'Ventilator of Grievances' of the state. The problems faced by the people will be presented in the house, through their representatives and finds solutions.
 - ✎ Legislative Assembly considers the reports and suggestions made by the State Public Service Commission, State Auditor General etc..

Hence, whatever functions Lok Sabha performs at the central level, will be performed by the Legislative Assembly at the state level.

2.12 Vidhana Parishad/State Legislative Council

Vidhana Parishad or Legislative council is the upper house of the State Legislature and resembles Rajya Sabha in the parliament. Out of 28 only six states have Legislative Council. Those six states are: Andhra Pradesh, Bihar, Jammu and Kashmir, Karnataka, Maharashtra and Uttar Pradesh.

2.12.a. Composition:

The number of members of Vidhana Parishad shouldn't be less than 40 and it should not be more than 1/3rd of the total membership of the State Legislative Assembly. The members are partly elected and are partly selected. The composition is as follows:

- 1/3rd members will be elected by the members of Vidhana Sabha
- 1/3rd members will be elected by the local bodies such as municipalities, district boards etc.
- 1/12th of the members will be elected by the Graduates Constituencies.
- 1/12th of the members will be elected by the Teachers Constituencies.
- 1/6th of the members are nominated by the Governor.

2.12.b. *Strengths of State Legislative Councils*

States	Total Membership
Bihar	75
Jammu and Kashmir	36
Karnataka	75
Uttar Pradesh	100
Maharashtra	78
Andhra Pradesh	90

2.12.c. *Eligibility:*

- I) He must be a citizen of India
- II) Must have attained the age of 30 years
- III) Should not hold office of profit under state or central government
- IV) Must be recognized as a voter.

Any member who is absent for the sessions of Vidhana Parishad for more than 60 days without prior permission will lose his membership.

2.12.d. *Term:*

Vidhana Parishad can't be dissolved by the Governor like Legislative Assembly. Hence Vidhana Parishad is known as the 'permanent house'. Its members are elected for a term of 6 years. A special mechanism has been devised, by which 1/3rd members of the house retire once in two years. And elections will be held only for vacant seats.

2.13. **Powers and Functions:**

1. *Legislative Functions:* Theoretically speaking Vidhana Parishad enjoys equal amount of power along with Legislative Assembly. Any bill, other than the financial bill, may be presented in Vidhana Parishad. But generally all bills will be presented in Vidhana Sabha and then it will be sent to Vidhana Parishad for its approval. In the first case Vidhana Parishad may delay its approval for 3 months and at the second time, Vidhana Parishad may delay its approval for 1 month. After this even if Vidhana

Parishad rejects the bill, it will be deemed as accepted.

2. **Financial Powers:** In terms of Finance, Vidhana Parishad enjoys very little power. Financial bill may be presented only in Vidhana Sabha. The only power that Vidhana Parishad enjoys with regard to financial bill is – it may delay its approval for 14 days.
3. **Administrative Powers:** Vidhana Parishad may ask questions, pass resolutions and may get the answers from the executive. Even then this regard also Vidhana Parishad enjoys very little powers.
4. **2.14. Lawmaking procedure in India**

The legislative procedure in India is similar to the lawmaking procedure in Britain, with the proposed law or bill passing through two houses of the Indian legislature.

Difference between a bill and an act

Legislative proposals are brought before either houses of the Parliament of India in the form of a bill. A bill is the draft of a legislative proposal, which, when passed by both houses of Parliament and assented to by the President, becomes an Act of Parliament. Bills may be introduced in the Parliament by ministers or private members. The former is called government bills and the latter, private members' bills. Bills may also be classified as public bills and private bills. A public bill is one referring to a matter applying to the public in general, whereas a private bill relates to a particular person or corporation or institution. The Orphanages and Charitable Homes Bill or the Muslim Wakfs Bills are examples of private bills.

Procedure relating to an ordinary bill

There are three stages through which a bill has to pass in one house of the Parliament.

First reading - introduction stage

A minister, or member-in-charge of the bill seeks the leave of the house to introduce a bill. If the bill is an important one, the minister may make a brief speech, stating its main features. After the bill has been introduced, the first reading is deemed to be over. Therefore, in the first stage, only the principles and provisions of the bills are discussed.

Second reading - discussion stage

This stage concerns the consideration of the bill and its provisions and is further divided into three stages.

First stage

On a fixed date general principles of the bill will be taken up for discussion. At this stage, three options are open to the house. The bill may be straightaway be taken into consideration or it may be referred to any of the Standing Committees or it may be circulated for the purpose of eliciting general opinion thereon

Second stage, that is, discussion on the report

The next stage involves of a clause-by-clause consideration of the bill as reported by the committee. When all the clauses have been put to vote and disposed of, the second reading of the bill is over.

Changes or amendments to the bill can be made only in this stage. Amendments become a part of a bill if they are accepted by a majority of the members present and voting.

Third reading - voting stage

The next stage is the third reading. The debate on the third reading of a bill is of a restricted character. It is confined only to arguments either in support of the bill or for its rejection, without referring to its details. After the bill is passed, it is sent to the other house

Bill in the other house

After a bill, other than a money bill, is transmitted to the Rajya Sabha, it goes through all the stages in that house as that in the first house. But if the bill passed by one house is amended by the other house, it goes back to the originating house. If the originating house does not agree with the amendments, it shall be that the two houses have disagreed.

Joint-session of both houses

In case of a deadlock between the two houses or in a case where more than six months lapse in the other house, the President may summon a joint session of the two houses which is presided over by the Speaker of the Lok Sabha and the deadlock is resolved by simple majority. Until now, only three bills: the Dowry Prohibition Act (1961), the Banking Service Commission Repeal Bill (1978) and the Prevention of Terrorist Activities Act (2002) have been passed at joint sessions.

President's assent

When a bill has been passed, it is sent to the President for his assent. The President can assent or withhold his assent to a bill or he can return a bill, other than a money bill, with his recommendations. If the President gives his assent, the bill becomes an Act from the date of his assent. If he withholds his assent, the bill is dropped, which is known as pocket **veto**.

The pocket veto is not written in the constitution and has been exercised only once by President Zail Singh: in 1986, over the postal act where the government wanted to open postal letters without warrant. If he returns it for reconsideration, the Parliament must do so, but if it is passed again and returned to him, he must give his assent to it. In the case of a Constitutional Amendment Bill, the President is bound to give his assent.

2.15. Procedure for Passing the Budget by the Union Parliament

Budget is an annual financial statement which projects estimates of incomes and expenditures for the coming financial year. Before the beginning of each financial year, the annual budget has to be got passed from the Parliament, because with the prior approval of the parliament, no money can be drawn from the treasury and no money can be spent by the government. The financial year starts from 1st April and ends on 31st March of next year. The annual budget has to be passed before 1st April every year. Theoretically, it is the responsibility of the President to get the budget presented before

the Parliament. This actually is the responsibility of the Union council of the Ministers which prepares the budget, places it before the Parliament and gets it passed from it. Thereafter, the Council of Ministers make its expenditure and collects its revenue in accordance with the budgetary provisions.

There are two types of budgets. They are:

(a) Railway Budget: In this budget the total income and expenditure concerning railway is included and this budget is presented by the Railway Minister in the Parliament. It is presented some days before the presentation of the General Budget.

(b) General Budget: The total income and expenditure concerning all other departments, except the railway department, are included in the General Budget. This budget is presented by the Finance Minister in the Parliament i.e., Lok Sabha in the first instance. The procedure of passing the Railway Budget as well the General budget is almost similar.

Preparation of the Budget:

Railway budget is prepared by the Railway Minister and the General budget is prepared by the Finance Minister. In both cases, the Cabinet decides the overall policy options and decisions. The estimates of the expenditures to be made, and income to be earned by various governmental departments reach the Finance Minister about 4 to 6 months before the preparation of the Budget. On the basis of these estimates and the policy decisions of the cabinet, the Finance Minister estimates the income and expenditure for the coming year. After this the Finance Minister takes decisions regarding the collection of revenue by different means, and formulates tax proposals. In this way the finance minister prepares a scheme for levying new taxes and for renewing the old ones. Hence, the budget is virtually prepared by the Finance Minister and presented before the Parliament.

Stages:

(a) **Introduction of the Budget and the Budget Speech:** Finance Minister actually presents the budget before the parliament, with the prior permission of President of India. It is presented in the last week of February. The budget is presented by the finance minister on a fixed date and at the fixed time. While presenting the budget, the Finance Minister makes the budget speech, which review the highlights of the budget and the fiscal policies and plans of the government.

(b) **Budget Reactions:** Printed copies of the budget are distributed among the members for enabling them to go through the details of the budget proposals and prepare for budgetary debates in the Parliament.

(c) **General Discussion:** After three or four days of the introduction of the budget, a general discussion on the salient features of the budget takes place during which the Finance Minister defends the fiscal policies of the government.

(d) **Considerations by the Standing Committees:** The Standing committees, nominated would examine the budget proposals in respect of their respective subjects and give

their reports/suggestions. These reports of the committees form the basis for discussion of the budget by the Lok Sabha.

(e) **Voting on Demand for Grants:** At this stage, demands relating to the expenditure for the coming year to be made by various governmental departments are subjected to a discussion. The Parliament can accept, reject or reduce any demand but cannot increase it. The demands for grants for each department are taken up individually, in the first instance. However, the demands of key departments are discussed individually, with the prior approval of the President of India. The speaker fixes the time limit for discussions and puts the demand to vote after each debate. If any of the demands is rejected or reduced by the Lok Sabha, it will be taken as a defeat of the Council of Ministers and it has to resign. The exercise involves the test of the majority of the government.

(f) **Introduction and Passing of the Appropriation Bill:** After the Lok Sabha has discussed all the demands for grants, the Appropriation Bill is prepared by grouping together the demands passed by the Lok Sabha and the expenditure charged on the Consolidated Fund of India. This bill is presented in the Lok Sabha and it has to pass through all the stages before getting it passed from the House. After it is passed in Lok Sabha, it will be sent to Rajya Sabha, where Rajya Sabha can pass it and return it to Lok Sabha within 14 days, after which it is considered to have been passed by both the House of the Parliament and is sent to the President for his signature.

With the signature of the President of India, the bill becomes a Statute. The President of India does not enjoy the power to return the Finance Bill to the Parliament for reconsideration and re-enactment. The passing of the finance bill virtually completes the process of passing the budget.

2.16 Committee System of the Parliament

The work done by the Parliament in modern times is not only varied in nature, but considerable in volume. The time at its disposal is limited. It cannot, therefore, give close consideration to all the legislative and other matters that come up before it. A good deal of its business is, therefore, transacted by what are called the Parliamentary Committees.

The Union Parliament carries out its functions with the help of several committees. It has a well organized committee system. Several committees play an important role in the smooth functioning of the parliament and these are an integral part of the legislative system. Several scholars go the extent of referring to the committees as Mini Legislatures.

The committees of the Union Parliament can be classified into the following five categories:

1. **General Committees:** In this category are included these committees which deal with the conduct of the business of the House. These include: (1) Rules Committee, (2) Business Advisory Committee, (3) Committee on Privileges, (4)

Committee on absence of Members from the sittings of the House, (5) Committee on Government Assurances, (6) Committee on Petitions, and (7) General purpose committees.

- 2. Legislative Committees:** In this category are included such committees as are involved in the law-making process. These include: (1) Committee on Private Members' Bills and Resolutions, (2) Committee on Sub-ordinate Legislation, (3) Select Committee, and (4) Special Committees constituted for reporting over a particular public bill.
- 3. Financial Committees:** In this category are included those committees which deal with financial matters. These include: (1) Estimates Committee, (2) Public Accounts Committee, (3) Committee on Public Undertakings.
- 4. Joint Committees:** In this category, those committees are included which are organized jointly by the two Houses of Parliament for undertaking a common activity or for handling a work which concerns both the Houses. These include: (1) Joint Committee on Salaries and Allowances of the Members of Parliament, (2) Joint Committee on Offices and Profit.
- 5. Miscellaneous Committees:** Besides the above four categories of Committees, there are certain other committees of Parliament. For example (1) The House Committee, and (2) The Library Committee.

2.17. Committees of the Lok Sabha

Before discussing the organization of various committees, let us take the case of the Committees of the Lok Sabha.

- 1. Nominations by the Speaker:** The Committees of the Lok Sabha are organized by the Speaker from amongst the members of the House. While appointing the members to the various committees, the Speaker ensures that the members from all the political parties get due representation in them. The Speaker himself is the Chairman of some of the committees. The rule is that the Speaker is the ex-officio chairman of each such committee of which he is a member. The chairman of other committees is appointed by the Speaker from amongst the members of the committees. If the Deputy Speaker is a member of any committee, he is made its Chairman. The appointment of the members to the joint committees is done respectively by the Chairman of the two Houses.
- 2. Election on the basis of resolution passed by the House:** The financial committees are elected by the House. The election of the members of the financial committees is held on the basis of the single transferable vote system of proportional representation system.
- 3. Size of the Committees:** There is no fixed rule regarding the number of members of each committee. As such the size of all the committees is not the same. Generally, the membership of a committee is kept between 15 to 30. Most of the committees have 15 members. The membership of select committees is between 20 to 30. Estimates

Committee consists of 3 members and the membership of the Public Accounts Committee is 22.

- 4. Working of the Committees:** Each Committee of the Parliament undertakes its assigned task. Some of these works only during the sessions of the Parliament while others keep on working even when the Parliament is not in session. A Committee can hold its meetings at any time. Mostly, the decision is made by a consensus or by the Chairman of the Committee. Usually the meetings of the committees are held within the premises of the Parliament but with the prior permission of the Speaker these can also be held outside the Parliament House.

The quorum for the meetings of the committee is $1/3^{\text{rd}}$ of the total members. The decision in the Committees is mostly by simple majority. In case of a tie the chairman of the committee can exercise his casting vote. Committees have the right to scrutinize the records of the government and to get the required information from the government departments. The committees can also take the help of the experts in formulating their reports. The experts can, however, simply advise. They do not enjoy the right to vote in the committees. The committees can further appoint their sub-committees for having a detailed study about a particular subject of special importance or interest.

The committees have to complete their work and present their reports to the House on the fixed date. The Speaker fixes the time within which the committees have to submit their reports. The committees have to prepare and submit the reports on all matters referred to them.

2.18. FUNCTIONS OF VARIOUS COMMITTEES OF THE LOK SABHA

2.18.a. General Committee

General committees are those committees which deal with the business of the House.

1. Rules Committee: The Rules Committee consists of 15 members including the Speaker who is the *ex-officio* Chairman of the Committee. The members are nominated by the Speaker. The Committee considers matters of procedure and conduct of business in the House and recommends any amendments or additions to the Rules of Procedure and Conduct of Business in Lok Sabha that are considered necessary. The suggestions made by the committee are put before the House and these get implemented when approved by the House.

2. Business Advisory Committee: The Business Advisory Committee of Lok Sabha consists of 15 members including the Speaker who is the *ex-officio* Chairman. The members are nominated by the Speaker. Almost all sections of the House are represented on the Committee as per the respective strength of parties in the House. The function of the Committee is to recommend the time that should be allotted for the discussion of such Government legislative and other business as the Speaker, in consultation with the Leader of the House, may direct to be referred to the Committee. The Committee, on its own initiative, may also recommend to the Government to bring forward particular

subjects for discussion in the House and recommend allocation of time for such discussions. The decisions reached by the Committee are always unanimous in character and representative of the collective view of the House. The Committee generally meets at the beginning of each Session and thereafter as and when necessary.

3. Committee on Privileges: The members of the Parliament enjoy certain special privileges. This Committee consists of 15 members nominated by the Speaker. The function is to examine every question involving breach of privilege of the House or of the members of any Committee thereof referred to it by the House or by the Speaker. It determines with reference to the facts of each case whether a breach of privilege is involved and makes suitable recommendations in its report.

4. Committee on Absence of Members from the Sittings of the House: The Committee consists of 15 members who hold office for one year. The members are nominated by the Speaker. This Committee considers all applications from members for leave of absence from the sittings of the House and examines every case where a member has been absent for a period of 60 days or more, without permission, from the sittings of the House. In its report it makes recommendations with respect to each case as to whether the absence should be condoned or leave applied granted or whether the circumstances of the case justify that the House should declare the seat of the member vacant.

5. Committee on Government Assurances: This Committee consists of 15 members nominated by the Speaker. A Minister is not nominated to this Committee. While replying to questions in the House or during discussions on Bills, Resolutions, Motions etc., Ministers at times give assurances or undertakings either to consider a matter or to take action or to furnish the House further information later. The functions of this Committee are to scrutinize the assurances, promises, undertakings etc. given by Ministers from time to time and to report to Lok Sabha on the extent to which such assurances etc. have been implemented and to see whether such implementation has taken place within the minimum time necessary for the purpose.

6. Committee on Petitions: The Committee consists of 15 members nominated by the Speaker. A Minister is not nominated to this Committee. The function of the Committee is to consider and report on petitions presented to the House. Besides, it also considers representations from individuals and associations, etc. on subjects which are not covered by the rules relating to petitions and gives directions for their disposal.

7. General Purpose committee: This committee is in existence since 1954. It consists of 20 members. The Speaker, the Deputy Speaker and the members on the panel of chairmen, the leaders of the various recognized political parties in the house are its members. The other members are appointed by the Speaker. This committee does not deal with any particular subject.

2.18.b. Legislative Committees

1. Select and Joint Committees: When a Bill comes up before a House for general discussion, it is open to that House to refer it to a Select Committee of the House or a Joint

Committee of the two Houses. A motion has to be moved and adopted to this effect in the House in which the Bill comes up for consideration. In case the motion adopted is for reference of the Bill to a Joint Committee, the decision is conveyed to the other House requesting them to nominate members of the other House to serve on the Committee. The Select or Joint Committee considers the Bill clause by clause just as the two Houses do. Amendments can be moved to various clauses by members of the Committee. The Committee can also take evidence of associations, public bodies or experts who are interested in the Bill. After the Bill has thus been considered the Committee submits its report to the House. Members who do not agree with the majority report may append their minutes of dissent to the report.

2. Committee on Private Members' Bills and Resolutions: This Committee consists of 15 members and the Deputy Speaker is its Chairman when nominated as a member of the Committee. The Committee is nominated by the Speaker. The functions of the Committee are to allot time to Private Members' Bills and Resolutions, to examine Private Members' Bills seeking to amend the Constitution before their introduction in Lok Sabha, to examine all Private Members' Bills after they are introduced and before they are taken up for consideration in the House and to classify them according to their nature, urgency and importance into two categories namely, category A and category B and also to examine such Private Members' Bills where the legislative competence of the House is challenged. The Committee, thus, performs the same function in relation to Private Members' Bills and Resolutions as the Business Advisory Committee does in regard to Government Business. The Committee holds office for a term not exceeding one year.

3. Committee on Subordinate Legislation: The Committee consists of 15 members nominated by the Speaker. A Minister is not nominated to this Committee. The Committee scrutinizes and reports to the House whether the powers to make regulations, rules, sub-rules, by-laws etc. conferred by the Constitution or delegated by Parliament are being properly exercised by the executive within the scope of such delegation.

2.18.c Financial Committees

1. Committee on Estimates: This Committee consists of 30 members who are elected by the Lok Sabha every year from amongst its members. A Minister is not eligible for election to this Committee. The term of the Committee is one year. The main function of the Committee on Estimates is to report what economies, improvements in organisation, efficiency, or administrative reform, consistent with the policy underlying the estimates may be effected and to suggest alternative policies in order to bring about efficiency and economy in administration. From time to time the Committee selects such of the estimates pertaining to a Ministry or a group of Ministries or the statutory and other Government bodies as may seem fit to the Committee. The Committee also examines matters of special interest which may arise or come to light in the course of its work or which are specially referred to it by the House or the Speaker.

2. Committee on Public Undertakings: The Committee on Public Undertakings consists of 15 members elected by the Lok Sabha and 7 members of Rajya Sabha are associated with it. A Minister is not eligible for election to this Committee. The term of the Committee is one year.

The functions of the Committee on Public Undertakings are—(a) to examine the reports and accounts of Public Undertakings; (b) to examine the reports, if any, of the Comptroller and Auditor General on the Public Undertakings; (c) to examine in the context of the autonomy and efficiency of the Public Undertakings whether the affairs of the Public Undertakings are being managed in accordance with sound business principles and prudent commercial practices; and (d) such other functions vested in the Committee on Public Accounts and the Committee on Estimates in relation to the Public Undertakings as are not covered by clauses (a), (b) and (c) above and as may be allotted to the Committee by the Speaker from time to time. The Committee does not, however, examine matters of major Government policy and matters of day-to-day administration of the Undertakings.

3. Committee on Public Accounts: This Committee consists of 15 members elected by the Lok Sabha and 7 members of the Rajya Sabha are associated with it. A Minister is not eligible for election to this Committee. The term of the Committee is one year.

The main duty of the Committee is to ascertain whether the money granted by Parliament has been spent by Government “within the scope of the Demand”. The Appropriation Accounts of the Government of India and the Audit Reports presented by the Comptroller and Auditor General mainly form the basis for the examination of the Committee. Cases involving losses, nugatory expenditure and financial irregularities come in for severe criticism by the Committee. The Committee is not concerned with questions of policy. It is concerned only with the execution of the policy laid down by Parliament and its results.

2.18.d. Joint Committees

1. Joint Committee on Offices of Profit: This Committee consists of 15 members. Ten members are elected from Lok Sabha and five from Rajya Sabha. The Committee is constituted for the duration of each Lok Sabha.

The main functions of the Committee are to examine the composition and character of the Committees appointed by the Central and State Governments and to recommend what offices should disqualify and what offices should not disqualify a person for being chosen as, and for being, a member of either House of Parliament under article 102 of the Constitution.

2. Committee on the Welfare of Scheduled Castes and Scheduled Tribes: The Committee on the Welfare of Scheduled Castes and Scheduled Tribes consists of 20 members elected by the Lok Sabha and 10 members of Rajya Sabha are associated with it. The term of the Committee is one year. A Minister is not eligible for election to this Committee. The main functions of the Committee are to consider all matters concerning the

welfare of the Scheduled Castes and Scheduled Tribes, falling within the purview of the Union Government and the Union Territories, to consider the reports submitted by the National Commission for Scheduled Castes and Scheduled Tribes and to examine the measures taken by the Union Government to secure due representation of the Scheduled Castes and Scheduled Tribes in services and posts under its control.

3. Railway Convention Committee: The Railway Convention Committee is an *ad-hoc* Committee. It consists of 18 members. Out of these, 12 members are from Lok Sabha nominated by the Speaker and 6 members are from Rajya Sabha nominated by the Chairman. By convention the Minister of Finance and the Minister of Railways are members of the Committee. Besides this, Ministers of State in the Ministry of Finance and Ministry of Railways respectively are also its members.

The main function of the Committee is to review the Rate of Dividend payable by the Railways undertaking to General Revenues as well as other ancillary matters in connection with the Railway Finance *vis-a-vis* the General Finance and make recommendations thereon. The Railway Convention Committee, 1949 was the first Committee after independence. This Committee and subsequent Committees confined themselves to determining the rate of dividend payable by Railways to General Revenues. Since 1971 the Railway Convention Committees have been taking up subjects for examination and report which have a bearing on the working of Railways.

4. Committee on Empowerment of Women: This Committee came into being on 29th April, 1997, as a consequence of identical Resolutions adopted by both the Houses of Parliament on the occasion of International Womens' Day on 8th March, 1996. The Committee consists of 30 members, 20 nominated by the Speaker from amongst the members of Lok Sabha and 10 nominated by the Chairman, Rajya Sabha from amongst the members of the Rajya Sabha. The term of the Committee is of one year. The Committee have been primarily mandated with the task of reviewing and monitoring the measures taken by the Union Government in the direction of securing for women equality, status and dignity in all matters. The Committee would also suggest necessary correctives for improving the status/condition of women in respect of matters within the purview of the Union Government. Besides, another important function of the Committee is to examine the measures taken by the Union Government for comprehensive education and adequate representation of women in Legislative bodies/services and other fields. The Committee would also consider the report of the National Commission for Women. The Committee may also examine such other matters as may seem fit to them or are specifically referred to them by the Lok Sabha or the Speaker and the Rajya Sabha or the Chairman, Rajya Sabha.

5. Departmentally Related Standing Committees: A full-fledged system of 17 Departmentally Related Standing Committees came into being in April, 1993. These Committees cover under their jurisdiction all the Ministries/ Departments of the Government of India. These Committees are as under :

1. Committee on Commerce

2. Committee on Home Affairs
3. Committee on Human Resource Development
4. Committee on Industry
5. Committee on Science & Technology, Environment & Forests
6. Committee on Transport, Culture and Tourism
7. Committee on Agriculture
8. Committee on Information Technology
9. Committee on Defence
10. Committee on Energy
11. Committee on External Affairs
12. Committee on Finance
13. Committee on Food, Civil Supplies and Public Distribution
14. Committee on Labour and Welfare
15. Committee on Petroleum & Chemicals
16. Committee on Railways
17. Committee on Urban and Rural Development

2.19 Summary:

Indian Parliament follows Bicameral legislature. It consists of two houses namely: Lok Sabha (Lower House of the Indian Parliament) and Rajya Sabha (The Upper House of the Indian Parliament). Along with these two houses, Indian Parliament also includes the 'President'. Lok Sabha is known as House of People. Rajya Sabha is known as Council of State. 'Speaker' is the presiding officer of Lok Sabha. Out of 28 states, 6 states follow a bicameral legislative system, in which, the lower house is called as Legislative Assembly and the upper house is known as Legislative Council. In order to carry out the day to day activities of the country, various parliamentary committees have been set up.

2.20. Self assessment Questions:

1. _____ is the lower of Union Parliament.
2. What is the Quorum of Lok Sabha to carry out the proceedings?
3. The first hour of every sitting of Lok Sabha is called as _____.
4. _____ is the presiding officer of Lok Sabha.
5. In case of an ordinary bill, Rajya Sabha can delay its approval for a maximum of _____ months.
6. In case of Money bill, Rajya Sabha may delay its approval for maximum of _____ days.
7. President can select _____ members to Rajya Sabha.
8. The term of Rajya Sabha members is _____ years.
9. _____ will be the chairman of Rajya Sabha.
10. What is bi-cameralism legislature?
11. How many states have the Upper House or Legislative Council in their Legislature?
12. The drafted format of Law is _____.
13. _____ is the ex-officio Chairman of Business Advisory Committee of Lok Sabha.
14. Committee on Empowerment of Women was formulated on _____.
15. _____ Committee ensures, whether money granted by the Parliament has been spent for the purpose or not?

2.21. Terminal Questions

Answer the following questions in a word or sentence each. Each question carries 1 marks.

1. What is the present strength of Lok Sabha?
2. Explain the tenure of Lok Sabha.
3. In what way is the Money Bill different from Ordinary Bill. Explain.
4. Define quorum?
5. Which are the sessions of Lok Sabha?
6. Write the composition of Rajya Sabha.
7. Which is the upper house of state legislature?
8. What is a bill?
9. Who can exercise 'veto' power?
10. What is the maximum duration, that Rajya Sabha may delay its approval for a money bill?

Answer the following in a paragraph each. Each question carries 5 marks

1. What are the qualifications required to become the member of Rajya Sabha?
2. What are the qualifications required to become a member of Lok Sabha?
3. Explain the mode of election and the tenure of the Speaker of Lok Sabha.
4. Explain the role of committees in parliament.
5. What are the qualifications and disqualifications of the members of parliament?
6. What is meant by 'Vote of No-confidence'?
7. Point out the importance of Question-Hour.
8. Write a short note on dissolution of Lok Sabha.
9. Explain the role of the Legislative Council of the State.
10. Explain the law making process in the Indian Constitution.
11. Explain the Powers and functions of the Speaker of Lok Sabha.
12. Write a note on the financial committees of Indian Parliamentary System?
13. Discuss the role of parliament in Indian Democracy.

Answer the following in detail. Each question carries 14 marks.

1. Briefly explain the compositions, powers and functions of the Legislative Assembly?
2. Describe the organisation, powers and functions of Lok Sabha?
3. Critically examine the organisation, powers and functions of Rajya Sabha?
4. Describe the role of various committees in the Indian Parliamentary system?
5. Critically examine the procedure of passing the budget by the union parliament?

2.22. Answers

Answers to 1 mark questions

1. Refer sub section 2.3.a.
2. Refer sub section 2.3.d.
3. Refer sub section 2.4.c.
4. Refer sub section 2.3.e.
5. Refer sub section 2.3.f.
6. Refer sub section 2.7.a.
7. Refer sub section 2.10.
8. Refer sub section 2.14
9. Refer sub section 2.14
10. Refer sub section 2.8.b.

Answer to 5 mark questions

1. Refer sub section 2.7.b.
2. Refer sub section 2.3.c.
3. Refer sub section 2.5.a and 2.5.d.
4. Refer sub section 2.16
5. Refer sub section 2.7.b and 2.7.c.
6. Refer sub section 2.4.b
7. Refer sub section 2.3.i.
8. Refer sub section 2.3.d.
9. Refer sub section 2.13.
10. Refer sub section 2.14
11. Refer sub section 2.6.
12. Refer sub section 2.18.c.
13. Refer sub section 2.4 and 2.8.

Answers to 14 mark questions

1. Refer to sub section 2.10 (i) and 2.11
2. Refer to sub section 2.3 and 2.4
3. Refer to sub section 2.7 and 2.8
4. Refer to sub section 2.16 and 2.18
5. Refer to sub section 2.14 and 2.15

Module-3

The Union and State Executive

Structure

- 3.1 Introduction
- 3.2 Learning Objectives
- 3.3 President Of India
- 3.4. Powers And Functions
- 3.5 The Vice President
- 3.6. Prime Minister
- 3.7. Powers And Functions Of The Prime Minister
- 3.8. The Union Council Of Ministers
- 3.9. Powers And Functions Of Union Council Of Ministers:
- 3.10 Governor
- 3.11. Powers And Functions Of The Governor:
- 3.12. Chief Minister
- 3.13. Powers And Functions Of The Chief Minister
- 3.14. State Council Of Ministers
- 3.15. Powers And Functions Of The Council Of Ministers
- 3.16. Summary
- 3.17. Self Assessment Questions
- 3.18 Terminal Questions
- 3.19 Answers

3.1 Introduction:

The rules and regulations formulated by the Legislature will be of little use, if they are not implemented properly. That task of implementing the Laws enacted by the Legislature is done by Executive. As the name itself suggests Executive brings the laws into execution.

India is Republic. The head of the Indian State is an elected President. All the executive and several other powers of the Union are vested in him. But, they are exercised by the Council of Ministers. The President is the Constitutional head. This is because we have parliamentary form of government. The real executive is the Prime Minister and his Council of Ministers. The President is bound to act on the advice of the Council of Ministers. He may refer back to the Council of Ministers any advice that he does not wish to accept, for reconsideration. But if the council of ministers again gives the same advice the President is bound to act accordingly. Thus our President is only a nominal

executive. The constitution does not describe him as head of State. He is simply referred to as the President. Actually, he is the symbol of the unity of India.

3.2 Learning objectives:

This Module deals with:

- President of India – details of the position
- Vice-President of India
- Prime Minister of India – the real executive
- The Union Council of Ministers,
- The State Executive – Governor
- Chief Minister
- The State Council of Ministers.
-

3.3 President of India

President is the supreme authority in the Indian Parliamentary system. The importance of the President could be understood under the following heads;

- i) He is the first citizen of India
- ii) He is the supreme commander of all armed forces
- iii) He is the head of the state
- iv) All rules and regulations are to be passed by him

But President is only a nominal executive. Prime Minister and his cabinet will function on behalf of him and will exercise the powers in reality.

The 12th President of India is Her Excellency Pratibha Devisingh Patil, the first woman to serve in the office, who was sworn in on 25 July 2007.

3.3.(i) Qualifications:

Article 58 of the Constitution lays down the qualification as follows:

- i) He must be the citizen of India
- ii) He must have attained 35 years of age
- iii) He should not possess the office of profit
- iv) He should possess all other qualifications required to become a member of Lok Sabha

Certain office-holders, however, are permitted to stand as Presidential candidates.

These are:

- The current Vice President.
- The Governor of any State.
- A Minister of the Union or of any State.

In the event that the Vice President, a State Governor or a Minister is elected President, he is considered to have vacated his previous office on the date he begins serving as President.

Conditions for Presidency

Certain conditions, as per Article 59 of the Constitution, debar any eligible citizen from contesting the presidential elections. The conditions are:

- The President shall **not** be a member of either House of Parliament or of a House of the Legislature of any State, and if a member of either House of Parliament or of a House of the Legislature of any State be elected President, he shall be deemed to have vacated his seat in that House on the date on which he enters upon his office as President.
- The President shall **not** hold any other office of profit.
- The President shall be entitled without payment of rent to the use of his official residences and shall be also entitled to such emoluments, allowances and privileges as may be determined by Parliament by law and until provision on that behalf is so made, such emoluments, allowances and privileges as are specified in the Second Schedule.
- The emoluments and allowances of the President shall **not** be diminished during his term of office.

3.3.(ii). Elections:

President is elected by an Electoral College, which comprises of

- i) All the **Elected members** of Lok Sabha and Rajya Sabha
- ii) All the **Elected members** of State Legislative Assemblies.

In these elections two principles are being followed. They are;

- I) Secret Ballot
- II) Single transferable voting system (Voting in the order to preference)

The actual calculation for votes cast by a particular state is calculated by dividing the state's population by 1000, which is divided again by the number of legislators from the State voting in the electoral college. This number is the number of votes per legislator in a given state. For votes cast by those in Parliament, the total number of votes cast by all state legislators is divided by the number of members of both Houses of Parliament. This is the number of votes per member of either house of Parliament.

If no candidate receives a majority of votes there is a system by which losing candidates are eliminated from the contest and votes for them transferred to other candidates, until one gains a majority.

3.3.(iii). Election process:

- i) Whenever the President seat falls vacant, it is the responsibility of the election Commission to appoint a new President.
- ii) For the appointment of the President, Election commission appoints a Returning Officer

- iii) Returning Officer fixes dates for various activities like filing nominations, voting, counting, etc.
 - iv) The candidate must deposit a sum of Rs.15,000/- along with application and 50 signatures of the members of Electoral College must support his nomination.
 - v) Returning officer will fix the polling date and he will announce the date for counting votes.
 - vi) Counting is carried out on the pre-decided date and results are declared.
- New President's name will be announced and while occupying the office he has to take an Oath before the "chief justice of India".

3.3.(iv). Duration: The duration is normally for 5 years and he may be re-elected for the 2 terms (Dr. Rajendra Prasad was the President for 10 years). Out of convention it has been established that no person can become the President for more than 2 times.

3.3. (v) Removal:

- i) By submitting Resignation to Vice President
- ii) By natural or unnatural death
- iii) By impeachment: It refers to a process of removing the President from the position on the grounds of proved mis-conduct or misbehaviour. It involves several steps. They are:
 - a) charges or allegation of misconduct could be made by any of the member of either house and 1/4th of members should accept and pass a resolution
 - b) 14 days prior notice to be given to the President
 - c) The other house makes an investigation
 - d) President is given a fair chance to defend himself
 - e) If the misbehavior is proved and approved by 2/3rd majority of the investigating house then a seven days notice is given to the President and he will be removed.

3.3. (vi) Presidential Succession: If the office of the President falls vacant due to death or due to impeachment Vice-President becomes the acting President. If The Vice-President seat is also vacant then the Chief Justice of India takes over the charge. New President has to be elected within a period of 6 months.

3.3.(vii) Salary and Allowances:

- i) Rs.1,50,000/- per month
- ii) Rent free accommodation in Rashtrapathi Bhavan
- iii) Pension Rs.50,000/- per month
- iv) Rs.30,000/- per annum for secretarial maintenance
- v) Air India, which is also known as Rajdoot is the official aircraft for the President of India.

His salary is paid from the consolidated fund of India. No person can sue the President in the court of law during his tenure. He cannot be arrested or detained. President is not answerable to any court of law.

3.4. POWERS AND FUNCTIONS

3.4.a. Legislative Functions:

He is an integral part of the union parliament. He is not a member of both houses, but an inseparable part of the parliament. And any bill passed by the parliament will become law only if President signs. Some of the legislative functions performed by him are:

- i) He will address the first session of the newly formulated government after the general elections. Usually it will be a joint session and "his address" outlines the policies of the government. The Prime Minister and his council of ministers will prepare the speech.
- ii) The President summons the parliament atleast twice a year and the time gap between these two sessions will not be more than 6 months. In case of any dead locks between the houses he will call for a joint session
- iii) Any bill passed by both houses will become law after President's signature. In this case he may exercise his veto power
- iv) He may dissolve Lok Sabha before the completion of its term.
- v) Money bill may be introduced in Lok Sabha only with the prior permission of the President.
- vi) All government orders has to be issued in his name.
- vii) A bill relating to change of boundaries of the state or change of name of the state can be introduced in the parliament only with the prior consent of President.
- viii) When the Parliament is not in session and the government considers it necessary to have a law, then the President can promulgate ordinances. These ordinances are submitted to the Parliament at its next session. They remain valid for not more than six weeks from the date the Parliament is convened unless approved by it earlier.
- ix) In the event of a hung parliament, where no party has absolute majority in the Lok Sabha, the President invites parties to command the required support and form the government. If the majority is still not achieved he can call for a new election.

3.4.b. Executive Powers:

- i) President appoints Prime Minister and his council of minister. Theoretically speaking President may appoint any person as the Prime Minister.
- ii) All the administrative actions are taken in his name.
- iii) All major appointments are made by the President (attorney general, finance commission, chief justice, election commissioner, auditor general and governors to state)

- iv) He has special powers in matters of external affairs and foreign relations. (foreign ambassadors are appointed by him) and all bilateral treaties are signed on his behalf
- v) He also has the power to remove any of the higher functionaries of Indian Government

3.4.c. Financial Powers:

- i) Money bill cannot be presented in Lok Sabha without his approval
- ii) It neither can be implemented without his approval
- iii) Contingency fund of India is under his control
- iv) Finance commission is formulated by him
- v) President supervises whether budget is prepared and presented in time
- vi) **Financial emergency:** If the President is satisfied that there is an economic situation in which the financial stability or credit of India is threatened, he/she can proclaim financial emergency as per the Constitutional Article 360. Such an emergency must be approved by the Parliament within two months. It has never been declared. On a previous occasion, the financial stability or credit of India has indeed been threatened, but a financial emergency was avoided through the selling off of India's gold reserves. A state of financial emergency remains in force indefinitely until revoked by the President. In case of a financial emergency, the President can reduce the salaries of all government officials, including judges of the Supreme Court and High Courts. All money bills passed by the State legislatures are submitted to the President for his approval. He can direct the state to observe certain principles (economy measures) relating to financial matters.

3.4.d. Judicial Powers:

- i) The president appoints the Chief Justice of the Union Judiciary and other judges on the advice of the Chief Justice. The President dismisses the judges if and only if the two Houses of the Parliament pass resolutions to that effect by two-thirds majority of the members present.
- ii) If they consider a question of law or a matter of public importance has arisen they can ask for the advisory opinion of the Supreme Court. They may or may not accept that opinion.
- iii) He/ She enjoys the judicial immunity:
 - (a) No criminal proceedings can be initiated against him/her during his/ her term in office.
 - (b) He/She is not answerable for the exercise of his duties.
- iv) He appoints the attorney general of India to give legal assistance
- v) He/ She has the right to grant pardon. He/ She can suspend, remit or commute the death sentence of any person. The President of India can grant a pardon to

or reduce the sentence of a convicted person for one time, particularly in cases involving punishment of death. The decisions involving pardoning and other rights by the president are independent of the opinion of the Prime Minister or the Lok Sabha majority. In most other cases, however, the President exercises his or her executive powers on the advice of the Prime Minister.

{1. Pardon - completely absolve the offender 2. Reprieve- temporary suspension of the sentence 3. Respite-awarding a lesser sentence on special ground 4. Remission- reducing the amount of sentence without changing its character 5. Commutation- substitution of one form of punishment for another form which is of a lighter character}

3.4.e. Military Powers:

- i) He appoints the commander in chief of Army, Navy, Airforce
- ii) He has the power to declare war and call for peace.
- iii) All important treaties and contracts are made in president's name.

3.4.f. DIPLOMATIC POWERS:

All international treaties and agreements are negotiated and concluded on behalf of the President. However, in practice, such negotiations are usually carried out by the Prime Minister along with his Cabinet (especially the Foreign Minister). Also, such treaties are subject to the approval of the Parliament. The President represents India in the international forums and affairs where such a function is chiefly ceremonial. The President may also send and receive diplomats like Ambassadors and High Commissioners.

3.4.g. STATE EMERGENCY

State emergency, also known as President's rule, is declared due to breakdown of constitutional machinery in a state.

If the President is satisfied, on the basis of the report of the Governor of the concerned state or from other sources that the governance in a state cannot be carried out according to the provisions in the Constitution, he/she can declare a state of emergency in the state. Such an emergency must be approved by the Parliament within a period of six months.

Under Article 356 of the Indian Constitution, it can be imposed from six months to a maximum period of three years with repeated parliamentary approval every six months. If emergency needs to be extended for more than three years, this can be achieved by a constitutional amendment, as has happened in Punjab and Jammu and Kashmir.

During such an emergency, the President can take over the entire work of the executive, and the Governor administers the state in the name of the President. The Legislative Assembly can be dissolved or may remain in suspended animation. The Parliament makes laws on 66 subjects of the state list. All money bills have to be referred to the Parliament for approval.

A State Emergency can be imposed via the following:

1. By Article 356:-If that state failed to run constitutionally i.e. constitutional machinery has failed
2. By Article 365:-If that state is not working according to the given direction of the Union Government.

This type of emergency needs the approval of the parliament within 2 months. This type of emergency can last up to a maximum of 3 years via extensions after each 6 month period. However, after one year it can be extended only if

1. A state of National Emergency has been declared in the country or in the particular state.
2. The Election Commission finds it difficult to organize an election in that state.

3.4.h. Other Functions:

During normal times we will have federal form of government, but during emergencies it will converted into unitary form of government. During emergencies President will issue ordinances. He can even suspend fundamental rights and can reduce the salaries and allowances of the civil servants without prior intimation.

3.5 The Vice President

Article 63 of the constitution provides for the office of the Vice-President. While providing for this office, the constitution framers were influenced by the US constitution. In the absence of the President, Vice President becomes the 'Acting President'.

3.5.a. Eligibility:

- i) He must be the citizen of India
- ii) He must have attained 35 years of age
- iii) He should not possess the office of profit in the Union or State Government. However, the office of President, Vice-President, a Governor or a Minister of Union or State stand exempted from this provision.
- iv) He should not be a member of either House of Parliament or of any State Legislature. In case a member of the State Legislature or Union parliament is elected as Vice-President, he must resign his membership before assuming office.
- v) He should possess all other qualifications required to become a member of Rajya Sabha

3.5.b. Election:

The Vice-President is elected by the members of both the Houses of Parliament (Lok Sabha and Rajya Sabha).

In these elections two principles will be followed. They are: (a) Secret Ballot and (b) Single Transferable Voting System.

The Methodology of election is similar to that of President's election.

3.5.c. Term:

The Vice-President is elected for five years. He is eligible for re-election. While assuming office he has to take an Oath before the President of India.

3.5.d. Removal:

- By submitting Resignation to President.
- In case of Natural or Unnatural death.
- The Vice-President can be removed from his office by a resolution passed in Rajya Sabha with 2/3 majority and it must be approved by Lok Sabha. However, a notice of 14 days is required to be given to the incumbent against whom the proceedings of removal are to be initiated.

3.5.e. Salary:

Vice President gets a salary of Rs. 1,40,000/- per month. The Vice-President lives in a rent-free furnished official bungalow in New Delhi. Apart from this he gets a daily allowance of Rs. 1,000.

3.5.f. Functions:

The Vice-President is the Ex-officio chairman of Rajya Sabha. He presides over the proceedings of Rajya Sabha. He maintains the discipline and decorum of the house while the proceedings are going on. Since Vice President is not a member of the house, he cannot vote, but in case of tie, he may cast his vote.

In case of President seat falls vacant – due to death, illness, impeachment, resignation – The Vice President holds the place of 'Acting President', till the new President is elected. He may function as 'Acting President' only for duration of 6 months.

3.6. Prime Minister

Prime minister is the most powerful person in the Indian Political system. Following points substantiate this.

- Prime Minister is the real executive. All powers and privileges which belongs to the President are exercised by the Prime Minister.
- In terms of functions, Prime Minister may be compared to the President of U.S.A.
- He is the leader of the government and performs the role of a captain of a team.
- He is the official spokesperson of the government.
- Prime minister formulates the government. The process of ministry making begins with him.

Hence Prime minister is the key stone in the cabinet arch.

3.6.a Appointment:

Theoretically, Prime minister is appointed by the President of India. But in Practice, after the general elections, the party having won the majority will elect or select its leader and in turn President invites that leader to form the government and that leader becomes the prime minister. However, in case no party gets a majority, some parties join together to form a coalition government and elect or select a common candidate and that candidate becomes the Prime Minister.

Conventionally only a member of Lok Sabha could become the prime minister. This convention was broken by Mr. H. D. Deve Gowda. He became the Prime Minister even when he was not a member of either house of parliament. Later on, he secured a seat in the Rajya Sabha. Following the same way in 1997, Mr. Inder Kumar Gujral became the Prime Minister and he was also a member of Rajya Sabha.

3.6.b Qualifications:

By virtue, there are no formal qualifications for the office of the Prime Minister. Since Prime Minister should be a member of either Rajya Sabha or Lok Sabha, the qualifications to obtain the membership of either the house also holds good over here. Even a non member can also become prime minister under a condition that within 6 months of him assuming office, he/she should be elected or selected to either the house.

3.6.c Tenure:

Prime Minister holds office at the pleasure of the President, which means, as long as he enjoys the confidence of the Lok Sabha i.e., majority support in Lok Sabha. Lok Sabha may pass a vote of no-confidence against Prime Minister and in such a case the President asks the Prime Minister to prove his majority, failing which, the Prime Minister either submits his resignation to the President or gets dismissed by the President.

3.6.d Salary and Allowances:

Prime Minister receives such salary (as of now 1,00,000 per month). Allowances, including the constituency allowance, which every member of Parliament receives.

3.7. Powers and Functions of the Prime Minister

- 1. Formation of the Council of Ministers:** The task of formation of the ministry begins with the appointment of the Prime Minister by the President. After assuming the office of Prime ministership, Prime Minister prepares a list of persons, who are to be appointed as ministers in the council of ministers. Prime Minister is free to determine the strength of his Ministry and also to select the ministers as per his choice. Prime Minister decides, who amongst them shall be his cabinet ministers, ministers of cabinet rank, state ministers and deputy ministers.
- 2. Allocation of Portfolios:** It is an undisputed privilege of the Prime Minister to allocate portfolios to his ministers. Which particular department shall be entrusted

to which minister is determined by him.

3. **Reshuffling of Portfolios:** The Prime Minister has the power to shuffle his ministry. It is his privilege to shuffle and reshuffle his ministry any time and as many times as he likes. Prime Minister will review the allocation of portfolios and effect the changes where desirable.
4. **Chairman of the Cabinet:** The Prime Minister is the leader of the Cabinet. He presides over its meetings. He decides the agenda of its meetings. In fact all matters are discussed in Cabinet with the approval and consent of the Prime Minister. It is up to him to accept or reject proposals for cabinet discussion. Any minister, not finding the policy acceptable, has no choice except to submit his resignation. The ministers have to accept the leadership of Prime Minister.
5. **Removal of Ministers:** Prime Minister can demand resignation from any minister at any time. If any minister doesn't resign even on the asking of Prime Minister, the Prime Minister can either get him dismissed by the President or can submit his own resignation, which in fact means the resignation of his whole council of ministers. No one can remain a minister without the consent of the Prime Minister.
6. **Chief Link between the President and the Cabinet:** Prime Minister is the main channel of communication between the President and the Cabinet. He communicates to the President all decisions arrived at in the Cabinet and puts before the Cabinet the views of the President. Prime Minister keeps the President informed of all affairs of the government. This is the sole privilege of the Prime Minister and no other minister can, on his own, convey the decisions or reveal to the President.
7. **Leader of the Parliament:** All major policies of the nation are announced by him on the floor of the parliament. He can address each house of the Parliament but can vote only in the House to which he belongs.
8. **Power of Dissolution of the Parliament:** Prime Minister has an ultimate power of dissolution of Lok Sabha, which means, all members hold their seats in the House at the mercy of the Prime Minister. No member likes to contest frequent elections as they involve huge expenditure and no certainty of winning every time.
9. **Director of Foreign Affairs:** As a powerful and the real head of the government, the Prime Minister always plays a key role in determining the foreign policy of the country and India's relations with other countries. He may or may not hold the portfolio of foreign affairs but he always influences rather determines India's foreign policy. He participates in international relations. He represents the country in all important international conferences.
10. **Prime minister is the ex-officio chairman of the planning commission.** Prime Minister is the main spirit behind all economic planning. He plays a leading role in all fiscal and developmental planning. It was Prime Minister Pandit Jawaharlal Nehru who introduced five year plans and initiated the building of major multi-purpose projects. Prime Minister is the ex-officio chairman of the Planning Commission. President always accepts the advice of the Prime Minister.

3.8. The Union Council of Ministers

The Prime Minister of India is the Head of the Union (Federal) Government, as distinct from the President of India, who is the Head of State. Since India has adopted the Westminster model of constitutional democracy, it is the Prime Minister who oversees the day-to-day functioning of the Union (Federal) Government of India. The Prime Minister is assisted in this task by his Council of Ministers.

Article 75 lays down six rules regarding the organisation of the Council of Ministers.

They are:

- The Prime Minister shall be appointed by the President and the other ministers shall be appointed by the President upon the advice of the Prime Minister.
- The ministers shall hold office during the pleasure of the President.
- The council of ministers shall be collectively responsible to Lok Sabha.
- Before a minister enters upon his office, the President shall administer to him the oath of office and secrecy.
- A minister, who for any period of six months is not attending the sessions, will lose his candidature.
- The salaries and allowances of ministers shall be such that Parliament may from time to time determine by law.

There are four categories of ministers, in descending order of rank:

3.8.a. Union Cabinet Minister

Senior minister in-charge of a ministry. A cabinet minister may also hold additional charges of other Ministries, where no other Cabinet minister is appointed.

3.8.b. Minister of State

a Minister of State either holds an independent charge of a small department or is attached to a Cabinet Minister, whereas the departments like Home, External affairs, Defence, Finance, Agriculture have 2 or 3 Ministers of State. Such ministers attend the meetings of the Cabinet only when they are invited to do so by the Prime Minister or the cabinet.

3.8.c. Deputy Ministers

They are helping ministers attached to the Cabinet Ministers or the Ministers of State. No Deputy Minister holds an independent charge of any department. His function is to help the minister under whom he works. They are mainly, given the responsibility to prepare answers to the parliamentary questions pertaining to their respective departments and to help the process of getting the Government Bills passed by the Parliament.

3.8.a. Parliamentary Secretaries

these are neither ministers nor are assigned any administrative work. Their sole function is to help the ministers in the Parliament. These do not draw salaries. The office of a

Parliamentary Secretary is an office used for training 'future ministers'.

As head of the Council of Ministers, the Prime Minister oversees the work of all the Ministries. He presides over Cabinet meetings, which are normally held in the Cabinet room of the Prime Minister's Office. The Union Cabinet functions on the principle of "collective responsibility".

3.8.(i) Individual responsibility

Every individual minister is in charge of a specific ministry or ministries (or specific other portfolio). He is responsible for any act of failure in all the policies relating to his department. In case of any lapse, he is individually responsible to the Parliament. If a vote of no confidence is passed against the individual minister, he has to resign. Individual responsibility can amount to collective responsibility. Therefore, the Prime Minister, in order to save his government, can ask for the resignation of such a minister and the people have a say. A recent example is Shashi Tharoor been forced to resign by Prime Minister Dr. Manmohan Singh because of the Indian Premier League issue.

3.8. (ii) Collective responsibility

The Prime Minister and the Council of Ministers are jointly accountable to the Lok Sabha. If there is a policy failure or lapse on the part of the government, all the members of the council are jointly responsible. If a vote of no confidence is passed against the government, then all the ministers headed by the Prime Minister have to resign.

3.9. Powers and functions of Union Council of Ministers:

1. Executive Powers: The Council of Ministers are the real executive. The executive powers enjoyed by the President of India are in reality exercised by Council of Ministers. In discharging of his executive powers, the President always acts upon the advice of Council of Ministers. The Cabinet, formulates the policies which are to be submitted to the Parliament for approval, gets the policies approved by the Parliament, runs the administration of the Union in accordance with the policies approved by the Parliament and co-ordinates the working of different departments of the government. The cabinet plays a pivotal role in framing economic policies. The planning commission works in close collaboration with the Cabinet and the Prime Minister is the Chairman of the Planning commission. All development plans are formulated by the Planning Commission. Cabinet runs the administration in accordance with the laws and policies and is responsible to maintain law and order in the country. Various departments are headed by the Ministers. The day to day decisions are taken up by the departments in accordance with the declared and accepted policies of the Council of Ministers. Each Minister is individually responsible before Lok Sabha for the day to day working of the department under him. Any lapse can cause his exit from the Council of Ministers. All higher appointments are made by the President, in consultation with the Council of Ministers. Hence Council of Ministers are the real executives.

2. Legislative Powers: Council of Ministers are both the executive heads of government departments and the members of the Parliament. They take full and active part in the deliberative legislative, financial, electoral, constitutional functions of the Parliament. Ministers take full part in Parliamentary debates. A bill not supported by the Council of Ministers cannot get passed in the Parliament because the ministry enjoys the support of the majority.

3. Financial Powers: Parliament is the custodian of national finances and in this respect exercises all the powers in the financial sphere. However, in practice, the Cabinet plays a leading role in this sphere also. The budget is prepared by the Cabinet (Finance Minister). Besides providing estimated income and expenditure of the government in the coming financial year, it lays down the fiscal policies of the government. All proposals for additional taxes emanate from the Cabinet.

State Executive

3.10 Governor

3.10.a. Importance:

- Governor functions as an agent of the central government in the state.
- Every state has a Governor. Governor is the executive head of the state.
- He is considered as the 1st citizen of the state.
- He exercises same powers and privileges in the state, which the President has in the union.

Article 153 of the Constitution of India provides that "There shall be a Governor for each State". However, one person can function as a Governor for two or more States.

3.10.b. Eligibility:

- i) He must be the citizen of India
- ii) He must have attained 35 years of age
- iii) He should not possess the office of profit either under Central government or under State Government.
- iv) The Governor shall not be a member of either house of Parliament or of the Legislature of any state.

3.10.c. Appointment:

Article 155 says that "Governor of the State shall be appointed by the President".

Governors are appointed by the President. Theoretically President has the full powers regarding the choice and appointment of the Governors. President seeks the advice of the Cabinet (Prime Minister and his Cabinet) before the appointment of the Governor. Governor will be appointed by the Central Government.

Two conventions seemed to have established with regard to the appointment of the

Governor. They are:-

- No individual from the same state will be appointed as the Governor of that state.
- The governor who is appointed by the Central Government should be accepted by the respective states also.

3.10.d. Term:

Governor is appointed for 5 years. But he will remain in power as long as the President wishes. At the same time the President may transfer the Governor to other states also. No State government has the power to pass an impeachment against Governor and while occupying the office the Governor has to take an Oath before the Chief Justice of High Court of the respective state.

In the absence of the Governor, the Chief Justice of the State High Court acts as the 'Acting Governor'.

3.10.e. Allowances:

The salary of the Governor will be paid out of State Revenue. Along with this, a rent free accommodation at Raj Bhavan and travel allowances and all such allowances will be paid in conformity with the status and dignity.

3.10.f. Legal Immunities of the Governor:

As a head of the state, the Governor of a state is not answerable to any court during his office and no criminal and civil proceedings can be instituted against the Governor during his term of office.

3.11. Powers and Functions of the Governor:

As a head of the state, the Governor enjoys a large amount of powers and dignity. Some of them are: -

1. Legislative Functions:

- i) Governor will address the first session of the newly formulated government after the general elections. Usually it will be a joint session and "his address" outlines the policies of the government. The Chief Minister and his council of ministers will prepare the speech.
- ii) The governor summons the Legislative Assembly atleast twice a year and the time gap between these two sessions will not be more than 6 months. In case of any emergency, he may call for an emergency meeting also.
- iii) Any bill passed by Legislative Assembly and Council, will become law after Governor's signature.
- iv) He may dissolve Legislative Assembly before the completion of its term on the recommendations of Chief Minister.
- v) All the state government orders has to be issued in his name

- vi) Governor may appoint 2 members to Legislative Assembly from Anglo Indian Community.
- vii) Whenever the State Legislature is not in session – he may issue ordinances.

2. Executive Functions:

- i) Governor appoints Chief Minister and his council of minister. Theoretically speaking Governor may appoint any person as the Chief Minister.
- ii) Governor is the nominal executive of the state government and all the administrative actions are taken in his name.
- iii) All major appointments at the state level are made by the Governor (Advocate general, Chairman of State Public Service Commission etc.)
- iv) When no single party is having a clear majority, the Governor can play an active and deterministic role in the appointment of the Chief Minister. He may also recommend the imposition of President's rule in a state when the elections result into a Hung Vidhana Sabha.
- v) Governor will be the ex-officio chancellor of Universities situated in the state.
- vi) He has a dual role to play – as a constitutional head of the state as well as a representative of the Centre.

3. Financial Powers:

- i) Money bill may be introduced in Legislative Assembly only with the prior permission of the Governor.
- ii) Governor enjoys complete control over the State Contingency fund.
- iii) Governor monitors that the state budget is prepared and presented in time.

4. Judicial Powers: The Governor of the state has some judicial powers. He can influence the appointments, postings and promotions of the district judges and other judicial officials. Under article 161, he has the power to grant pardon, reprieve or remission of punishment or to suspend, remit or commute the sentences of any person, convicted of any offence against any law relating to the matter to which the executive authority of the State extends. The President, also consults the Governor of the State while appointing the Chief Justice and other Judges of State High Court.

5. Other Function: The Governor receives the annual report of the State Public Service Commission and passes it on to the Council of Ministers for Comments. Thereafter, he passes on the report and these comments to the Speaker of the Assembly for placing it before the legislature. In case he feels that the State administration cannot be run in accordance with the provisions of the Constitution, he can send a report under Article 356 to the President, recommending the imposition of President's rule. Whenever the Presidential rule is being imposed, the Governor looks after the administration of the State. President's rule in the State really means Governor's rule.

3.12. Chief Minister

The Chief Minister is the most powerful functionary of the State Government. He is the head of the State Council of Ministers, which is the real executive. The Chief Minister, as such, can be described as the real executive head of the State Government and in his capacity exercises vast and real powers. As the leader of his State, the leader of the majority party, the head of the State Council of Ministers, the Chief Advisor to Governor and the Representative of the people of the state, the Chief minister plays a leading and powerful role in the administration of the State. His role and status in the State Political system is more or less similar to the one enjoyed by the Prime Minister in the Centre.

3.12. a. Method of Appointment:

Theoretically, Chief Minister is appointed by the Governor. But it does not mean that the Governor is free in the selection of the Chief Minister. In practice, he has no real choice open to him because after the elections, the party, which secures majority in the State Legislative Assembly, elects its leader and communicates the same to the Governor. The Governor then formally summons and designates him as the Chief Minister and asks him to form his Council of Ministers.

In case no party gets a clear majority in the State Assembly, the Governor, asks the leader of the single largest party to form the government, in case he feels it can be in a position to manage majority with the help of some other members. In most of the cases, however, if a single party is not enjoying majority in the State Legislative Assembly, then two or three parties form a Coalition Government. This group then elects its leader and communicates his name to the Governor who then summons him to form the Government. In such a situation, the Governor is left with same discretion in the choice of the Chief Minister.

3.12.b. Tenure:

Chief Minister holds office during the pleasure of the Governor, which means, so long as he enjoys the confidence of the Legislative Assembly i.e., majority support in Legislative Assembly. Legislative Assembly may pass a vote of no-confidence against Chief Minister and in such a case the Governor asks the Chief Minister to prove his majority, failing which, the Chief Minister either submits his resignation to the Governor or gets dismissed by the Governor.

3.13. Powers and Functions of the Chief Minister

The Chief Minister is the real executive head of the State. His powers and functions can be discussed as follows;

1. **Formation of the Council of Ministers:** The task of formation of the ministry begins with the appointment of the Chief Minister by the Governor. After assuming the office of Chief Ministership, Chief Minister prepares a list of persons, who are to be appointed as ministers in the council of ministers. Chief Minister

is free to determine the strength of his Ministry and also to select the ministers as per his choice. Chief Minister decides, who amongst them shall be his cabinet ministers, ministers of cabinet rank, department heads and Board heads etc.

2. **Allocation of Portfolios:** It is an undisputed privilege of the Chief Minister to allocate portfolios to his ministers. Which particular department shall be entrusted to which minister is determined by him. While doing so, he has to select duly qualified persons for allocating such portfolios. Some of the portfolios are kept by him.
3. **Reshuffling of Portfolios:** The Chief Minister has the power to shuffle his ministry. It is his privilege to shuffle and reshuffle his ministry any time and as many times as he likes. Chief Minister will review the allocation of portfolios and effect the changes where desirable.
4. **Chairman of the Cabinet:** The Chief Minister is the leader of the Cabinet. He presides over its meetings. He decides the agenda of its meetings. In fact all matters are discussed in Cabinet with the approval and consent of the Chief Minister. It is up to him to accept or reject proposals for cabinet discussion. Any minister, not finding the policy acceptable, has no choice except to submit his resignation. The ministers have to accept the leadership of Chief Minister.
5. **Removal of Ministers:** Chief Minister can demand resignation from any minister at any time. If any minister doesn't resign even on the asking of Chief Minister, the Chief Minister can either get him dismissed by the Governor or can submit his own resignation, which in fact means the resignation of his whole council of ministers. No one can remain a minister without the consent of the Chief Minister.
6. **Chief Link between the Governor and the Cabinet:** Chief Minister is the main channel of communication between the Governor and the Cabinet. He communicates to the Governor all decisions arrived at in the Cabinet and puts before the Cabinet the views of the Governor. Chief Minister keeps the Governor informed of all affairs of the government. This is the sole privilege of the Chief Minister and no other minister can, on his own, convey the decisions or reveal to the Governor.
7. **Leader of State Legislative Assembly:** All major policies of the state are announced by him on the floor of the parliament. He can address Legislative Assembly and official spokes person of his party. All major policies of the government are announced by him.
8. **To Manage and to Go-ordinate the working of various ministries:** Chief Minister has the prime responsibility of co-ordinating the work of various departments of the government. He has to see that all the ministers work as a team and help each other. It is his duty to see that no department of the government harms the functioning of the other departments of the governments. He has to ensure that all the departments of the government pull together as a team and

lend helping hand to each other in the best interests of the state. He resolves the conflicts or deadlocks between any two or more departments. His decisions supersede the decisions of his ministers. In case a disagreement persists, the concerned minister has to quit the ministry.

- 9. Power of Dissolution of the Parliament:** Chief Minister has an ultimate power of dissolution of Legislative Assembly, which means, all members hold their seats in the House at the mercy of the Chief Minister as no member likes to contest frequent elections as they involve huge expenditure and no certainty of winning every time.
- 10. Chief Minister is the ex-officio chairman of the planning commission.** Chief Minister is the main spirit behind state economic planning. He plays a leading role in all fiscal and developmental planning of the state. Chief Minister is the ex-officio chairman of the State Planning Commission. Governor always accepts the advice of the Chief Minister.
- 11. Appointment making powers:** All the major appointments and promotions are made by the Governor on the advice of the Chief Minister.
- 12. Role in Centre-State Relations:** As the real head of the State administration, Chief Minister has to maintain a good relation with the Centre. He has to use his position for securing central grants and help. A good terms with the Central government is necessary for this. He has to act as a good negotiator.

3.14. State Council of Ministers

The task of formation of the ministry begins with the appointment of the Chief Minister by the Governor. After assuming the office of Chief Ministership, Chief Minister prepares a list of persons, who are to be appointed as ministers in the council of ministers. Chief Minister is free to determine the strength of his Ministry and also to select the ministers as per his choice. Theoretically Governor formulates the State Council of Ministries but while doing so, Governor is guided by Chief Minister who decides, who amongst them shall be his cabinet ministers, ministers of cabinet rank, department heads and Board heads etc. While selecting his team, the Chief Minister can appoint even a non-member of the Assembly as a minister in the State Council of Ministers. However, such a person must secure a seat in the Legislative Assembly within a period of six months from the date of appointment as minister. In case he fails to do so, he has to resign his membership.

There are three categories of Ministers. They are:

1) Cabinet Ministers: These ministers hold independent charge of the important departments like finance, home affairs, education etc., They are responsible for determining the policies of the state. They are considered very close to the Chief Minister.

2) Ministers of State: These ministers do not attend the meeting of the Cabinet and normally do not participate in the process of policy making. They help the cabinet ministers and are attached to them in their departments. In some cases they may be

given independent charge of some departments.

3) Deputy Ministers: These Ministers are not given any independent charge, instead, they assist ministers. They are attached with either a Cabinet Minister or a State Minister or with both for assisting them in the working of their departments.

3.15. Powers and Functions of the Council of Ministers

The State Council of Ministers as the real executive exercises vast and real executive powers. The governor is a nominal executive head. The State Administration is run by the Council of Ministers in his name. All executive powers of Governor, except the one in which Governor can use his discretion as specified in the Constitution, are exercised by the State Council of Ministers. The Governor acts upon its advice, particularly under the advice of the State Chief Minister.

The powers and functions of the state council of ministers are discussed as follows:

1) Formulation of State Policies: The Council of Ministers has the responsibility of formulating and determining the policies of the State. All the policies are discussed and decided upon by it. While policy formulation is theoretical a function of the entire Council of Ministers, in practice only the Cabinet performs this task collectively. Further, each policy bears the imprint of the ideas, views and perceptions of the Chief Minister.

2) Running of Administration: The Council of Ministers runs the state administration. The ministers are responsible for running the administration of the State in accordance with the policies of the government and the laws passed by the legislature. Their duty is to see and ensure that the administration of the State is run in pursuance of the policies of the government. Each Minister has one or more departments under his control and is responsible for the administration of those departments.

3) Co-ordination Function: The Cabinet is also responsible for securing co-ordination in the working of various governmental departments. Without co-ordination among the departments, the smooth sailing of the State government cannot be ensured. The Cabinet has the responsibility to resolve conflicts and deadlocks between various departments. All the ministers are committed to accept the decisions of the Cabinet.

4) Role in Law Making: The State Council of Ministers plays a key role in the legislative sphere. It is the ministry which really decides the legislative programme. The bills moved by the ministers are mostly passed by the legislature because of the backing of the majority of the members. A private member's bill has little chance of its enactment, unless it is supported by the Ministry. When the state legislature is not in session, the Council of Ministers can satisfy its needs for law making by getting ordinances issued from the Governor. These ordinances have the force of law and can be got converted into laws from the State Legislature when it comes into session. Thus for all practical purposes, the Cabinet is an important law maker in the State and can carry out this role so long as it enjoys the support of the majority in the Assembly. The Governor summons, prorogues and dissolves the State Legislature upon the advice of the Council of Ministers.

5) Financial Functions: The Council of ministers really controls the finances of the State. It determines the fiscal policy of the State. The Cabinet formulates and implements all development policies and plans. It manages the finances of the State in accordance with the policy and budget as passed by the State Legislature. The Finance Minister, who is responsible for preparing and presenting the Budget, is a member of the Cabinet and in the conduct of the finances of State he goes by decisions of the Cabinet.

3.16. Summary:

India is Republic. The head of the Indian State is an elected President. All the executive and several other powers of the Union are vested in him. But, they are exercised by the Council of Ministers. The President is the Constitutional head. The real executive is the Prime Minister and his Council of Ministers. President is elected by an Electoral College comprising of all elected members of Union Parliament and State Legislative Assemblies. Prime Minister and his Council of Ministers are elected directly by the people. At the State level, Governor is the Nominal Head and his powers, on his behalf are exercised by Chief Minister. Governor is appointed by the President, who will act as an agent of the Central Government and Chief Minister of the State will be elected by the people of the state through elections.

3.17. Self Assessment Questions

1. Who is regarded as the first citizen of India?
2. Minimum age requirement for the post of President is _____.
3. _____ is the official residence of President of India.
4. The Chief Justice of India is appointed by _____
5. Article ____ deals with the emergency provisions.
6. Who will be the real executive in the Indian Parliamentary System?
7. _____ will be the ex-officio chairman of the Planning Commission of India.
8. Who are Cabinet Ministers?
9. Who is an executive head of the state?
10. _____ is the real executive at the State Level.
- 11.

3.18. Terminal Questions

Answer the following questions in a word or sentence each. Each question carries 1 marks.

1. Who is the constitutional head of our country?
2. Who is the present President of India?
3. What is the term of President of India?
4. What is an impeachment?
5. Which is the official residency of President of India?

6. Name the present Vice-President of India?
7. Who is the real executive of our parliamentary system?
8. Who are Cabinet Ministers?
9. Who is the nominal executive at the state level?
10. Who will be the chief architect of Council of Ministry at the state level?

Answer the following questions in a paragraph each. Each question carries 5 marks

1. What are the qualifications required to become the President of India.
2. Explain the procedure of Impeachment of the President of India.
3. State the judicial powers of the President of India.
4. Write a note on the President's rule in the State?
5. What is the meaning of collective responsibility?
6. "Prime Minister is the keystone of the Cabinet Arch". Explain.
7. Critically examine the role and position of the Governor of the state.
8. Write a note on the relations between Chief Minister and Governor.
9. Describe the role of the Chief Minister in the Ministry of a state.
10. Write a brief note on the Vice-President of India.
11. Explain the features of the Cabinet system in India.
12. Explain the positions of the Prime Minister of India.
13. Briefly explain the powers of the Governor.
14. Explain the mode of appointment, tenure, qualifications, powers and functions of the Governor of the state.
15. Describe the emergency powers of the president.
16. Describe the Composition, powers, functions and mode of functioning of the Union Council of ministers.

Answer the following questions in detail. Each questions carries 14 marks

1. Explain the mode of appointment, powers, functions and position of the Prime Minister of India.
2. Comment on the powers and functions of President of India?
3. Critically examine the powers and functions of the Chief Minister?
4. Explain the role and responsibilities of Union Council of Ministers?

3.19 Answers

Answers to 1 mark questions

1. Refer to sub section 3.3
- 2 . Refer to sub section 3.3
- 3 . Refer to sub section 3.3. (iv)
- 4 . Refer to sub section 3.3 (v)
- 5 . Refer to sub section 3.3 (vii)
- 6 . Refer to sub section 2.7.i.

- 7 . Refer to sub section 3.6
- 8 . Refer to sub section 3.8.a.
- 9 . Refer to sub section 3.11.
10. Refer to sub section 3.13.

Answers to 5 mark questions

1. Refer to sub section 3.3. (i)
- 2 . Refer to sub section 3.3. (v)
- 3 . Refer to sub section 3.4.d.
- 4 . Refer to sub section 3.4.g.
- 5 . Refer to sub section 3.8.(ii)
- 6 . Refer to sub section 3.7.
- 7 . Refer to sub section 3.10 and 3.11.
- 8 . Refer to sub section 3.13 (6)
- 9 . Refer to sub section 3.13.
10. Refer to sub section 3.5. f
- 11 . Refer to sub section 3.8.
- 12 . Refer to sub section 3.7.
- 13 . Refer to sub section 3.11.
- 14 . Refer to sub section 3.10a,b,c,d,e,f. and 3.11.
- 15 . Refer to sub section 3.4.(c) and 3.4. (g)
16. Refer to sub section 3.8 and 3.9.

Answers to 14 mark questions

1. Refer to sub section 3.6 and 3.7
2. Refer to sub section 3.4
3. Refer to sub section 3.12
4. Refer to sub section 3.8

Module-4

The Judiciary

Structure

- 4.1 Introduction
- 4.2. Learning Objectives
- 4.3 THE SUPREME COURT OF INDIA
- 4.4 Jurisdiction of the Supreme Court
- 4.5. Judicial Review
- 4.6. Writs
- 4.7. Judicial Activism
- 4.8. Lok Adalats {People's Court}
- 4.9. Public Interest Litigation
- 4.10. High Courts
- 4.11. Various High Courts – Seats and Jurisdiction
- 4.12. Jurisdiction of a State High Court
- 4.13. Summary
- 4.14 Self Assessment Questions
- 4.15. Questions
- 4.16. Answers

4.1 Introduction:

Indian judicial system is an independent and effective system. It acts as the guardian of the Constitution of India, fundamental rights and freedom of the people. We have a single and integrated Judicial System, with Supreme Court at the apex, High courts at the state level and other courts under High Courts. The Supreme Court is the highest court of the land.

In order to keep the Judicial system of our country free from the clutches of legislatures, we opted for independent judicial system. In which the appointment of the judges will be done by the President and to provide safety of job, removal procedure of judges is made very difficult – through the method of impeachment.

The Indian Constitution provides for a federal system in which the administrative powers are distributed between the Union and the States. Supreme Court deals with all cases of disputes between, union and any one or more states or between states. Supreme Court is the final interpreter of the Constitution.

4.2. Learning Objectives:

This module deals with:

- The Details of Supreme Court of India
- Judicial Review – Procedure
- Writs powers – Mechanism to protect the fundamental rights
- Judicial Activism
- Lok Adalats
- Public Interest Litigation
- High Courts
-

4.3 The Supreme Court of India

It is the supreme judicial authority in India. It is the apex level court and all final appeal in India could be made to Supreme Court. It was started along with the implementation of Constitution of India i.e., on 26th January 1950.

4.3.a. Composition: At the time of inauguration of the constitution, there was one chief justice and 7 other judges. As the work of the Court increased and cases began to accumulate, Parliament increased the number of Judges from 8 in 1950 to 31 in 2008. As the number of the Judges has increased, they sit in smaller Benches of two and three (referred to as a Division Bench) - coming together in larger Benches of 5 and more only when required (referred to as a Constitutional Bench) to do so or to settle a difference of opinion or controversy. Any bench may refer the case up to a larger bench if the need to do so arises. Hence now, Supreme Court of India comprises of, one chief justice and 30 other judges appointed by the president of India. Some times even ad-hoc judges will also be appointed for speedy clearance of cases.

4.3.b. Method of Appointment of Judges: The judges of Supreme Court are appointed by the President of India. In the appointment of other judges, the President consults the Chief Justice of the Supreme Court and while appointing the Chief Justice, the President consults other Judges. Appointments are generally made on the basis of seniority and not political preference.

4.3.c. Acting Chief Justice: When the office of the Chief Justice falls vacant or when the Chief Justice of India may be unable to perform his duties due to absence or otherwise, the President can appoint an acting Chief Justice. Even in this case also seniority would be considered.

4.3.d. Qualifications:

In order to be appointed as a Judge of the Supreme Court,

- A person must be the citizen of India
- Must have served for at least five years, as a Judge of a High Court or of two or more such Courts in succession, or

- Worked as an Advocate of a High Court or of two or more such Courts in succession for at least 10 years, or
- The person must be, in the opinion of the President, a distinguished jurist.
- Provisions exist for the appointment of a Judge of a High Court as an ad-hoc Judge of the Supreme Court and for retired Judges of the Supreme Court or High Courts to sit and act as Judges of that Court.

4.3.e. Term:

Supreme Court Judges retire upon attaining the age of 65 years.

4.3.f. Removal:

The constitution provides for a difficult method of removal of Judges only on the grounds of proved misbehavior or incapacity. Judges can be removed by impeachment.

4.3.g. Salary and Allowances:

The Chief Justice of India and other judges salary are paid out of consolidated fund of India and other allowances in conformity with their position.

4.4 Jurisdiction of the Supreme Court

The supreme court of India has been vested with Original, Appellate and Advisory jurisdictions.

4.4. (i) Original Jurisdiction: The Supreme Court can directly hear several cases which cannot be heard by any other court. It has an original jurisdiction in any disputes:

- Between Government of India and one or more States or
- Between the Government of India and any State or States on one side and one or more States on the other
- Or Between two or more States, that involves any question on which the existence or extent of a legal right depends.

4.4. (ii) Appellate Jurisdiction:

The Supreme Court is the highest court of appeals in India in all civil and criminal cases. It can hear appeals against the decisions of the High courts and this constitutes its Appellate jurisdiction. The appellate jurisdiction of the Supreme Court can be invoked by a certificate granted by the High Court in respect of any judgement, decree or final order of a High Court in both civil and criminal cases, involving substantial questions of law as to the interpretation of the Constitution.

In **Civil Cases** – The following civil cases may be appealed to supreme court for the final judgement in the following cases: - if the High Court concerned certifies : (a) that the case involves a substantial question of law of general importance, and (b) that, in the opinion of the High Court, the said question needs to be decided by the Supreme

Court.

In **Criminal cases** – an appeal to the Supreme Court may be made if the High Court (a) has on appeal reversed an order of acquittal of an accused person and sentenced him to death or to imprisonment for life or for a period of not less than 10 years, or (b) has withdrawn for trial before itself any case from any Court subordinate to its authority and in such trial has convicted the accused and sentenced him to death or to imprisonment for life or for a period of not less than 10 years, or (c) certified that the case is a fit one for appeal to the Supreme Court. Parliament is authorized to confer on the Supreme Court any further powers to entertain and hear appeals from any judgement, final order or sentence in a criminal proceeding of a High Court.

In **Constitutional Cases** – Constitutional cases involving substantive point of law requiring the interpretation of the Constitution can be appealed in the Supreme Court if the High Court certifies that the case involves a substantial question of law as to the interpretation of the Constitution.

4.4. (iii) Jurisdiction in respect of Fundamental Rights:

Article 32 of the Constitution grants an extensive original jurisdiction to the Supreme Court in regard to enforcement of Fundamental Rights. It is empowered to issue directions, orders or writs, including writs in the nature of *habeas corpus*, *mandamus*, prohibition, *quo warrant* and *certiorari* to enforce them.

4.4. (iv) Advisory Jurisdiction: The Supreme Court has special advisory jurisdiction in matters which may specifically be referred to it by the President of India. It generally advises President on any legal matters.

4.4. (v) Jurisdiction of Electoral Disputes: All disputes involving the election of the President and the Vice-President are heard directly by the Supreme Court.

4.4. (vi) Power to Interpret and protect the constitution and the power of Judicial review: The constitution is the supreme law of the land and the Supreme court acts as the final interpreter of the constitution. It has the power to reject any law of the legislature or the executive, which is unconstitutional, despite it has been approved by Lok sabha, Rajya Sabha and signed by the president. Any law which is against the provisions mentioned in constitution will be declared as Ultra Vires and such law will be ceased by the supreme court. Hence Supreme Court is also called as the protector of the constitution. This power of the supreme court is called as Judicial review.

4.4. (vii) Court of Record: All the decisions of the Supreme Court are recorded and other courts uses them as the reference. Records of the Supreme Court are admitted as final evidences and cannot be questioned when these are produced and referred to in any other court.

4.4. (viii) Power to review its own judgements: The Supreme Court has the power to review its own decisions.

4.4. (ix) Other Functions:

- It has power to make rules regarding the functioning and procedures to be followed by other courts.
- The Supreme Court, with the approval of the President, can lay down the conditions of service of its employees.
- The President can take action, remove any member of UPSC but only when the Supreme Court finds them guilty of misbehaviour.
- When the office of the president falls vacant, and if vice president is also not available, the Chief Justice of India takes over as Acting President.

4.5. Judicial Review

It is the power of the Supreme Court to interpret the Constitution and to declare acts of legislature, executive or administrative void, if framed against the provisions mentioned in the Constitution. Any law framed by the Legislature, despite having been approved by both Lok Sabha, Rajya Sabha and President of India, found to be against the written constitution, will be nullified by Supreme Court. This ultimate power of the court is known as Judicial Review.

Judicial Review is not automatic. The court cannot conduct judicial review on its own. It is only when any act is challenged before a court either specially or in the process of litigation, that the court conducts judicial review. Further while rejecting any act as un-constitutional, the court has to demonstrate its unconstitutionality by stating the constitutional provisions violated by it.

The following articles of the Constitution provide a constitutional basis to the system of Judicial Review:-

Article 13: The Supreme Court has the power to scrap any law which is against Fundamental Rights.

Article 32: This article confers the right to move to the Supreme Court for getting enforced the Fundamental Rights enshrined in Part III of the Constitution.

Article 131 & 132: Deals with original and appellate jurisdiction of the Supreme Court respectively. These include the power to settle Centre-State disputes between or among States and the power to interpret the Constitution. In the exercise of these powers, the Supreme Court exercises the power of Judicial Review.

Article 226: Empowers State High Courts for protecting the Fundamental Rights of the people

Article 246: Supreme court has been assigned the power to decide all cases of Union-State disputes over the division of powers.

4.5 (a) Features of Judicial Review in India

- Both the Supreme Court and High Courts exercise the power of Judicial Review. But the final power to determine the constitutional validity of any law is in the hands of the Supreme Court.
- Judicial Review can be conducted with respect to all Central and States laws, the orders and ordinances of the executives and constitutional amendments.
- Judicial Review applies only the questions of law. It cannot be exercised with respect to political issues.
- Judicial Review is not automatic. The court cannot conduct judicial review on its own. It is only when any act is challenged before a court either specially or in the process of litigation, that the court conducts judicial review. Further while rejecting any act as unconstitutional, the court has to demonstrate its unconstitutionality by stating the constitutional provisions violated by it.
- If Supreme Court decides a law as constitutionally invalid, the law ceases to operate with effect from the date of the judgments.
- If only some parts of the law is invalid, only invalid parts becomes non-operative and other parts continue to remain operative.
- Supreme Court can revise its own earlier decisions.

4.6. Writs

For the effective implementation of fundamental rights – there should be a mechanism, which protects these Fundamental Rights. Hence the constitution has guaranteed in Article 32, the right to the people to appeal to the High court or to the Supreme Court for the enforcement of the Fundamental Rights.

The Fundamental Rights will become meaningless, if there is no effective mechanism to check the enforcement of the rights. Hence for the effective enforcement of Fundamental Rights, the Supreme and the High courts are allowed to issue 'Writs'. Basically 'Writ' is a legal instrument, designed to protect the fundamental rights. There are 5 types of Writs. They are:

- I. **Habeas Corpus:** It is a Latin term, which means 'You may have the body'. It is a direction of the court to person who has been detaining another person. It directs the detaining person to bring the detained person in the court for explaining the grounds of his detention. It means that the detained person should be produced before the court, so that the court may examine whether the detention is lawful or unlawful. In case, if the detention is proved unlawful, the court may set him free. However it is not admissible in cases of persons who stand detained under any preventive detention law like MISA, TADA, POTA, etc..
- II. **Mandamus:** It is a Latin term, which means 'We Order'. It is an order issued by the court, to a person or to a body to do that, which is his duty to do. If an official or a person fails to perform his allotted duty, then the court will command him to perform a duty. This writ is issued mostly when some public servant has failed to

perform his duty.

III. Prohibition: The Writ of Prohibition is issued, to stop an inferior court to function beyond its jurisdiction. Then the Superior court issues Prohibition to stop the lower court to Proceed with the case. Example: Prohibiting a Judge from hearing a case in which he is personally interested.

IV. Quo Warranto: If a person is performing a function, which he is not lawfully entitled to, then the court may stop that person through the writ of 'Quo Warranto' from exercising that function. For example: a Police Sub Inspector solving a case himself and judging the situation.

V. Certiorari: This writ is issued by the Upper Court, if it wants some additional information or records from a Lower Court. It may be issued asking a lower court to send to the higher court the records and the proceedings in some case, so that the superior court may be able to deal with the case more effectively.

The difference between Prohibition and Certiorari is that – under Prohibition, the lower court is asked to stop dealing with a case, whereas under Certiorari the superior court asks the lower court to supply it with some information, records and proceedings about a particular trail.

4.7. Judicial Activism

It is a pro-active approach of the judiciary towards prevailing socio-economic political-administrative conditions in the country. It aims at due implementation of laws, policies and programmes by the executive. It acts as a guardian of law by exercising check on executive and legislature.

Supreme Court is coming out with judicial decisions and directives aimed at the protection of public interest and human rights by giving directions to the bureaucracy and police. Supreme Court is using its power to deliver judgements, decisions and opinions and giving directions to the public officials for checking environmental pollution, illegal constructions, encroachments on public property and makes the government and bureaucracy more transparent and responsive to public needs and demands for more efficiency and action. It is trying to activate government, administration and creates awareness amongst public against corruption and other social evils. Apart from this Supreme Court has initiated several CBI probes against persons, public servants alleged to have been involved in several scams and acts of indiscretion.

4.8. Lok Adalats {People's Court}:

During the early 1980's, some the jurists came out with the idea of holding Lok Adalat in the interest of speedy and inexpensive justice. In Lok adalat such disputes, where parties ready to compromise, will be settled out of court. This applies even for criminal cases also.

- Lok Adalat is normally attended by sitting or retired judge of Supreme Court or high court, one or two other judges, eminent lawyers etc., Formal procedures are

dispensed with, where layers don't argue the cases, even witness are not examined.

- Lok Adalat is an assembly of elders which tries settlement. This saves money, time and botheration.

4.9. Public Interest Litigation

- Public Interest Litigation - the concept was developed by two Supreme Court judges namely Justice P.N. Bhagwati and Justice Krishna Iyer.
- Before we proceed with PIL, let us understand how litigation begins? As per the customs and established legal practice, litigation can be started only by an affected person. For example: Civil cases may be filed either by a tenant or a land lord in case of rent control, In case of matrimonial problem, divorce case may be filed either by husband or by wife. With regard to the partition of their parents, property by one of the brother's against the others and similarly by a money lender who is neither getting interest nor the money back.
- In case of criminal matter, the affected person files a case in the police station and the police arrests the accused and prepares the first information report (FIR) and registers the case in the court.
- In both the cases the court takes up the issue and solves the case according to the prescribed procedures.
- But in a country like India, where majority of the people are poor and uneducated, they mayn't approach the court of law for justice even if they are affected many times, as they don't have knowledge, time, money and energy. In such cases justice remains evasive. In order to overcome this drawback PIL concept was developed.
- According to this system, any person (even an unconcerned person, an advocate, an NGO or a social activist) might write an ordinary letter even on a post card, to the chief justice and he may draw the attention of the court towards the matters of public importance. If the court is convinced that the complaint concerns a matter of public interest it will take it up and will decide the case.

4.10. High Courts

India's unitary judicial system is made up of the Supreme Court of India at the national level, for the entire country and the 21 High Courts at the State level. These courts have jurisdiction over a state, a union territory or a group of states and union territories. Below the High Courts are a hierarchy of subordinate courts such as the civil courts, family courts, criminal courts and various other district courts.

Each state is divided into judicial districts presided over by a 'District and Sessions Court'. District Court deals with civil cases, and a Sessions courts deals with criminal cases. These courts are the highest judicial authorities below a High Court of the State. Below the District and Session Courts, are courts of civil jurisdiction, known by different names in different states.

Under Article 141 of the Constitution of India, all courts in India which includes High

courts are bound by the judgments and orders of the Supreme Court of India by precedence.

4.10.(a) Composition:

The High Court of the State consists of a Chief Justice and such other Judges as the President of India may deem it necessary for that State. The number of Judges varies from 3 in Sikkim High Court to 95 in Allahabad High Court. The Constitution also provides for appointment of adhoc-judges, for a period of not exceeding two years to meet the rush work in a High Court.

4.10.(b) Appointment:

Judges in a High Court are appointed by the President of India in consultation with the Chief Justice of India and the governor of the state. High Courts are headed by Chief Justice.

4.10.(c) Qualification:

- He/she should be the citizen of India.
- He/she must have held a judicial office in the territory of India for at least ten years. or
- He or she must be an advocate of a High Court or two or more such courts in succession for atleast ten years.

4.10.(d) Tenure:

High Court Judges including the Chief Justice holds office till he attains the age of 62. Before this, judge may resign if he/she so desires.

4.11. Various High Courts – Seats and Jurisdiction

The Calcutta High Court is the oldest High Court in the country. High courts which handle a large number of cases of a particular region, have permanent *benches* (or a branch of the court) established there. Smaller states with few cases may have circuit benches established. Circuit benches (known as circuit courts in some parts of the world) are temporary courts which hold proceedings for a few selected months in a year. Thus cases built up during this interim period are judged when the circuit court is in session. The following are the twenty-one High Courts sorted by name, year established, jurisdiction, seat of governance (headquarters), benches (branches), and the maximum number of judges sanctioned.

Court name	Estd.,	Jurisdiction	Seat	Benches	Judges
Allahabad High Court	1866	Uttar Pradesh	Allahabad	Lucknow	95
Andhra Pradesh High Court	1954	Andhra Pradesh	Hyderabad		39
Bombay High Court	1862	Maharashtra, Goa, Dadra and Nagar Haveli, Daman and Diu	Mumbai	Nagpur, Panaji, Aurangabad	60
Calcutta High Court	1862	West Bengal, Andaman and Nicobar Islands	Calcutta	Port Blair (circuit bench)	63
Chhattisgarh High Court	2000	Chhattisgarh	Bilaspur		08
Delhi High Court	1966	National Capital Territory of Delhi	New Delhi		36
Gauhati High Court	1948	Arunachal Pradesh, Assam, Manipur, Meghalaya, Nagaland, Tripura, Mizoram	Guwahati	Kohima, Aizwal & Imphal. Circuit Bench at Agartala & Shillong	27
Gujarat High Court	1960	Gujarat	Ahmedabad		42
Himachal Pradesh High Court	1971	Himachal Pradesh	Shimla		09
Jammu and Kashmir High Court	1943	Jammu & Kashmir	Srinagar & Jammu		14
Jharkhand High Court	2000	Jharkhand	Ranchi		12

Karnataka High Court	1884	Karnataka	Bangalore	Circuit Benches at Hubli-Dharwad & Gulbarga	40
Kerala High Court	1956	Kerala, Lakshadweep	Kochi		40
Madhya Pradesh High Court	1936	Madhya Pradesh	Jabalpur	Gwalior, Indore	42
Madras High Court	1862	Tamil Nadu, Pondicherry	Chennai	Madurai	47
Orissa High Court	1948	Orissa	Cuttack		27
Patna High Court	1916	Bihar	Patna		43
Punjab and Haryana High Court	1947	Punjab, Haryana, Chandigarh	Chandigarh		53
Rajasthan High Court	1949	Rajasthan	Jodhpur	Jaipur	40
Sikkim High Court	1975	Sikkim	Gangtok		03
Uttarakhand High Court	2000	Uttarakhand	Nainital		09

4.12. Jurisdiction of a State High Court

1. Original Jurisdiction:

The High Courts of Bombay, Kolkata and Madras possess original jurisdiction in hearing civil as well as criminal cases involving a property of the value of Rs. 20,000/- or more. This is an exclusive right enjoyed by these three High Courts.

Under Article 226, the High Courts have been empowered to issue Writs in order to enforce fundamental rights.

All High Courts possess original jurisdiction in cases relating to divorce, will, admiralty and contempt of the Court.

2. Appellate Jurisdiction:

In Civil Cases – In civil case appeal to the High Court lies at the decision of a district court. Appeal can also be made from the subordinate court directly, provided the dispute involves a value higher than Rs. 5,000/- or on a question of law. When a subordinate court decides a case, 2nd appeal can be made to the High Court.

In Criminal Cases – If the session court has given a punishment of 4 years or more, or if Capital punishment or a death sentence, then appeal may be made to High Court.

3. Court of Record:

All the decisions of the High Court are recorded and other courts use them as the reference. Records of the High Court are admitted as final evidences and cannot be questioned when these are produced and referred to in any other court.

4. Judicial Review:

Any law or ordinance made against the provisions mentioned in the Constitution of India, High Court can declare them 'Ultra Vires' and such law ceases to be in operation.

5. Certification:

In most of the cases decided by High Court, the appeal can go to the Supreme Court when it is certified by the High Court that such an appeal can be made. As such, most of the cases appeal to the Supreme Court depend upon the issue of a Certificate by the High Court.

6. Administrative Powers:

- The High Court has the power to superintend and to control all the courts subordinate to it. It ensures proper working of these courts.
- It can issue general rules regulating the practice and proceedings of subordinate Courts.
- It can ask for the details of the proceedings of the Sub-ordinate Courts.
- It can transfer any case from one court to another court and can even transfer the case to itself and decide the same.
- It has the power to investigate or enquire into the record or other connected documents of any court subordinate to it.
- The High court has the power to appoint its administrative staff and determine the salary, allowances and other conditions of service.
- The appointment, promotion and posting of the District Judges is made by the Governor in consultation with the High Court. Judges of other subordinate courts are appointed by the Governor according to the recommendations of the State Public Service Commission and the High Court.

4.13. Summary:

India has a single and integrated Judicial System, with Supreme Court at the apex, High courts at the state level and other courts under High Courts. The Supreme Court is the highest court of the land. The Supreme Court and High Court of our land act as a guardian of Fundamental Rights and empowered to issue 'Writs'. More over, we have federal form of government, in which, the administrative powers are distributed between the central and the state government. Any disputes between state and state or state and central will be resolved by the Supreme Court. Apart from this Judicial Review power of Supreme Court makes it as a protection of Indian Constitution. Any laws made

against the provisions mentioned in the constitution, the Judiciary declares them as 'Ultra Vires', after which it ceases to be in operation.

4.14. Self assessment Questions

1. When the Supreme Court of India stated functioning?
2. What is the retirement age of Supreme Court Judge?
3. _____ is the supreme interpreter of the constitution.
4. Article ____ deals with Writs.
5. Expand PIL.
6. _____ is the oldest High Court in the Country.
7. Which High Court has the maximum number of Judges.
8. The power of Judiciary to check the legislature of the country is known as _____.
9. _____ deals with those disputes, in which parties are ready to compromise and to settle it out of court.
10. If a person detained, is not produced before the court of Law, _____ writ is issued.

4.15. Terminal Questions

Answer the following in a word or sentence each. Each carries 1 mark.

1. When was Supreme Court of India Established?
2. Who appoints the judges of Supreme Court of India?
3. What is the term of Supreme Court Judges?
4. What is 'Writ'?
5. What is Lok Adalat?
6. State the number of High Courts in India.
7. Define Public Interest Litigation.
8. What is the retirement age of High Court Judges?
9. Who is the present Chief Justice of Supreme Court of India?
10. Who appoints the Judges of High Court of States?

Answer the following in a Paragraph each. Each Question carries 5 marks

1. Explain the role of the judiciary as a Guarding of fundamental rights.
2. Explain the organisation of Supreme Court of India.
3. Explain the significance of judicial review.
4. State the procedure of removal of the judges.
5. What is meant by public interest litigation (PIL)?
6. What are Writs?
7. Examine 'judicial activism' in India.
8. Write a note on the Public Interest Litigation?
9. Narrate the various functions of High Courts?

Answer the following in detail. Each question carries 14 marks

1. Explain the Jurisdiction of Supreme Court.
2. What do you mean by Judicial Review? Explain its features?
3. Explain various 'Writ' powers and their importance.
4. Examine the composition, Appointment procedure, qualifications, Tenure and jurisdiction of State High Court.

4.16 Answers**Answers for 1 mark questions**

1. Refer to sub section 4.3
2. Refer to sub section 4.3.b.
3. Refer to sub section 4.3.e.
4. Refer to sub section 4.6
5. Refer to sub section 4.8
6. Refer to sub section 4.10.
7. Refer to sub section 4.9.
8. Refer to sub section 4.10. (d)
9. Justice Sarosh Homi Kapadia
10. Refer to sub section 4.10.(b)

Answers for 5 marks questions

1. Refer to sub section 4.6
2. Refer to sub section 4.3.a.
3. Refer to sub section 4.5
4. Refer to sub section 4.3.f and 3.3.(v)
5. Refer to sub section 4.9.
6. Refer to sub section 4.6
7. Refer to sub section 4.7
8. Refer to sub section 4.9
9. Refer to sub section 4.12.

Answers for 14 marks questions.

1. Refer to sub section 4.4
2. Refer to sub section 4.5 and 4.5. (a)
3. Refer to sub section 4.6
4. Refer to sub section 4.10 and 4.12.

Module-5

Issues

Structure

- 5.1 Introduction
- 5.2 Learning Objectives
- 5.3. Indian Federalism
- 5.4. Human Rights And Environmental Protection
- 5.5 Functions And Powers Of NHRC
- 5.6. Environmental Protection In India
- 5.7 Special Provisions Created In The Constitution To Protect Dalits And Backward Classes
- 5.8 Special Privileges For Children
- 5.9 Special Privileges Created in the Constitution for the protection of Women
- 5.10. Secularism In India
- 5.11. Summary
- 5.12. Self Assessment Questions
- 5.13. Terminal Questions
- 5.14. Answers

5.1 Introduction:

The Constitution of India is a unique combination of several important features. During normal times, we will have federal form of government, in which the administrative powers are distributed between the central and state governments, during emergency it will be unitary form of government in which all administrative powers are concentrated in central government. Some of the provisions may be amended easily, whereas amendment procedures for some of the provisions are very difficult. Hence to understand various issues related to this is very important.

5.2 Learning Objectives:

This Module deals with:

- Federalism – distribution of Legislative, Administrative and Finance powers of the country.
- Human Rights-features
- Environmental Protection – various initiatives
- Special provisions for SC's, ST's, Women and Children and Social justice.
- Secularism observed in India.

5.3. Indian Federalism

The Government of India (referred to as the *Union Government*) was established by the Constitution of India, and is the governing authority of a *federal union* of 28 states and 7 union territories.

Federalism is a system in which the power to govern is shared between national and provincial/state governments, creating what is often called a **federation**. Proponents are often called federalists.

Part XI of the Indian constitution defines the power distribution between the Centre and the States in India. This part is divided between legislative and administrative powers.

5.3.a. Legislative powers

The power of the states and the Centre are defined by the constitution and the legislative powers are divided into three lists, namely; Union list, States list and Concurrent list.

5.3.a.(i) Union list

Union list consists of 97 items on which the parliament has exclusive power to legislate. Some of the items are defence, armed forces, arms and ammunition, atomic energy, foreign affairs, war and peace, citizenship, extradition, railways, shipping and navigation, airways, posts and telegraphs, telephones, wireless and broadcasting, currency, foreign trade, inter-state trade and commerce, banking, insurance, control of industries, regulation and development of mines, mineral and oil resources, elections, audit of Government accounts, constitution and organisation of the Supreme Court, High Courts and union public service commission, income tax, custom duties and export duties, duties of excise.

5.3.a.(ii) States list

The state list consists of 66 items and individual states have exclusive authority to legislate on items included in this list. Some of them are - public order, police, administration of justice, prisons, local government, public health and sanitation, agriculture, animal husbandry, water supplies and irrigation, land rights, forests, fisheries, money lending, state public services and state Public Service Commission, land revenue, taxes on agricultural income, taxes on lands on buildings, estate duty, taxes on electricity, taxes on vehicles, taxes on luxuries.

5.3.a.(iii) Concurrent list

Concurrent list consists of 47 items. Both Union and State Government can make laws of these subjects. Uniformity is desirable but not essential on items in this list. Some of them are Marriage and divorce, transfer of property other than agricultural land, education, contracts, bankruptcy and insolvency, trustees and trusts, civil procedure, contempt of court, adulteration of foodstuffs, drugs and poisons, economic and social planning,

trade unions, labour welfare, electricity, newspapers, books and printing press, stamp duties.

The parliament and the state legislature have equal power to make laws on these subjects. As long as parliament doesn't pass a law on these subjects the state legislature may pass any law but once parliament enact a law on such subjects, the state law will be overruled.

The entire scheme of the distribution of Legislative powers displays a strong tendency towards a high degree of centralisation.

The Constitution vests the residuary powers of legislation with the Union.

Union Parliament can use some power over the State List in some cases

- **In the National Interest (Article 249):** National Interest has been defined but whenever parliament feels that it is necessary to pass laws on state list matters in public interest, it is covered under this Article.
- **During proclamation of emergency (Article 250):** While proclamation of emergency is in operation, Parliament shall have the power to make laws for whole or any part of the territory of India on any matter in the state list. Here emergency includes period of internal disturbances and external aggression etc.
- **On request of two or more states (Article 252):** If there is a dispute between two or more states and they pass a resolution in their assemblies to refer the matter to Parliament for any law on state list matters concerning them, the Parliament can pass law.
- **Legislation for enforcing international agreements (Article 253):** If there is any international agreement between foreign country and India, and to give effect to such agreement if a law is to be passed, the Parliament can pass the law even if the matter is contained in state list.
- **Breakdown of Constitutional machinery in a state (Article 356):** parliament can make law with respect to all state matters as regard the state in which there is breakdown of constitutional machinery and is under President Rule.

5.3.b. Financial Relationship:

In the federal form of government, both the central and the state governments function simultaneously for the development and for the welfare of the people. But for any kind of developmental activities finance is one of the essential pre-requisite. Hence, in order to ensure unity of the nation and the balanced development of different region, the constitution has made provision for the establishment of the 'Finance Commission' to decide, dictate and to control the financial relationship between the central and the state government. The finance commission will be appointed by the President for every 5 years.

Some of the provisions included in the constitution which deals with the distribution of finance between the central and the state governments are: -

Article 268:- Deals with the duties imposed by the union but collected and used by the

states (Stamp duty, Land Revenue, tax on entertainment, amusement, Excise duty on medicine.....etc).

Article 269:- Taxes imposed and collected by the Union but assigned to the states (Duties in respect of succession of property other than agricultural land, Taxes on Railway freight and fares, Taxes on stock exchange and future markets, tax on advertisements.....etc.)

Article 270:- Taxes imposed and collected by the union and will be distributed between the union and the states. (Taxes on income other than agricultural income and corporation tax). The proportion of share will be determined by Finance Commission.

Article 271:- The Union government imposes surcharge on certain goods and keeps the revenue for itself.

Article 275:- According to this article the constitution empowers the Finance Commission to decide the amount, which the union has to grant it to different states from consolidated fund of India. Apart from this, the States can make requests for borrowing for their specific projects. The Constitution makes special provisions for giving grants-in-aid to schemes that promotes the welfare of Scheduled Tribes and Backward people.

Article 360:- During the proclamation of Financial Emergency, the President can suspend the provisions relating to the division of the revenue between the Union and the States and grants-in-aid to the States. During such an emergency, the States are left only with revenues available under the State List and the other resources can be controlled as per the wishes of the Centre.

Article 280:- Along with the above said functions the finance commission also suggests several measures to the President, which are required for the sound financial system of the country.

Planning Commission is the central body which formulates plans and allocates plan resources and objectives to the States. The States are dependent upon the Union even for establishing heavy and capital goods industries within their territories.

5.3.c. Administrative Relationship:

India follows federal form of government, where the administrative powers of the country has been divided between the central and the state government. In order to avoid clashes between the central and the state government in the administrative field, the constitution framers have included a detailed provision. The objective behind all these provisions is very obvious i.e., the constitution framers wanted to have a strong central government and a relatively weak state governments. Part XI of the Constitution deals with this.

According to **Article 256:** The executive power of every state is to be exercised in such a way as to ensure compliance with the laws made by the union parliament. Further the union executive can give directions to state executive.

Even the state legislature also enjoys the power to make laws on subjects mentioned in the concurrent list. The union parliament enjoys more power in this regard i.e., in case of conflicts the union parliament will decide the final verdict.

According to **Article 257**: The union can give directions to the state regarding:

- The construction and maintenance of means of communication which are of national and military importance.
- The protection of railways and unions ultimate power to declare national highways.

Whenever the centre gives such directions to the state, the state government has to incur extra expenditure. These kind of expenditure incurred by the state will be compensated by the central government.

To facilitate smooth working of the administrative machinery of the country the constitution empowers the President to appoint inter-state council whenever necessary.

In order to have uniformity in the Administration, we have only one constitution for the entire country. We have single citizenship.

Article 250: During normal time India will have federal system but during emergencies it becomes unitary form of government, where all the state government will loose their power.

The heads of the states-Governors- are appointed by the President. Governor acts as an agent of the Centre.

To maintain minimum common administrative standards All India Services like IAS, IPS, IFS have been created and these members will be normally selected by the central government but they will be placed in key administrative positions in the state.

High court – which is the supreme judicial body at the state level- judges will be appointed by the President.

The comptroller and Auditor-general of India has an organisation managed by the officers of the Indian Audit and Accounts service – a central service, who are concerned not only with the accounts and auditing of the union government but also of the states.

The Election Commission, a body appointed by the President, is incharge of conducting elections – not only for Union but also for States.

Any bill passed by the state legislature becomes a law only after the consent of the governor and governor is an agent of the central government. Governor can reserve a bill for President's consideration.

The Chief-Justice of India has the power to resolve the conflicts between states & between state and the union.

Rajya Sabha has the power to create or abolish an All India Service. Rajya Sabha can do this by passing a resolution supported by 2/3rd majority of the members present and voting.

Article 356 empowers the President to declare constitutional emergency in any state. In such case, the State comes under the President's rule and the Governor of the State starts acting as the real executive. The State administration comes under the centre.

5.4. HUMAN RIGHTS AND ENVIRONMENTAL PROTECTION

In the first half of the 20th century, mankind had to face two world wars in which the rights to life and freedom were violated. Naturally after the end of the Second World War in 1945, the international community decided to work for securing and protecting the human rights of all the people in the world. The UN Charter expressed the resolve to protect human rights and freedom of all. On 10th December 1948, the adoption of UN Declaration of Human Rights started the process of securing the right and freedoms of all the people in the world. Several nations followed the step and undertook the responsibility to preserve, secure, protect and defend the human rights and freedom of their people.

5.4.a. National Human Rights Commission

With a view to strengthen the process of the protection of human rights in India, the government of India decided to set up a national level an autonomous National Human Rights system. On 29th September, 1993, the President of India promulgated an ordinance for setting up a National Human Rights Commission to inquire into complaints of violations of human rights against public servants in every part of the country. On 9th December 1993, the Protection of Human Rights Bill was introduced and was accepted by Union Parliament. Through this, National Human Rights Commission was established.

5.4.a.(i) Composition:

NHRC comprises of one Chairperson and four other members. They are:

- (a) The Chairman of the NHRC must be a retired Chief Justice of India.
- (b) One member has to be either a sitting or a retired Judge of the Supreme Court of India.
- (c) One member has to be either a sitting or a retired Judge of any High Court.
- (d) Two members are to be known human rights activists and have an experience of Human rights protection work.

Besides NHRC has a Secretary General who looks after the administrative work of the Commission.

5.4.a.(ii) Appointment:

The Chairperson and the members of the NHRC are appointed by the President of India. The sitting judge of the Supreme Court or of a High Court is to be appointed as its member, on the advice of the Chief Justice of India.

5.4.a.(iii) Tenure:

The Chairperson and other members of the NHRC have a tenure of five years. However, any member who attains the age of 70 years before the completion of his tenure, has to retire from his membership. After retirement, no member can secure any appointment

under the Central or any State Government.

5.4.a.(iv) Method of Removal of Members of NHRC:

The President has the power to remove the chairperson or any other member of the NHRC even before the expiry of his full term. However, this can be done only on two grounds: (a) proven wrongful act/behavior (b) Incapacity of the member. Before removing any member, the President of India has to get an inquiry done by the Supreme Court of India. He can remove the member only when the Supreme Court finds him guilty on either ground. In case the Supreme Court does not hold him guilty, the President cannot remove him.

If a member of NHRC becomes bankrupt or gets employment during the course of his tenure or he becomes physically or mentally ill or gets imprisoned in a case which in the eyes of the President, involves moral degradation, the member will be removed by NHRC.

5.4.a.(v) Seat of the commission:

The headquarters of NHRC is located at Delhi.

5.5 Functions and Powers of NHRC:

1. To investigate complaints regarding the violations of human rights. For this purpose, the NHRC acts either *suo moto* or upon the complaints or petitions received by it.
2. To investigate the failure on the part of any public official in respect to his duties for preventing a violation of human rights.
3. To become a party in any case involving a violation of Human Rights which is being heard by the court of law. It can do so, however, with the permission of the Court.
4. To visit jails and to examine the conditions of living of the persons undergoing imprisonment or detention. To make recommendations for improving their living conditions.
5. To review the steps taken under the Constitution or laws for the protection of human rights, and to make recommendations for making such steps more effective.
6. To review all such acts/facts regarding the activities of the terrorists and militants which pose hindrances in the way of the protection of human rights, and to give suggestions for removing such hindrances.
7. To study and analyse all international treaties and conventions with a view to make recommendations for getting them implemented in the country.
8. To encourage research in the area of human rights.
9. To spread knowledge among various classes of people about their human rights.
10. To encourage the activities and role of non-governmental voluntary agencies in the sphere of the protection of human rights.
11. To prepare necessary programmes for the development of human rights.
12. In May 2004, the government of India vested the NHRC with the power to grant

interim relief in cases relating to human rights violations by the armed forces. In this respect NHRC follows a specific procedure:

- (a) Upon a complaint from an aggrieved person, the NHRC is to seek a report from the government.
- (b) After getting such a report, the NHRC is to send its own observations and recommendations to the government. In case the Commission says that there is no need for further investigation, it can end the case then and there.
- (c) The government is required to send to the Commission a report on the action taken by it on the basis of the observations/recommendations made by the NHRC.

In case the investigations reveal a violation of human rights, the NHRC can ask the concerned government or official to carry out a particular action which may be deemed to be fit by the commission. Many times NHRC will move to Supreme Court or High Court to get the required writ issued.

NHRC is a statutory and autonomous body. It has the status and power of a civil court and all its actions are supported by law.

5.6. ENVIRONMENTAL PROTECTION IN INDIA

United Nations Development Programme (U.N.D.P.) established BRUNDTLAND COMMISSION in 1983, in order to study the problems of the environment. This commission made a study for four years and submitted to U.N.D.P. in 1987 a report known as "Our Common Future". This was the first time when the concept of Sustainable Development was generated.

The U.N.D.P. annually publishes a report called the "Human Development Report".

Earlier, the economic development of a country was measured in terms of its National Income or Per Capita Income. But with the publication of Human Development Report–1994, a new criterion was set up to assess economic development.

The Human Development Report (1994) says, *"Economic growth is not an end in itself, it is only a means through which a country protects the life and opportunities of the present generation as well as the future generation. Economic growth must protect the natural system on which all life depends."*

The salient features of this report are as follows:

1. *This report talks about protecting the lives of both the present and the future generation:* This report says that every country should use its natural resources optimally and not over-exploit and exhaust it, since the future generation also has a right on it.

2. *Protecting the natural system on which all life depends:* U.N.D.P. says that earning national income should not be the only concern of any country, but protecting our natural resources should also be taken into account. We should not exploit our natural resources beyond its natural recovery rate. U. N. D. P. also makes a sincere effort to find solutions to the environmental problems which are universal in nature.
3. *It promises of opportunities which are essential for improving capabilities:* If opportunities are provided to people, they can develop their capabilities and apply those capabilities into various fields like political, economic, social etc. It promises both the present and the future generation of those opportunities, which are essential for improving capabilities.

Objectives:

- ✎ Accelerating economic growth: Improving the national income by using natural resources but not by over exploiting it.
- ✎ Economic Development: A part of the National Income earned by any country should be used for further economic development. (i.e., improving the Standard of Living, Quality of life, Human Development Index etc.)
- ✎ Protecting and preserving natural resources: It tries to ensure that the future generations also get, if not more, at least as much as the present generations has inherited from the past.
- ✎ Bring about inter-Generational Equality: It says that both the present and future generation should have equal shares of natural resources. Both the generations should have equal opportunities. Even it is our ethical duty to protect natural resources and to promise the future generations with the same kind of opportunities what we are enjoying.

Hence, protection of Environment continues to be a priority item on the Indian agenda for 21st century. A very healthy and positive development in the drive towards environment protection has been the increasing human consciousness in favour of this primary objective. The concept of sustainable development, which has found a universal support, also reflects the human commitment to check environmental pollution and to develop and adopt environment-friendly technologies.

In India the Ministry of environment and forests is the nodal agency for planning, promotion, coordination and overseeing the implementation of various environmental and forestry Programmes. The Ministry has also been designated as the nodal agency for the United Nations Environment Programme (UNEP), and the International Centre for Integrated Mountain Development (ICIMOD) and looks after the follow-up of the United Nations' conference on environment and development (UNCED). The Ministry is also entrusted with the issues relating to multilateral bodies such as the Commission on Sustainable Development (CSD), Global Environment Facility (GEF) and of regional

bodies like Economic and Social Council for Asia and Pacific (ESCAP) and South Asian Association for Regional Cooperation (SAARC) on matters pertaining to environment. Conservation and survey of flora, fauna, forests and wildlife, prevention and control of pollution, afforestation and regeneration of degraded areas and protection of environment are the mandates of Ministry. These objectives are sought to be fulfilled through environmental impact assessment, eco regeneration, assistance to organisation implementing environmental and forestry programmes, promotion of environmental and forestry research, education and training, dissemination of environmental information and international co-operation and creation of environmental awareness among all. India has been regularly monitoring the impact of development environment, and the nature level and extent of environmental pollution.

Several steps have been initiated in the direction of prevention and control of Environmental Pollution.

5.6.a. Environment Impact Assessment Programme: This programme was introduced in India in 1978. A notification was issued in January 1994 – makes Environment Impact Assessment Programme statutory for 29 categories of developmental projects under various sectors such as industrial, mining, irrigation, power, transport, tourism, communication etc., Expert Committees are constituted for different sectors, namely, Industry, Mining, Thermal Power, Nuclear Power and River valley projects, for providing expert inputs. After detailed scrutiny and assessment, the appraisal committees make their recommendations for approval or rejection of the project. Depending on the nature of the project, certain safeguards are recommended. For monitoring and timely implementation of safeguards suggested, six regional offices of the Ministry have been set at Shillong, Bhubaneswar, Chandigarh, Bangalore, Lucknow and Bhopal.

The Government has taken steps from time to time to streamline and rationalise the environmental clearance procedure by amending the Environment Impact Assessment Programme notification and by formulating policy measures.

5.6.b. Programmes for Prevention and Control of Pollution: This provides instruments in the form of legislation and regulation, fiscal incentives, voluntary agreements, educational programmes and information campaigns to prevent and control pollution of water, air and land. Since the adoption of the policy statement, the focus of activities has been on issues such as promotion of clean and low waste technologies, waste water minimisation, reuse or recycling, improvement of water quality, environment audit, natural resource accounting, development of mass-based standards, institutional and human resource development etc., the whole issue of pollution prevention and control is dealt with by a combination of command and control methods as well as voluntary regulations, fiscal measures, promotion of awareness and involvement of public. An Eco-Mark label has been introduced to label consumer products that are environmental friendly.

Under the scheme of adoption of clean technology in small-scale industries and for extending necessary technical support, training and awareness programme for personnel in Small Industry Development Organisation and for entrepreneurs are being organised. Waste minimisation circles are being established to promote group efforts in increasing productivity and improving the environmental conditions in small and medium scale industries through adoption of waste minimisation techniques. 150 Waste Minimisation Circles have been established so far in different industrial clusters. Action Plan to control pollution for various major cities have been prepared and are being implemented by the concerned State Governments.

5.6.c. Organisation and Functions of Central Pollution Control Board: The CPCB is the national apex body for assessment, monitoring and control of water and air pollution. The executive responsibilities for enforcement of the Acts for Prevention and Control of Pollution of Water (1974) and Air (1981) and Water (1977) are carried out through the Board. The CPCB advises the Central Government on all matters concerning the prevention and control of air, water and noise pollution and provide technical services for implementing the provision of the Environment (Protection) Act, 1986. Under this act, effluent and emission standards in respect to various categories of industries have been notified. Emission standards for new diesel generator set up to 800 KW and more than 800 KW were notified in May and July 2002 respectively.

17 categories of heavily polluting industries have been identified. They are cement, thermal power plant, distilleries, sugar, fertilizer, integrated iron and steel, oil refineries, pulp and paper, petro chemicals, pesticides, tanneries, basic drugs and pharmaceuticals, dye and dye intermediates caustic soda, zinc smelter, copper smelter and aluminum smelter. These units have adopted and installed adequate facilities to control pollution.

The CPCB along with State Pollution Control Boards monitors the quality of fresh water resources through a network of 507 monitoring stations located all over the country.

5.6.d. Management of Hazardous Substances: Hazardous Substances Management Division is the nodal point for planning and over seeing the implementation of policies and programmes on management of hazardous substances and chemical emergencies. The objective is to promote safe handling, management and use of hazardous substances including hazardous chemicals and hazardous wastes in order to prevent potential damage to health and environment. The activities are carried out under three thrust areas viz., chemical safety, sound management of notified to ensure environmentally sound management of hazardous substances and wastes in the country and are being implemented in association with CPCB/SPCBs/PCCs and regular monitoring is carried out by the Ministry.

5.6.e. National River Conservation Directorate: The activities of Ganga Action Plan

(GAP) were initiated in 1985. The steering committee of National River Conservation Authority (NRCA) reviewed the progress of the GAP and necessary correction on the basis of lessons learnt and experience gained from GAP were applied to the major polluted rivers of the country under the National River Conservation Plan.

5.6.f. National Afforestation and Eco-development Board: The national afforestation and eco-development board was set up in August 1992 for promoting afforestation, tree planting, ecological restoration and eco-development activities in the country. Special attention is being given to regeneration of degraded forest areas and lands adjoining forest areas, national parks, sanctuaries and other protected areas as well as the ecologically fragile areas like the Western Himalayas, Aravalis, Western Ghats etc.,

5.6.g. National Afforestation Programme through Community Participation: This programme was launched as a component of 10th Five Year Plan. All afforestation schemes of the ministry have been brought under a single National Afforestation Programme. This was implemented through decentralised Forest Development Agencies set up at the forest division level. The forest development agencies are the confederation of Joint Forest Management Committees at the village level to provide an organic link between the forest departments and the grass root level communities.

5.6.h. National Action Programme to Combat Desertification: Through this programme, a 20 year comprehensive National Action Programme to combat desertification in the country has been prepared. Under this programme, a regional action programme for Asian Countries has been formulated to strengthen the existing capacity of the member country parties and to network with each other for effective measures to combat desertification.

5.6.i. Environmental Education, Awareness and Information: A major initiative to include environment education as a separate and compulsory subject in the education curricula has been taken by the Ministry at all levels of formal education. Apart from this, the Ministry also organises various seminars/workshops, training programmes, eco-clubs etc., A National Environmental Awareness Campaign is organised every year. The National Museum of Natural History is set up in New Delhi in 1978, is entrusted with promotion of non-formal education in the area of various aspects of environment and to conduct temporary exhibitions and a number of educational programmes and activities for school children, college youth and the general public.

The India Council for Forestry Research and Education, Dehra Dun is the apex body for forestry education and extension development in the country. The Indira Gandhi National Forest Academy, imparts in service training to India Forest Service professionals.

The Indian Plywood industries Research and Training Institute, Bangalore organises short term courses in the area of wood science.

5.6.j. Environmental Information System: As a decentralised information network for collection, collation, storage, retrieval and dissemination of environmental information, an Environmental Information System (ENVIS) was set up by the Ministry in 1982. This network has 25 subject oriented centres. No country can achieve sustainable development without achieving a high level of environmental protection.

5.7 SPECIAL PROVISIONS CREATED IN THE CONSTITUTION TO PROTECT DALITS AND BACKWARD CLASSES

In order to bring about equality among the people and to uplift the deprived classes, some special privileges or opportunities were included in the constitution. Some of them are:-

- **ARTICLE 15:** Prohibition of discrimination: No individual will be discriminated based on the caste, colour, birth, place, religion, language etc.
- **ARTICLE 19:** Abolition of untouchability. Now practicing of untouchability in any form or shape is a criminal offence.
- **ARTICLE 32:** Right to constitutional remedies: If any body harms the fundamental rights, then justice can be sought from the court of law.
- **The Directive Principles** sets guidelines to the government, to promote educational and economic interest of the weaker sections of the people especially of schedule caste and schedule tribes.
- **ARTICLE 330** of the constitution provides reservations in the lok sabha. The number of seats reserved will vary from time to time and it will be done in proportion to the population of the schedule tribes and schedule castes.
- **ARTICLE 335** of the constitution provides reservation in the state legislative assemblies. Eg. In Karnataka out of 224 seats in the assembly 28 seats for SC, 1 seat for ST, has been reserved. In Taluk panchayats, Zilla panchayats and Village panchayats the reservation is as follows: SC -15%, ST - 3%, other Backward Classes - 33.33%, Women - 33.33%.

This reservation is only a minimum limit but not maximum. They may contest for as many additional seats as they choose to do. The main objective behind providing this reservation in the legislative was to have the proper representation. As said by Ambedkar “the upliftment of the depressed classes is possible only through an initiative by the depressed classes themselves”. The people who wear the shoe know where the shoe pinches. Only the poor man can know what poverty is and an exploited knows what exploitation is. Hence proper representation has to be given.

- **ARTICLE 335** says that the candidate from SC and ST should satisfy the minimum educational qualifications and other criteria's prescribed for various posts of the different services under the state. Age relaxation will also be given.
- The educational institutions maintained by the state, including universities and other institutions of higher learning, certain seats has to be reserved for students belonging to SC and ST. For these candidates the government provides fee concessions and scholarships and free hostels.
- In Government and Semi-government office services rendered by SC and ST will be considered first for promotions.
- **ARTICLE 338:** According to this article the President is empowered to constitute a special commission for SC and ST. This commission investigates the matter that deals with this community and suggests several recommendations for their upliftment.

There are some of the special privileges given to Dalits and other backward castes.

5.8 SPECIAL PRIVILEGES FOR CHILDREN

In order to stop the exploitation against children, the constitution has made certain provisions to enable the children to become decent members of society and to protect their health. Some of those provisions are:-

- **As per article 21A:** The state should provide free and compulsory education for all children without discrimination. This article was included as per the 86th amendment in 2002.
- **As per article 24:** Appointing any child, below 14 years of age for work is a criminal offence.
- **According to article 28:** No child is forced to take religious instructions in schools managed by trusts and governments.
- **In part IV of the constitution, in Directive Principles, article 39** says that no child shall be forced to take up any occupation which is not suited to their age and strength.
- **Article 51A** - The Fundamental Duty - calls upon the parents and guardians, as the case may be to provide opportunity to their children and get education between age 6 to 14 years.
- A toll free Children's helpline has been started by every state government for the protection of children.

5.9 SPECIAL PRIVILEGES CREATED IN THE CONSTITUTION FOR WOMEN

In order to stop the exploitation against women, the constitution has taken several measures. Some of them are:-

- The dowry prohibition act was passed in 1961.

- In 1956 the suppression of Immoral Traffic in Women and Girls Act (SITA) was passed
- A criminal law amendment act was passed in 1983, providing punishment of rape with a minimum of 7 years of imprisonment.
- Indecent representation of women (prohibition) act of 1986 has prohibited, according to which indecent representation of women in photographs, films and advertisement is prohibited.
- In the year 1987 Sati prevention act was introduced.
- As per the 73rd and 74th amendment of the constitution reservation of 33.33% seats in the municipal corporations as well as in the rural, local, self-governing bodies i.e. 1/3 members of the local bodies must be women.
- In order to assess the changing conditions of women in different states a national commission for women has been set up during 1990's.
- A proposal of 33 % reservation for women in Lok Sabha and Rajya Sabha has been put up in the assembly.
- The 'Karnataka State commission for women' has been constituted in 1995 to study the problems faced by women in the state and for speedy justice.
- As per the maternity benefit act of 1961, the women employees who are pregnant are entitled to take 6 weeks pre-natal and 6 weeks of post-natal leave and wages will be paid for this period.
- Scanning of an embryo has been totally prohibited.
- To protect the interests of women, women police stations have been established.
- To promote women education many schools, colleges and universities have been started.
- "Mahila Sahaya Vani" has been started by the various state government for providing legal assistance for the needy women.

5.10. SECULARISM IN INDIA

The term 'Secular' was included in the preamble through 42nd Amendment. India is a secular state, in which all religion will be treated alike and no discrimination will be made between people on the basis of the religion. People are free to have faith in any religion and the state will not force the people to follow any particular religion. The state will not interfere with the religious freedom of the citizens. It prohibits levying taxes for religious purposes. Equal respect for all religions is the guiding principle of secularism. We do not have any state religion and all religions are treated equal.

Features:

1. **The Preamble:** The Preamble of the Indian Constitution declares India to be a Sovereign, Socialist, Secular, Democratic Republic and its objective is to secure Justice, Liberty, Equality and Fraternity for the people of India.
2. **Equal Citizenship and Equal Fundamental Right:** Indian constitution

makes provision for single citizenship, that is, irrespective of place of residence he or she will be considered as a citizen of India. We do not separate citizenship on the basis of state. Moreover single citizenship refers to "One man, one vote". It represents the integration of the Indian states with the rest of India. Equal fundamental rights are given to all citizens of India without any discrimination on the basis of sex, caste, religion, age etc.,

3. **Right to Equality:** Article 14 ensures equality of all citizens before law and confers equal protection of law within the territory of India. Article 16 guarantees equality of opportunity to all citizens in matters relating to employment or appointment to any office under the state. Article 17 abolishes untouchability.
4. **Right to Freedom of Religion:** Article 25 states freedom of conscience and free profession, practice and propagation of religion. Forcible conversion stands prohibited in India. Article 26 permits the establishment and maintenance of institutions for religious and charitable purposes. Own and acquired movable and immovable property and manage its own affairs in matters of religion. Article 27 states no person shall be compelled to pay any taxes for the promotion of any religion. Article 28 says that no religious instruction can be provided in any educational institution, which is wholly maintained by the state fund. No person attending any educational institution can be forced to participate in a religious worship that may be conducted in the institution.
5. **Cultural and Educational Rights to Minorities:** Article 29 & 30 of the Indian Constitution deal with this. India is a country of different languages and cultures. So the minorities are assured of the protection of their culture, language and script. Article 30 states that all minorities, whether based on religion or language, shall have the right to establish and administer educational institutions of their choice. They have the right to admit students to their institution, having their own governing bodies and to adopt their respective system of instructions. Further, the state while providing grant-in-aid to educational institutions cannot discriminate against such minority institutions. Minority institutions enjoy autonomy of operations.
6. **Universal Adult Franchise:** According to this any person (both male and female) who has attained 18 years or more than that will be given an opportunity to take part in the political affairs of the state like voting, contesting in the elections, obtaining a government job etc. They may select their representatives by casting their votes in the elections.
7. **Merit system of Recruitment:** All recruitment to civil services are made on the basis of merit which is judged through conducting of competitive examination and interviews.

5.11. Summary:

Federalism is a system, in which the power to govern is shared between national and provincial/state governments, creating what is often called as a Federation. Proponents are called as federalists. Part XI of the Indian Constitution deals with the distribution of power between the Centre and the States in India. Union List includes those subjects on which union parliament has the exclusive power to legislate. State List includes those subjects on which State government has the exclusive power to legislature and Concurrent list includes those subjects on which both Central and State governments may make rules. If they are contradictory to each other, then rules made by Central Government will prevail in existence scrapping the State rule. National Human Rights Commission strives to protect the Human Rights. Sustainable Development in relation to ecology and environment is the order of the day. Through which we aim at achieving inter generational equality. Facilities and opportunities enjoyed by the present generations should also be preserved and passed on to the future generations also. India is committed to achieve secularism – in which all religions are treated alike. Constitution includes special privileges to protect the interest of backward classes, women and children.

5.12. Self Assessment Questions

1. A system of government, in which the power to govern is shared is known as _____.
2. Those subjects, on which only Union Parliament can legislate, are included in _____.
3. _____ decides financial sharing between Union and States.
4. The Head Quarters of National Human Rights Commission is located at _____.
5. Expand UNDP.
6. Article ____ deals with the prohibition of Child Labour.
7. When was Dowry Prohibition Act was passed in India?
8. What is SITA?
9. Religious freedom is known as _____.
10. Those, who are 18 years old are given the Voting rights. This system is _____.

5.13. Terminal Questions

Answer the following questions in a word or sentence each. Each question carries 1 mark.

1. Define federalism.
2. What is Union List?

3. While article of Indian Constitution deals with the emergency provisions of President?
4. When was 'Protection of Human Rights Bill' was accepted in India?
5. Where is the head quarters of National Human Resource Commission?
6. Expand U.N.D.P
7. Which article deals with constitutional remedies of fundamental rights/
8. What does SITA stands for?
9. What do you mean by 'Secularism'?
10. Which article grants the freedom of religion to citizens of India?

Answer the following in a paragraph each. Each question carries 5 marks.

1. Write a paragraph about Union Parliament's power to make legislation over State List.
2. Narrate the financial relationship between the Union and the States?
3. Explain the administrative Relationship between the Union and the States?
4. Explain the provisions created in the constitution for the protection of Dalits and Backward Classes.
5. Which the privileges for children mentioned in the Constitution?
6. How the interest of women is protected in the Constitution of India?
7. Write a note on Secularism practiced in India?

Answer these following questions in detail. Each question carries 14 marks.

1. Critically examine 'Federalism' enacted by the Constitution of India.
2. Explain the composition, powers and functions of National Human Rights Commission.
3. Narrate the various initiatives taken by the government to protect and preserve the environment of our country and commitment to reduce global warming?
4. Mention the various privileges created for the protection of women, children, Dalits and other backward classes?

5.14 Answers

Answer for one mark questions

1. Refer to sub section 5.3
2. Refer to sub section 5.3.a.(i)
3. Refer to sub section 5.3.aa.(iii)
4. Refer to sub section 5.4.a
5. Refer to sub section 5.4.a.(v)
6. Refer to sub section 5.6
7. Refer to sub section 5.7
8. Refer to sub section 5.9
9. Refer to sub section 5.10.
10. Refer to sub section 5.10

Answer for five marks questions

1. Refer to sub section 5.3.a.(iii)
2. Refer to sub section 5.3.b.
3. Refer to sub section 5.3.c.
4. Refer to sub section 5.7
5. Refer to sub section 5.8
6. Refer to sub section 5.9
7. Refer to sub section 5.10

Answer for 14 marks questions.

1. Refer to section 5.3
2. Refer to sub section 5.4.9
3. Refer to sub sections 5.6.1 to 5.6.10
4. Refer to sub sections 5.7, 5.8 and 5.9

Module-6

Coalition Government

Structure

- 6.1 Introduction
- 6.2 Learning Objectives
- 6.3 Coalition Government
- 6.4 Features of Coalition Government
- 6.5. Examples of Coalition Government
- 6.6. Coalition Politics at State Level
- 6.7. Merits and Demerits of Coalition Government
- 6.8. Summary
- 6.9. Self Assessment Questions
- 6.10 Terminal Questions
- 6.11. Answers

6.1 Introduction:

In the political system of India, getting absolute majority by a political party becomes difficult. This has led to new form of governance called Coalition Politics. This form of government depends on the principle of co-operation than competition. Swim together and sink together is the philosophy of this form of government. Different political parties join hands in forming the government. Let us understand the concept in detail.

6.2 Learning Objectives:

This Module deals with:

- Meaning of Coalition Government
- Pre Poll coalition and Post Poll coalition
- Features of Coalition government.
- Examples of Coalition – Union and State level
- Merits and De-merits of Coalition Government.

6.3 What is a Coalition Government?

It is a system of governance by a group of political parties or by several political parties. When several political parties collaborate to form a government and exercise the political power on the basis of a common agreed programme or agenda, we describe it as Coalition Government.

Such a Coalition government is organized when no party is in a position to get a majority

in the parliament, and some parties form a coalition group or an alliance to form a government.

6.3.a. Pre-poll Coalition: Before an election several parties form an alliance or a coalition group, and which after getting a majority or after emerging as the single largest group in the legislature, forms a government in which all coalition partners find a berth in the Council of Ministers. A pre-poll coalition group always contests elections on the basis of a common manifesto or an agreed programme and policies behind which all the coalition partners are united through a consensus. When the coalition group as a whole secures a majority in elections, it gets the mandate to rule and implement its agreed programme and politics. Consequently, it forms a government in which every coalition partner has a share and the coalition government exercises power for giving effect to the agreed policies and programmes. In other words, a coalition government means, the formation of a government by a group of political parties and coalition politics mean the collective exercise of power by a group of political parties as coalition partner.

6.3.b. Post-poll Coalition: In the general election if no political party get a majority, some parties come together and form a coalition government and exercises power in the agreed policies and programmes.

The Coalition group/alliance selects a coalition leader and coalition government is organized under the leadership of such person.

6.4 Features of Coalition Politics:

1. Coalition Politics is a collaborative-cooperative effort in which some political parties together exercise political power i.e., form a government to make binding decision for a whole society.
2. A coalition government is organized by two or more political parties.
3. At times some political parties form a pre-poll alliance and contest the elections collectively by fielding common candidates in various constituencies. After getting a majority in the elections, the coalition partners collectively form a government.
4. At times when no party is in a position to get a majority some parties form a coalition for organizing a government. The coalition partners then share the exercise of power of the state.
5. Before or after the organization of a coalition government, the coalition partners prepare a common programme, which incorporates a set of mutually agreed politics and principles. The exercise of power is undertaken for implementing the agreed policies and programmes. In case the coalition alliance or group is organized before the elections, a common election manifesto is prepared, adopted and released.
6. The coalition group/alliance either elects or selects a coalition leader in advance or elects such a leader after the elections. The coalition government is organized under the leadership of such a person.
7. Coalition government is always based upon a compromise or agreement. In

decision-making all the coalition partners try to practice decision making by consensus. Each coalition partner has to accommodate the wishes, desires and politics of other partners.

8. A coalition government has usually a large sized Council of Ministers because all the coalition partners have to be given a berth in the Ministry.

6.5 Examples of Coalition at the Union Level

In January 1977, four political parties – Bhartiya Lok Dal, Congress (o), Jan Sangh and some rebel Congressmen united to form the Janata Party. It was designed to bring at one platform all anti Congress parties and to work for the defeat of the Congress in the next elections, under one symbol and a common manifesto. In this elections, Congress (I) suffered a defeat and Janata Party and its supporters won as many as 300 seats in the Lok Sabha and formed the first coalition government.

In 1989, several congressmen resigned their memberships and formed a Jana Morcha to oppose the Congress and provide an alternative to it. Jana Morcha leaders joined hands with some other parties like Janata Party and Lok Dal. A National Front was formed to contest 1989 elections, particularly for opposing the Congress. In these elections, no party was in a position to win majority and yet National Front emerged as a potent political force. It formed the government at the centre with outside support from the BJP and the Left Parties. This was the second coalition government formulated.

However, in a real and effective way, the beginning of the politics of coalition government took place after 1989, when the era of hung Lok Sabhas emerged in the Indian Political System.

The National Front government (1989) was a coalition government, which came into power with outside support from the CPI, CPM and the BJP. In 1990, a minority government of the Congress took office, but was in a position to transform itself into a virtual majority government in 1994. Between 1996-98, the two United Front governments were coalition governments and similar was the nature of the BJP-led government of 13 political parties which remained in power between March 1998 to September 1999. On 13 October 1999, a BJP-led 24 party coalition – the National Democratic Alliance came to power and ruled the country between October 1999 and May 2004. In May 2004, the Congress-led UPA Coalition came to power and it continues to rule the country till date.

6.6 Coalition Politics at State Level:

At the State level the Coalition politics started after the first general elections (1952) when the Congress formed a coalition government in Kerala.

In 2004 elections to Karnataka Legislative Assembly, no party was in a position to secure majority. BJP got 79 seats and emerged as a single largest party. The Congress came 2nd with 65 seats followed by Janata Dal (S) secured 58 seats. 17 seats were bagged by others. The Congress and JD (S) formed a coalition under the Chief Ministership of

Shri. Dharam Singh. The Congress and JD (S) however could remain in power only till February 2006. A revolt in JD(S) led to the fall of this coalition government. It then led to the formation of a new coalition government JD(S) and BJP coalition under the Chief Ministership of H. D. Kumara Swamy with BJP leader B.S. Yediyurappa as the Deputy Chief Minister. This coalition government was in power only for 20 months after which the alliance failed paving way for general elections in Karnataka.

This political system has helped all the political parties to learn the art of exercising power in a shared way as well as in understanding and reconciling several different views.

6.7. Merits and De Merits of Coalition Government

Merits	De-Merits
1. Common administration	1. Lack of Co-operation
2. Co-operation – Swim together or Sink together philosophy.	2. Unnecessary delays in taking decisions.
3. Better Governance	3. Opportunistic
4. People's friendly laws	4. Disputes as an integral of Governance.
5. Expertise of different politicians of different political parties can be utilized	5. Results in temporary government because agenda of different political parties seldom matches.

6.8. Summary:

Coalition government is a system of governance by a group of political parties or by several political parties. When several political parties collaborate to form a government and exercise the political power on the basis of a common agreed programme or agenda, we describe it as Coalition Government. Such coalition may be established before the elections – which is called as Pre-poll coalition or after the elections – known as post poll elections. The Coalition group/alliance selects a coalition leader and coalition government is organized under the leadership of such person.

Coalition politics started after the first general elections (1952) when the Congress formed a coalition government in Kerala.

6.9 Self Assessment Questions

- _____ is a system of governance by a group of political parties.
- Coalition before Election is known as _____.
- Coalition after Election is known as _____.
- What is the name of Present Coalition Government.
- What was the name of BJP led Coalition Government?

6.10 Terminal Questions

Answer the following in a word or sentence each. Each carries One marks.

1. What is a Coalition Government?
2. What is Pre-poll Coalition?
3. Define Post-poll Coalition
4. What is the philosophy of Coalition Politics?
5. State an example for Coalition Politics at the state level?

Answer the following in a Paragraph each. Each question carries five marks

1. Explain the features of coalition government.
2. What are the advantages or merits of coalition politics?
3. Narrate the disadvantages of coalition politics?
4. Give examples for Coalition government at national and state level.

Answer the following question in detail. Each question carries fifteen marks

1. What is coalition government? What are its Merits and Demerits?
2. Explain the features of Coalition Governments and give some examples for Coalition government at National and State level.

6.11 Answers

Answer for one mark questions

1. Refer to sub section 6.3
2. Refer to sub section 6.3. (a)
3. Refer to sub section 6.3.b
4. Refer to sub section 6.1
5. Refer to sub section 6.6.

Answer for five marks questions

1. Refer to sub section 6.4
2. Refer to sub section 6.7
3. Refer to sub section 6.7
4. Refer to sub section 6.5 and 6.6.

Answer for 14 marks questions.

1. Refer to sub section 6.3 and 6.7
2. Refer to sub section 6.4 , 6.5 and 6.6

Answers for Self Assessment Questions.**Module 1**

1. Territory and Sovereignty
2. Government
3. Nehru Report.
4. 2nd September 1946.
5. Dr. Rajendra Prasad.
6. Preamble.
7. Socialist, Secular and Integrity of the Nation.
8. 395, 12, 22.
9. Secular State.
10. 44.
11. Article 14
12. Article 17.
13. Article 21A
14. 11.
15. Directive Principles.

Module 2

1. Lok Sabha
2. 10 %
3. Question Hour.
4. Speaker.
5. 6 months.
6. 14 days.
7. 12
8. 6 years.
9. The Vice-President of India.
10. A legislature which has two houses is known as bi-cameralism legislature.
11. 6
12. Bill
13. Speaker of Lok Sabha.
14. 29th April 1997.
15. Committee on Public Accounts.

Module 3

1. The President.
2. 35 years.
3. Rashtrapati Bhavan.
4. The President of India.
5. 356.

6. Prime Minister.
7. Prime Minister.
8. Those who hold an independent ministry or port folio.
9. Governor.
10. Chief Minister.

Module 4

1. 26th January 1950.
2. 65 years.
3. Supreme Court of India.
4. 32
5. Public Interest Litigation.
6. The High Court of Culcutta (Kolkata).
7. Allahabad High Court, 95 Judges.
8. Judicial Review.
9. Lok Adalats.
10. Habeas Corpus.

Module 5

1. Federal Government.
2. Union List.
3. Finance Commission.
4. New Delhi.
5. United Nations Development Programme.
6. Article 24.
7. 1961.
8. Suppression of Immoral Traffic in Women and Girls Act passed in 1956.
9. Secularism.
10. Universal Adult Franchise.

Module 6

1. Coalition Government.
2. Pre-Poll Coalition
3. Post Poll Coalition.
4. UPA (United Progressive Alliance)
5. NDA (National Democratic Alliance).